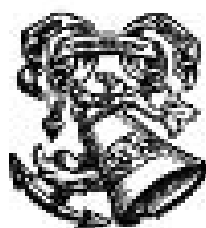


GUILDS
IN
THE MIDDLE AGES

BY
GEORGES RENARD

TRANSLATED BY
DOROTHY TERRY
AND EDITED WITH AN INTRODUCTION BY
G. D. H. COLE



LONDON
G. BELL AND SONS, LTD.
1918

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PREFACE

This short book is the first part of a larger work by M. Georges Renard, the well-known French economic writer. The second part of the original deals with the modern Trade Union movement, and the part here reproduced is complete in itself.

G. D. H. COLE.

October 1918.

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INTRODUCTION TO THE ENGLISH EDITION

It is a curious gap in our economic literature that no simple introductory study of Mediaeval Guilds has yet been published in England. The subject is, of course, dealt with in passing in every text-book of economic history, and there have been several admirable studies of particular aspects of Mediaeval Guild organization, particularly of the period of its decay; but no one has yet attempted to write a short account of the system as a whole, such as might serve as a text-book for those who desire to get a general knowledge of the industrial system of the Middle Ages.

This is all the more remarkable, because to an increasing extent in recent years men's thoughts have turned back to the Mediaeval Guilds in their search for solutions of present-day industrial problems. Nor is this tendency entirely new, though it has recently assumed a new form. The earlier Trade Unions often sought to establish their direct descent from the Guilds of the Middle Ages: one of the most ambitious projects of the Owenite period in British Trade Unionism was the "Builders' Guild" of 1834; and, a generation later, William Morris, and to a less extent John Ruskin, constantly strove to carry men's minds back to the industrial order which passed away with the first beginnings of modern capitalism.

Moreover, in our own times, an even more determined attempt is being made to apply the lessons of the Middle Ages to modern industrial problems. Mr. A. J. Penty's *The Restoration of the Guild System*, published in 1907, began this movement, which was then taken up and transformed into the constructive theory of National Guilds, first by Mr. A. R. Orage and Mr. S. G. Hobson in the *New Age*, and later by the writers and speakers of the National Guilds League. A substantial literature, all of which assumes at least a general acquaintance with mediaeval conditions, has grown up around this movement; but so far no National Guildsman has attempted to write the history of the Mediaeval Guilds, or even to explain at all clearly their relation to the system which he sets out to advocate.

Until this very necessary work is executed, the present translation of M. Renard's study of Mediaeval Guilds should fill a useful place. Indeed, in some ways, M. Renard has the advantage. He is not a National Guildsman, but a moderate French Socialist of the political school, and he therefore presents the history of the Guilds without a preconceived bias in their favour. It is no small part of the value of M. Renard's study that he brings out the defects of the mediaeval system quite as clearly as its merits.

It must be clearly stated at the outset that the value which a study of Mediaeval Guilds possesses for the modern world is not based on any historical continuity. The value lies rather in the very discontinuity of economic history, in the sharp break which modern industrialism has made with the past. Historians of Labour combination have often pointed out that the Trade Unions of the modern world are not in any sense descended from the Guilds of the Middle Ages, and have no direct or genealogical connection with them. This is true, and the connection which has sometimes been assumed has been shown to be quite imaginary. But it does not follow that, because there is no historical connection, there is not a spiritual connection, a common motive present in both forms of association. This connection, indeed, is now beginning to be widely understood. As the Trade Union movement develops in power and intelligence, it inevitably stretches out its hands towards the control of industry. The Trade Union, no doubt, begins as a mere bargaining body, "a continuous association of wage-earners for the purpose of maintaining or improving their conditions of employment"; but it cannot grow to its full stature without becoming far more than this, without claiming for itself and its members the right to control production. At first this claim may be almost unconscious; but out of it grows a conscious theory of Trade Union purpose. The Syndicalist movement, native to France, but spreading the influence of its ideas over the whole industrialized world, the Industrial Unionist movement, the American equivalent of Syndicalism, and our own doctrine of National Guilds, or Guild Socialism, are all conscious attempts to build a policy upon the half-conscious tendencies of Trade Union action. In all these the claim is made in varying forms that the workers themselves shall control in the common interest the industries in which they are engaged.

In one of these theories at least there is a conscious retrospection to the Middle Ages. National Guildsmen are seeking to formulate for modern

industrial Society a principle of industrial self-government analogous to that which was embodied in the Mediaeval Guilds. They do not idealize the Middle Ages; but they realize that the old Guild system did embody a great and valuable principle which the modern world has forgotten. They are not setting out to restore the Middle Ages; but they are setting out to find a democratic form of industrial autonomy which will spring from the principle which inspired the economic system of mediaeval Europe.

Mediaeval Guilds assumed many different forms under the varying circumstances of their origin—in Holland and Italy, France and England, Scotland and Germany. But, underlying all their different manifestations, a fundamental identity of principle can be found; for, in all, the direct control of industry was in the hands of the associated producers. The relations of the Guilds to other forms of association differed widely from time to time and from place to place. In some cases the Guilds dominated and almost constituted the State or the municipal authority; in others, the power of the State and the municipality were freely exercised to keep them under control. But, whatever their exact relationship to other social powers, their essential character persisted. It was an axiom of mediaeval industry that direct management and control should be in the hands of the producers under a system of regulation in the common interest.

With these general observations in mind, we can now proceed to look more closely at the actual form which mediaeval organization assumed, particularly in this country. M. Renard naturally has the Continental, and especially the French, examples mainly in mind. We must therefore in this introduction dwell particularly upon the conditions which prevailed in mediaeval England.

It was in the Middle Ages that, for the first time, both the English national State and English industry assumed definite shapes and forms of organization, and entered into more or less defined and constant relationships. Concerning their organization, and, still more, concerning the actual, and substantial relations between them, there are many points of obscurity which may never be cleared up; but, apart from special obscurities, the main structure of mediaeval economic life is clearly known. Just as, in the manorial system, agriculture assumed a clear and definite relationship to the feudal State, so, with the rise of town life and the

beginnings of an industrial system, the Mediaeval Guilds found a defined sphere and function in the structure of Society and a defined relation to the mediaeval State.

It is always necessary, in considering the economic life of the Middle Ages, to bear in mind the relatively tiny place which industry occupied in Society. England, and indeed every country, was predominantly agricultural; and England differed from the more advanced Continental countries in that she was long an exporter of raw materials and an importer of manufactured goods. This is the main reason why the Mediaeval Guild system never reached, in this country, anything like the power or dimensions to which it attained in Flanders, in Italy, and in parts of Germany. But, even if English Guilds were less perfect specimens, they nevertheless illustrated essentially the same tendencies; and the economic structure of mediaeval England was essentially the same as that which prevailed throughout civilized Europe. It is indeed a structure which, at one period or another, has existed over practically the whole of the civilized world.

Industry was carried on under a system of enterprise at once public and private, associative and individual. The unit of production was the workshop of the individual master-craftsman; but the craftsman held his position as a master only by virtue of full membership in his Craft Guild. He was not free to adopt any methods of production or any scale of production he might choose; he was subjected to an elaborate regulation of both the quantity and the quality of his products, of the price which he should charge to the consumer, and of his relations to his journeymen and apprentices. He worked within a clearly defined code of rules which had the object at once of safeguarding the independence, equality and prosperity of the craftsmen, of keeping broad the highway of promotion from apprentice to journeyman and from journeyman to master, and also of preserving the integrity and well-being of the craft by guarding the consumer against exploitation and shoddy goods.

The Guild was thus internally a self-regulating unit laying down the conditions under which production was to be carried on, and occupying a recognized status in the community based on the performance of certain communal functions. It was not, however, wholly independent or self-contained; it had intimate relations with other Guilds, with the municipal

authority of the town in which it was situated, and, in increasing measure, with the national State within whose area it lay. There is about these relations, with which we are here primarily concerned, a considerably greater obscurity than about the main structure of industrial organization. In particular, one of the most obscure chapters in English industrial history is that which deals with the relation between the Craft Guilds of which we have been speaking and the municipal authorities.

In the great days of the Guild system the industrial market was almost entirely local. Long-distance or overseas trade existed only in a few commodities, and, in this country, these were almost entirely raw materials or easily portable luxuries. England was, as we have seen, an agricultural country, and the nascent industry of the towns existed only to supply a limited range of commodities within a restricted local market. While these conditions remained in being, organization developed in each town separately, and industry came hardly at all into touch with the national State. Then, gradually, the market widened and the demand for manufactured commodities increased. As this happened, industry began to overflow the boundaries set to it by the purely local Guild organization. Foreign trade, and to a less extent internal exchange, increased in variety and amount; and a distinct class of traders, separated from the craftsmen-producers, grew steadily in power and prominence. New industries, moreover, and rival methods of industrial organization began to grow up outside the towns and to challenge the supremacy of the Guilds; while, in the Guilds themselves, the system of regulation began to break down, and inequality of wealth and social consideration among the Guildsmen destroyed the democratic basis of the earlier Guild organization.

These developments coincided in time with a big growth in the power and organization of the national State, a growth based largely on the imposition of a common justice and the establishment of a common security. This made possible, while the parallel economic developments made necessary, a national economic policy; and the State, beginning with the woollen industry, then after agriculture of by far the greatest national and international importance, began to develop a policy of economic intervention. The State had intervened in agriculture after the Black Death; even earlier it had begun its long series of interventions in connection with the woollen industry; in 1381 the first Navigation Act was passed; and

during the fifteenth and sixteenth centuries complicated codes of industrial regulation by the State became the rule and practice of English statecraft.

We have then to distinguish already two periods in which the State assumed differing relations to mediaeval industrial organization. In the earlier days of the Guild system industry was local in character, and the Guilds came into relations primarily with the municipal authority, and only occasionally with the State, even when the Guild charter was obtained directly from the Crown. In the second period, when the Guild system was already at the beginning of its long period of disintegration, the State was developing a comprehensive economic policy which covered every aspect of industrial organization.

Let us look rather more closely at the first of these two periods, the period of the rise and predominance of Guild organization; and let us repeat our question as to the relations which existed between the Guilds and the State or municipal authority. The first form of Guild organization in this country was undoubtedly that of the "Guild Merchant," a general organization including both trading and manufacturing elements, and deriving special privileges for its trade by virtue of a Charter secured directly from the Crown. Here, then, is our first clear relation. The Guild Merchant derived, if not its organization, at any rate its privileges and authority, from the direct grant of the State. In practice the principal power thus acquired was the right to trade throughout the kingdom. The relations of the Guild Merchant to the municipal authorities are far more obscure. It used to be maintained that they were identical; but this view has been clearly disproved. We cannot, however, trace many signs of the active intervention of the municipality in the affairs of the Guild Merchant, though it is clear that the jurisdiction of the City authorities remained, in form at least, unaffected by the creation of a Guild Merchant.

The Guilds Merchant reached their zenith in the twelfth century. Thereafter, as trade and industry grew in extent and complexity, the general organization of all merchants and master-craftsmen in a single body gave way to a system of Craft Guilds, each representing as a rule a single craft or "mystery." Some of these Guilds were predominantly Guilds of traders, some of producers; while some included both trading and producing elements. By the fourteenth century the Guilds Merchant had everywhere

disappeared, and the Craft Guilds were in possession of the field. Thus came into being the organization of industry generally known as the “Mediaeval Guild system.”

What, then, were the relations of these Craft Guilds to the municipalities and to the State? They arose, we have seen, out of the ashes of the Guild Merchant. Often they were definitely created and fostered by the municipal authorities. The borough claimed the right of regulating production and trade in the interest of its burgesses, the right to uphold quality of product and fair dealing, to punish offenders, and in the last resort to fix both the prices of commodities and the remuneration of journeymen and apprentices. The greater part of these functions was actually exercised by the Crafts themselves, which, as we have seen, made their own regulations for the ordering of trade and production; but the city authorities always maintained and asserted a right of intervention in the affairs of the Guilds whenever the well-being and good service of the consumer were involved; and this right was frequently exercised in the case of the Guilds which organized the supply of food and drink. Neither the limits of Guild authority nor the limits of municipal intervention were accurately or uniformly defined. In practice the system oscillated from the one side to the other. Sometimes the Guilds asserted and maintained a comparative immunity from municipal regulation, and sometimes a recalcitrant Guild was brought to book by a strong-handed municipal authority. The poise and balance between the parties was in many cases made the more even because both alike often derived their authority from a special Charter granted by the Crown. Indeed, one of the regular resorts of the Craft Guild, in its battle for independence from outside control, was to get from the Crown a definite Charter of incorporation, granting to the Guild the widest range of powers that it was able to secure.

The Guild was essentially a local organization, and, in placing it in its relation to the municipal authority, we are describing it in its essential economic character. Its relation to the national State, like that of the municipality itself, was far more occasional and incidental, and, apart from one or two broad issues of policy connected mainly with the woollen industry, the interest of the national State in the towns, and therefore in industrial organization, was primarily financial. The protection of the consumer was a very minor motive; the stimulation of urban industry had

hardly become a general object of policy systematically pursued; and the granting of Charters, whether to town or to Guild, was far less a matter of economic policy than an obvious device for raising the wind. Charters were always most plentiful when the Crown was most in need of money.

The period of merely occasional intervention in industry by the State lasted down to the time of Elizabeth, when for the first time the State undertook a comprehensive system of industrial regulation. This, however, no longer meant the exclusive dominance of financial considerations, although the need for raising money was always very present to the minds of Elizabeth and her ministers. The new policy was primarily political in motive rather than economic, and was directed on the one side to the fostering and development of trade, and on the other to the conservation of the man-power of the nation. The Elizabethan Statute of Artificers, passed in 1563, laid down elaborate provisions both for regulating the flow of labour into various classes of occupations and for prescribing the conditions under which the work was to be carried on. Attention in modern times has been mainly directed to the clauses dealing with wages; but the principle of the Act was very much wider than any mere regulation of wages. It rested upon the principle of compulsory labour for all who were not in possession of independent means; and its basis was the obligation upon every one who could not show cause to the contrary to labour on the land. At the same time it aimed at protecting the supply of labour for the urban industries, and, still more, at giving to urban industry an advantage against the growing competition of the country-side. In short, it incorporated a general scheme for the redistribution of the national man-power in accordance with a definite conception of national policy. This distribution was accomplished mainly by an elaborate code of regulations for apprenticeship, parts of which lived on right into the nineteenth century.

With this regulation of trade and commerce went also a regulation of wages. As in the case of the Statute of Labourers, the object was primarily that of preventing the labourer from earning more than his customary standard, allowing for variations in the cost of living. The rates of wages which the Justices of the Peace were ordered to fix were thus primarily *maxima*, and the Act contained stringent penalties against those who obtained, or paid, more than these *maxima*. In some cases, however, if rarely, the rates laid down were also *minima*, and employers were fined for paying less. This

was, however, clearly exceptional, and a special declaratory Act passed under James I., which clearly empowered the justices to fix binding minimum rates, shows that there had been legal doubt about it.

In any case the general tendency of the Tudor legislation is clear. It aimed at establishing and enforcing by law the existing social structure, at standardizing the relations between the classes, and at putting them all in their places under the direction of the sovereign State. In short, the Tudor system represents, in the most complete form possible, the State regulation of private industry.

While these measures were being taken by the State, the Guild system was in decay. As wealth grew and accumulated, the tendencies towards oligarchy within the Guilds and exclusiveness in relation to outsiders grew more and more marked. Among the Guildsmen wide social distinctions appeared, and the master-craftsman before long found himself, in relation to the rich trader or large-scale manufacturer, very much in the position of a labourer in relation to his employer. The richer Guilds, especially those connected with trade, sought by the limitation of entry and the exaction of high entrance fees and dues after entry, to keep the Guild “select” and establish an oligarchy in its government. At the same time the growth of new industries which had never come under Guild regulation, and the grant by the Crown of special privileges to individual monopolists and patentees, contributed to the downfall of the old system. Where the Guilds did not die, they were transformed into exclusive and privileged companies which in no sense carried on the mediaeval tradition.

Especially in the later stages of Guild development, and with growing intensity as they drew nearer to decay and dissolution, struggles raged in many of the Guilds and between Guild and Guild among the diverse elements of which they had come to be composed. M. Renard speaks of struggles in the Guilds of Florence between the more and less capitalistic and powerful elements, and Mr. George Unwin, in his book on *Industrial Organisation in the Sixteenth and Seventeenth Centuries*, has presented a picture of similar struggles in the Guilds of England. These conflicts, however various in some respects, assumed mainly the form of a constant struggle for supremacy between the craftsmen-producers who were typical of the great days of the Guilds and the trading or merchant class which was

gradually extending its control over production as well as sale. Gradually, as capital accumulated in the hands of the traders, the rift between them and the master-craftsmen widened and, gradually too, the master-craftsmen lost their independence and their status as free producers. Not only the marketing of the goods which they produced, but also the essential raw materials of their crafts, passed under the control of the traders, either by the operation of economic forces alone, or by the purchase of some valuable concession or monopoly from the Crown. Moreover, where the actual producer retained his power, he did so by a transformation of function. Gradually, he turned into a capitalist trader and lost all unity of interest and outlook with the working craftsman.

We need not here follow the Guild system through its later stages of decay and dissolution. Where the Guilds did not die they shrank up as a rule into capitalistic and oligarchical associations. Step by step, power within the Guild was taken away from the ordinary Guild member by the creation of privileged orders, access to which was possible only to “men of substance.” This process of oligarchization can be traced very clearly in Mr. George Unwin’s admirable history of the Guilds and Companies of London. No doubt its coming was more obvious in London than in smaller industrial centres; but the essential features of the change were everywhere substantially the same. The constant attacks on patents and monopolies in the later years of the reign of Elizabeth and under the Stuarts were, in part, attacks upon the privileges granted to mere courtiers and adventurers; but when monopoly came their way, the undemocratic Guilds and Livery Companies were to the full as forward in abusing their powers as the merest of adventurers who found or bought the royal favour.

From the time of the Stuarts, at least, the Guild system had ceased to count at all as a method of industrial organization. It is doubtful whether, even in their greatest days, the Guilds ever included the whole personnel of the trades and industries which they controlled, and it is certain that, as the tendency towards oligarchy became manifest in them, they included a steadily decreasing proportion of those whose work they claimed to regulate. Moreover, even of those whom they included, a steadily decreasing number retained any control over their policy.

This decay of the Guilds, however, is not of primary importance for those who seek to learn lessons from their experience. If we would judge them and learn from them, we must study them as they were in the time of their greatest prosperity and power, before the coming of capitalistic conditions had broken their democracy in pieces and destroyed their essential character. Viewed in this aspect, the Guild system was essentially a balance, made the easier to maintain because it was not so much a balance of powers between different groups of persons with widely divergent interests as a balance between the same persons grouped in different ways, for the performance of different social functions. The municipal authority was, as a rule, largely dominated by the Guilds; and in turn the Guilds were largely dominated by the civic spirit. The distinction between producer and consumer was important; but it was not so much a distinction between opposing social classes as between friendly and complementary forms of social organization. In proportion as this was not the case, the balance on which the Guild system rested tended to break down; but the occasion of its breakdown was not the irreconcilable opposition of producer and consumer, but the struggles within the Guilds themselves between traders and craftsmen, or between exclusive and democratic tendencies.

The mediaeval organization of industry, then, was based upon the twin ideas of function and balance. It was an organization designed for an almost self-contained local type of Society, and before the coming of national and international economy it broke down and fell to pieces. As a local system of organization it reached its greatest perfection in those countries in which town life was strongest and national government weakest (*e.g.* in the Hanse towns of Germany; in Italy, and in Flanders). In this country the towns never possessed the strength or the independence necessary for the perfect development of the Guild system; but even so all the essential principles of the Guilds were operative.

The period since the breakdown of the Guilds has been a period of national and international economy. From the point of view of economic organization, it falls into two contrasted halves—a period of State supremacy in which the State assumed the supreme direction of industrial affairs, and a period of State abdication in the nineteenth century, during which there was no collective organization, and economic matters were left to the free play of economic forces working in a *milieu* of competition.

Positively, these two periods stand to each other in sharp contrast; negatively there is a point of close resemblance between them. In neither was there any functional organization co-ordinating and expressing the economic life of the nation. In the first period the State regulated industry as a universal and sovereign authority; in the second period nobody at all was allowed to regulate industry, which was supposed to regulate itself by a sort of pre-ordained harmony of economic law. In both periods the purely economic organizations directed to the performance of specific functions which were characteristic of mediaeval organization had disappeared, or at all events had ceased to be the vital regulating authorities in industrial affairs. Local functional organizations had ceased to be adequate to the task of control; national functional organizations had not yet come into being, or, at all events, had not yet secured recognition.

To-day we stand at the beginning of a new period of economic history. The Trade Union movement, created mainly as a weapon of defence, is beginning to challenge capitalist control of industry, and to suggest the possibility of a new form of functional organization adapted to the international economy of the modern world. Already in Russia chaotic but heroic experiments in workers' control are taking place, and, in every country, the minds of the workers are turning to the idea of control over industry as the one escape from the tyranny of capitalism and the wage system. It is, then, of the first importance that, in framing the functional democracy of twentieth-century industry, we should cast back our minds to the functional industrial democracy of the Middle Ages, in order that we may learn what we can from its successes and its failures, and, even more, gain living inspiration from what is good and enduring in the spirit which inspired the men who lived in it and under it.

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CHAPTER I

ORIGIN AND GEOGRAPHICAL DISTRIBUTION

1. The origin of guilds has been the subject of a great deal of discussion, and two opposing theories have been advanced. According to the first theory they were the persistence of earlier institutions; but what were these institutions? Some say that, more particularly in the south of France, they were of Roman and Byzantine origin, and were derived from those *collegia* of the poorer classes (*tenuiorum*) which, in the last centuries of the Empire, chiefly concerned themselves with the provision of funerals; or, again, from the *scholae*, official and compulsory groups, which, keeping the name of the hall in which their councils assembled, prolonged their existence till about the year 1000. According to others they were, particularly in the north, of German origin, and were derived from associations resembling artificial families, the members of which mingled their blood and exchanged vows to help each other under certain definite circumstances; or again, they may have descended in a straight line from the *ministeriales*, the feudal servitors who, in every royal or feudal domain of any extent, were grouped according to their trade, under the authority of a *panetier*,^[1] a *bouteillier*,^[2] a head farrier, or a chief herdsman. According to others again, the Church, that great international association, had, by the example of its monastic orders and religious brotherhoods, given the laity lessons and examples of which they were not slow to take advantage.

According to the opposite theory, each guild was a separate creation, born, as it were, by spontaneous generation, and had no connection with the past. Associations (*gildae*), *scholae*, colleges—all had been killed by the hostility of the central power before they had had time to mature fully. They were children of the necessity which compelled the weak to unite for mutual defence in order to remedy the disorders and abuses of which they were the victims. They were the result of the great associative movement, which, working by turns on political and economic lines, first gave birth to the

communes, and so created a social environment in which they could live and develop. The craftsmen, drawn together into one street or quarter by a similar trade or occupation, the tanners by the river, or the dockers by the port, acquired for themselves in the towns which had won more or less freedom the right to combine and to make their own regulations.^[3]

As is nearly always the case, there is a kernel of truth in each of these opposing theories. Certainly it is hardly likely that the germs or the wreckage of trade associations, existing in the *collegia*, the *scholae*, the associations, the groups in royal, feudal, or ecclesiastical domains, should have totally disappeared, to reappear almost immediately. Why so many deaths followed by so many resurrections?

The provision trades in particular do not appear to have ceased to be regulated and organized. If, as Fustel de Coulanges says, “history is the science of becoming,” it must here acknowledge that guilds already existed potentially in society. It may even be added that in certain cases, it was to the interest of count or bishop to encourage their formation; for, as he demanded compulsory payment in kind or in money, it was to his advantage to have a responsible collective body to deal with. It is certain, too, that religious society, with its labouring or weaving monks (the Benedictines or Umiliate for instance), with its bodies of bridge-building brothers, with its lay brotherhoods, was also tending to encourage the spirit of association. But it is none the less true that these organisms,—if not exactly formless, at any rate incomplete, unstable, with little cohesion, and created with non-commercial aims,—could not, without the influence of favourable surroundings, have transformed themselves into guilds possessing statutes, magistrates, political jurisdiction, and often political rights. It was necessary that they should find, in Europe, social conditions in which the need for union, felt by the mass of the population, could act on their weakness and decadence like an invigorating wind, infusing new life into them. It was necessary that they should find in the town^[4] which sheltered them, a little independent centre, which would permit the seeds of the future, which they held, to grow and bear fruit unchecked.

It may then be concluded that there was, if not a definite persistence of that which had already existed, at least a survival out of the wreckage, or a

development of germs, which, thanks to the surrounding conditions, underwent a complete metamorphosis.

2. What we have just said explains both how it was that the guilds were not confined to any small region, and why they were not of equal importance in all the countries in which they were established. They are to be met with in the whole of the Christian West, in Italy as well as in France, in Germany as well as in England. They were introduced simultaneously with town life in the countries of the north. There is sufficient authority for believing that the system which they represent predominated in those days in the three worlds which disputed the coasts and the supremacy of the Mediterranean—the Roman Catholic, the Byzantine, and the Mohammedan. Thus there reigned in the basin of that great inland sea a sort of unity of economic organization.

This unity, however, did not exclude variety. The guilds were more alive and more powerful as the towns were more free. Consequently it was in Flanders, in Italy, in the “Imperial Towns,” in the trading ports, wherever, in fact, the central authority was weak or distant, that they received the strongest impetus.

They prospered more brilliantly in the Italian Republics than at Rome under the shadow of the Holy See. In France, as in England, they had to reckon with a jealous and suspicious royalty which has ever proved a bad neighbour to liberty. The more commercial, the more industrial the town, the more numerous and full of life were the guilds; it was at Bruges or at Ghent, at Florence or at Milan, at Strasburg or at Barcelona, that they attained the height of their greatness; at all points, that is, where trade was already cosmopolitan, and where the woollen industry, which was in those days the most advanced, had the fullest measure of freedom and activity.

CHAPTER II

THE ORGANIZATION OF THE GUILDS

1. It is sometimes imagined that the guilds united all the merchants and all the craftsmen of one region. This is a mistake. At first those who lived in the country, with rare exceptions,^[5] did not belong to them: certain towns, Lyons for instance, knew nothing of this method of organization, and even in those towns where it was in existence, there were trades which remained outside, and there were also isolated workers who shunned it—home-workers, who voluntarily or involuntarily kept themselves apart from it.^[6] Guilds, then, were always privileged bodies, an aristocracy of labour.

It is also imagined that they were voluntary organizations of a uniform type. There is the classic division into three degrees or grades. Just as under the feudal system, a man became successively page, esquire, and knight, and it was necessary, in order to rise from one stage of the hierarchy to the next, to complete a certain time of service and of military education, so in the guild organization, he was first an apprentice for one or more years, then a journeyman (*garçon, valet, compagnon, serviteur*), working under the orders of others for an indeterminate period, and finally, a master, established on his own account and vested with full rights. Just as the knight, after he had given proof of having finished his instruction, had still, before putting on his golden spurs, to go through a religious and symbolic service which included the purifying bath, the oath, and the communion, so the master, after having proved his capabilities by examination or by the production of a piece of fine craftsmanship, took the oath, communicated, and fraternized with his fellows at a solemn banquet. But this quasi-automatic promotion from rank to rank was in fact far from being as regular as has been imagined. It was not unusual for one of the three grades, that of *compagnon*, to be passed over, for the apprentice to rise directly to the rank of master, and for the formalities of admission to be reduced to a minimum for one who had the good luck to be a master's son. From the earliest times mastership tended to become hereditary, as did the life fiefs held by barons and earls. Nor on the other hand was it rare for a *compagnon* to find himself

for life at that grade without the possibility of rising higher. Moreover, the famous divisions never existed, except in certain trades.

The truth is that guild organization, even within the walls of a single town, presented several different types. It might be *simple*, or *complex*; it might be either half democratic or capitalistic in structure.

2. It was simple when it included only one trade, and this was fairly often the case. It was complex when it was composed of several juxtaposed or superimposed groups. In this case it was a federation of craft guilds, each keeping its individual life, its own statutes, and its own officers, but all united in a larger body of which they became members. This was the name which at Florence was borne by those lesser bodies of which the whole was composed.^[7] The whole was called an *Arte*, and just as the *membri* could themselves be subdivided, so the *Arte* might be defined as a union of unions.

The Middle Age was not an age of equality. Usually among the groups united under a central government there was one which predominated, which held fuller corporate rights; the others, regarded as inferiors, only enjoyed a greater or smaller part of such rights. Some did not enjoy the privilege of co-operating in the election of the federal magistrates, to whom none the less they owed obedience; others were not allowed to carry the banners, towards which they nevertheless had to contribute their share.

Take, for example, the *Arte dei medici, speziali, e merciai*, at Florence, which included, as may be seen, three *membri*—doctors, apothecaries, and haberdashers. This seems a heterogeneous assemblage, but the first two are easily accounted for; and if the connection is less clear between the last and these two, it may be found in the fact that the haberdashers, like the great shops of our own day, sold some of everything, and consequently kept in their shops those foreign drugs and spices of which the *speziali* were the usual depositaries.^[8] The complication is here increased because the *speziali*, among whom Dante was enrolled, included as subordinate *membri* the painters combined with the colour merchants, while the saddlers were coupled with the haberdashers.^[9]

It will easily be understood how troubled must have been the life of associations formed of such diverse elements. There was in each an endless succession of internal struggles in the attempt to maintain between the varying elements an equilibrium which was necessarily unstable. Each “member,” according to the number of its adherents, or according to the social standing which it claimed, or which was accorded to it by public opinion, fought for the mastery; but as in the course of years their relative importance was constantly modified, the constitution of the whole body was for ever changing. No fixed principle regulated its ceaseless mobility, or set on a solid basis the organization of its compact but rival groups, of which one or another was ever tempted to imagine itself sacrificed.

3. The guild, when simple, was usually half democratic. Being a bourgeois growth developing in feudal surroundings, it rested, like the feudal system itself, on two closely connected principles—hierarchy and equality. It included several superposed grades, while at the same time it assured identical rights to everybody included in any one of those grades. Masters, journeymen, and apprentices were ranked one above another, but those of the same grade were equals. Inequality could be, theoretically at least, only temporary, since the master had once been a journeyman, the journeyman was a prospective master, and the apprentice in his turn would climb to the top of the ladder. This state of things, however, was only to be met with in the building trades, in “small” industry and “small” commerce—the most numerous it is true, but not the most powerful. There alone was almost realized the idyllic picture of the workman working in the workshop beside his master, sharing his life, eating at his table, his partner in joys and sorrows, joining him in processions and at public ceremonies, until the day when he himself should rise to be a master.

4. It is convenient to begin with the lowest grade and work upwards. The apprentice was, as may be imagined, the object of a somewhat keen solicitude. Apprenticeship, in “small” industry, with which it was intimately associated, was the means of maintaining that professional skill on which the guild prided itself. The apprentice was a child whom his parents or guardians wished to be taught a trade as soon as he was ten or twelve years of age, although there was no fixed age limit. A master was found who would take him. Every instructor must be a master: he must also be of good life and character, endowed with patience, and approved of by the officers

of the guild. If he were recognized as capable of carrying out his duties, the two parties bound themselves by a contract, often verbal, often also made before a notary. This fixed the length of the apprenticeship, which varied greatly in different trades; for it might cover from one to six, eight, ten, or twelve years; sometimes it stipulated for a time of probation—usually a fortnight—during which time either side could cancel the agreement. The apprenticeship was not free of expense, at any rate to begin with, and the child's guardians paid an annual fee in corn, bread, or money. In return, the child received his lodging, food, clothes, washing, and light, and was supervised and taught in the master's house. Certain contracts contain special clauses: one states that the family will supply clothes and boots; another, that the apprentice shall receive a fixed salary after a certain time; another provides for the circumstances under which the engagement may be cancelled.^[10]

The apprentice had certain obligations, which sometimes, in spite of his youth, he solemnly swore to keep (the oath has never been so much used as in the Middle Ages). He promised to be industrious and obedient, and to work for no other master. The master, on his side, promised to teach him the secrets of his craft, to treat him “well and decently in sickness as in health,” and certain contracts add, “provided that the illness does not last longer than a month.” Naturally these duties carried with them certain rights. The master might correct and beat the apprentice, provided that he did it himself; a contract drawn up with a rope-maker in Florence says, “short of drawing blood.” It often happened that the apprentice, sick of work or in a fit of ill-temper, ran away from his master; a limit was then fixed for his return, and his place was kept for him during his absence, which sometimes lasted quite a long time (it has been known to continue as long as twenty-six weeks). If he returned within the time limit he was punished but taken back; but if he indulged in three such escapades he was dismissed, his parents had to indemnify the master, and the truant was not allowed to go back to the craft which he had abandoned.

However, an enquiry was held to decide whether the master had abused his rights, and the officers of the guild or the civil authority, as the case might be, set at liberty any apprentice who had been unkindly or inhumanly treated. We find a master prosecuted for having beaten and kicked an apprentice to death; a mistress indicted for having forced into evil living a

young girl who had been entrusted to her care. In such a case the apprentice was removed from his unworthy master and put into safer hands. Sometimes it happened that the master was attacked by a long and serious illness, or that through trouble and poverty he could no longer carry out his agreement.

A custom, however, sprang up which threatened to wreck the system. This was the practice of buying for money so many years or months of service, thus establishing a privilege to the detriment of professional knowledge and to the advantage of the well-to-do. A sum of money took the place of actual instruction received, and some apprentices at the end of two years, others only at the end of four, obtained their final certificate which allowed them to aspire to mastership.

Attention should be called to the fact that there are many statutes which limit the number of apprentices. What was the motive of this limitation? The reason which was usually put foremost—namely, the difficulty one master would have in completing the technical education of many pupils—does not seem to have been always the most serious. Perhaps a reduction was insisted on by the journeymen, for it was usually to the interest of the masters to have a great many apprentices, and to keep them for a long time at that stage. They were so many helpers to whom little or nothing was paid, although the work exacted of them nearly equalled that of the journeymen. Therefore we must not be astonished if the latter looked unfavourably on these young competitors who lowered the price of labour. The poor apprentices were thus between the devil and the deep sea. They suffered from the jealousy of the journeymen as well as from the greed of the masters, who cut down their allowance of food, and by keeping them unreasonably long prevented them from earning a decent living.

The literature of the times, ^[11] when it deigns to notice them, leaves us to infer that their existence was not a particularly happy one; nevertheless it is only right to add that their lot cannot be compared with that of the wretched children who, in the opening years of the era of machinery, were introduced in large numbers into the great modern industries.

5. The journeymen (also called *valets*, *compagnons*, *serviteurs*, *massips*, *locatifs*, *garçons*, etc.) were either future masters or else workmen for life,

unable to set up for themselves because they lacked the indispensable “wherewithal,” as certain statutes crudely express it. Their time of apprenticeship over, they remained with the master with whom they had lived; or else, especially in the building trades, having perfected themselves by travel, they went to the market for disengaged hands^[12] and offered their services. They were hired in certain places where the unemployed of all trades assembled. They were required to give proof that they were free of all other engagements, and to present certificates, not only of capability, but of good conduct, signed by their last master. Thieves, murderers, and outlaws, and even “dreamers” and slackers, stood no chance of being engaged, while those who, though unmarried, took a woman about with them, or who had contracted debts at the inns, were avoided. They were required to be decently clothed, not only out of consideration for their clients, but also because they had to live and work all day in the master’s house. The master, when he was satisfied with the references given, and when he had assured himself that he was not defrauding another master who had more need of hands than himself, could engage the workman. The contract which bound them was often verbal, but there was a certain solemnity attaching to it; for the workman had to swear on the Gospels and by the saints that he would work in compliance with the rules of the craft.

The engagement was of very varying duration; it might be entered into for a year, a month, a week, or a day. The workman who left before the time agreed upon might be seized, forced to go back to the workshop, and punished by a fine. If the master wished to dismiss the workman before the date arranged, he had first to state his reasons for so doing before a mixed assembly composed of masters and journeymen. A mutual indemnity seems to have been the rule, whether the workman abandoned the work he had begun, or whether the master prematurely dismissed the man he had hired.
^[13]

The journeyman had to work in his master’s workshop, and it was exceptional for him to go alone to a client (in which case he was duly authorized by the master), or to finish an urgent piece of work at home. The length of the working day was regulated by the daylight. Lighting was in those days so imperfect that night work was forbidden, as nothing fine or highly finished could be done by the dim light of candles. This rule could never be broken except in certain crafts—by the founders, for example,

whose work could not be interrupted without serious loss—or by those who worked for the king, the bishop, or the lord.^[14] The rest worked from sunrise to sunset, an arrangement which made summer and winter days curiously unequal. Some neighbouring clock marked the beginning and end of the day, and a few rests amounting to about an hour and a half broke its length. All this was very indefinite, and disputes were frequent as to the time for entering or leaving the workshop. The Paris workmen often complained of being kept too late, and of the danger of being obliged to go home in the dark at the mercy of thieves and footpads. It was necessary for the royal provost to issue a decree before the difficulty was overcome.

The workers, however, reaped the benefit of the many holidays which starred the calendar and brought a little brightness into the grey monotony of the days. The Sunday holiday was scrupulously observed without interfering with the Saturday afternoon, when work stopped earlier, or the religious festivals which often fell on a week day. It has been calculated^[15] that the days thus officially kept as holidays amounted to at least thirty, and it may be safely said that work was less continuous then than nowadays.

To leave work voluntarily at normal times was strictly forbidden, and the police took up and imprisoned any idlers or vagabonds found wandering in the towns. But even in those days Monday was often taken as an unauthorized holiday. Certain crafts had their regular dead season:^[16] thus at Paris among the bucklers (makers of brass buckles) the *valets* were dismissed during the month of August; but such holidays, probably unpaid, were rare, as was also the arrangement to be found among the weavers at Lunéville, which limited the amount of work a journeyman might do in a day.

For various reasons it is difficult to state precisely what wages were paid; there are very few documents; the price of labour varied very much in different crafts and at different periods; the buying power of money at any given time is a difficult matter to determine;^[17] and finally, it was the custom to pay a workman partly with money and partly in kind. It must not be forgotten too that a man ate with his master, a decided economy on the one hand, and on the other a guarantee that he was decently fed. Sometimes he received an ell of cloth, a suit of clothes, or a pair of shoes.^[18] It has been stated that his wages (which were paid weekly or fortnightly) were, in

the thirteenth century, enough for him to live on decently.^[19] It has been possible to reconstruct the earnings and expenditure of a fuller at Léon in the year 1280; the inventory of a soap-maker of Bruges of about the same date^[20] has been published; it has been estimated that in those days the daily wage of a *compagnon* at Aix-la-Chapelle was worth two geese, and his weekly wage a sheep; comparisons have been made, and it has been concluded that a workman earned more in Flanders than in Paris, more in Paris than in the provinces. All this seems likely enough; but I should not dare to generalize from such problematic calculations. I limit myself to stating that historians are almost unanimous in holding that, taking into consideration that less was spent on food, rent, and furniture, and above all on intellectual needs (because both the demands were less and the prices lower), it was easier for a workman's family to make both ends meet in those days than it is now.

It is at any rate certain that a journeyman's salary was sometimes guaranteed to him; this is shown by an article of the regulations in force among the tailors of Montpellier, dated July 3, 1323:

“If a master does one of his workmen a wrong in connection with the wages due to him, that master must be held to give satisfaction to the said workman, according to the judgment of the other masters; and, if he does not do this, no workman may henceforward work with him until he is acquitted; and, in case of non-payment, he must give and hand over to the relief fund of the guild ten ‘deniers tournois’ [of Tours].”

On the whole, then, in spite of the varying conditions in the Middle Ages, it is not too much to say that, materially, the position of the journeyman was at least equal, if not superior, to that of the workman of to-day. It was also better morally. He sometimes assisted in the drawing up and execution of the laws of the community; he was his master's companion in ideas, beliefs, education, tastes. Above all, there was the possibility of rising one day to the same social level. Certainly one paid and the other was paid, and that alone was enough to set up a barrier between the two. But where “small” industry predominated, there was not as yet a violent and lasting struggle between two diametrically opposed classes. Nevertheless, from this time onwards, an ever-increasing strife and discord may be traced.

First the privileges accorded to the sons of masters tended to close the guilds and to keep the workmen in the position of wage-earners; this gave rise to serious dissatisfaction. Besides this, the masters were not always just, as even their statutes prove. Those of the tailors of Montpellier, which we have just quoted, decreed that the workshops of every master who had defrauded a workman of his wages should be boycotted. These injustices therefore must have occurred, since trouble was taken to repress them. Still more acute was the dissatisfaction in towns where the rudiments of “great” industry existed. Strikes broke out, with a spice of violence. In 1280 the cloth-workers of Provins rose and killed the mayor;^[21] at Ypres, at the same date, there was a similar revolt for a similar reason, viz. the attempt to impose on the workmen too long a working day. At Chalon, the king of France had to intervene to regulate the hours of labour. Already the question of combination was discussed, and the masters did their best to prevent it. At Rheims in 1292 a decision by arbitration prohibited alliances whether of *compagnons* against masters or of masters against *compagnons*. This already displays the spirit of the famous law which was to be voted by the Constituent Assembly in 1791.^[22] In the year 1280, in the *Coutume de Beauvoisis* by the jurist Beaumanoir, the combination of workmen is clearly defined as an offence^[23]—“any alliance against the common profit, when any class of persons pledge themselves, undertake, or covenant not to work at so low a wage as before, and so raise their wages on their own authority, agree not to work for less, and combine to put constraint or threats on the *compagnons* who will not enter their alliance.”

The attempt to raise wages by combination was condemned under the pretext that it would make everything dearer, and was punished by the lord by fine and imprisonment.

One can see in these and other symptoms signs of the coming storm. The workmen protested against the importation of foreign workers as lowering the price of labour, and made them submit to an entrance fee. They attempted to secure a monopoly of work, just as the masters attempted to secure the monopoly of this or that manufacture. Thus amongst the nail-makers of Paris^[24] it was forbidden to hire a *compagnon* from elsewhere, as long as one belonging to the district was left in the market. Even in the religious brotherhoods, which usually united master and workman at the

same altar, a division occurred, and in certain crafts the journeymen formed separate brotherhoods: the working bakers of Toulouse, the working shoemakers of Paris, set up their brotherhoods in opposition to the corresponding societies of masters, and this shows that the dim consciousness of the possession of distinct interests and rights was waking within them.^[25]

6. Finally we should take into account the condition of the masters in the lesser guilds where the workshop remained small, intimate, and homely, but these we shall constantly meet with again when we come to study the life and purpose of the guilds, since it was they who made the statutes and administered them. For the present it is enough to mention that women were not excluded from guild life. It would be a mistake to imagine that the woman of the Middle Ages was confined to her home, and was ignorant of the difficulties of a worker's life. In those days she had an economic independence, such as is hardly to be met with in our own times. In many countries she possessed, for instance, the power to dispose of her property without her husband's permission. It is therefore natural that there should be women's guilds organized and administered like those of the men. They existed in exclusively feminine crafts: fifteen of them were to be found in Paris alone towards the end of the thirteenth century, in the dressmaking industry and among the silk-workers and gold-thread workers especially. There were also the mixed crafts—that is, crafts followed both by men and women—which in Paris numbered about eighty. In them a master's widow had the right to carry on her husband's workshop after his death. This right was often disputed. Thus in 1263 the bakers of Pontoise attempted to take it from the women, under the pretext that they were not strong enough to knead the bread with their own hands; their claims, however, were dismissed by an ordinance of the *Parlement*. Another decree preserved to the widows this right even when they were remarried to a man not of the craft.

Nevertheless, in many towns, above all in those where entry into a guild conferred political rights and imposed military duties, the women could not become masters. Condemned to remain labourers, working at home, and for this reason isolated, they appear to have been paid lower wages than the workmen; and certain documents show them seeking in prostitution a supplement to their meagre wages, or appropriating some of the raw silk

entrusted to them to wind and spin. But other documents show them as benefiting by humane measures which the workwomen of to-day might envy them. They were forbidden to work in the craft of “Saracen” carpet-making, because of the danger of injuring themselves during pregnancy. This protective legislation dates from the year 1290: for them, as for children, exhausting and killing days of work were yet to come.^[26] All the same, one can see the tendency to keep them in an inferior position for life, and, taken along with the strikes and revolts, the first appearances of which amongst weavers, fullers, and cloth-workers we have already mentioned, this clearly shows that, side by side with the half-democratic guilds which were the humblest, there existed others of a very different type.

7. Directly we go on to study the great commercial and industrial guilds profound inequalities appear. Nor do these disappear with time; whether we deal with the bankers’ or with the drapers’ guilds, we find that their organization is already founded on the capitalist system. The masters, often grouped together in companies, are great personages, rich tradesmen, influential politicians, separated from those they employ by a deep and permanent gulf.

The river merchants of Paris, the Flemish and German Hanse, the English Guild Merchants, and the *Arte di Calimala* in the commune of Florence,^[27] may be taken as types of the great commercial guilds. They were the first to succeed in making their power felt, and represent, first by right of priority, and later by right of wealth, all that existed in the way of business, the *Universitas mercatorum*, and they long retained an uncontested supremacy. Not only the whole body, but the heads of the houses or societies dependent on them, had numberless subordinates, destined for the most part to remain subordinates—cashiers, book-keepers, porters, brokers, carriers, agents, messengers. These paid agents—often sent abroad to the depots, branch houses, bonded warehouses, *fondouks*, owned collectively or individually by the wholesale merchants whose servants they were—were always under the strictest regulations. Take, for instance, the prohibition to marry which the Hanseatic League imposed on the young employees whom it planted like soldiers in the countries with which it traded. Nor was the Florentine *Arte di Calimala*, so called after the ill-famed street in which its rich and sombre shops were situated, any more lenient to those of its agents who, especially in France, were set to watch over its interests. The merchants of

the Calimala—buyers, finishers, and retailers of fine cloth, money-changers too, and great business magnates, constantly acting as mediums of communication between the West and the East—were far from treating their indispensable but untrustworthy subordinates in a spirit of brotherhood. They looked on them with suspicion as inferiors. They complain of their “unbridled malice”;^[28] they reproach them, and probably not without reason, with making their fortunes at the expense of the firms which paid them. It was decided that in the case of a dispute as to wages, if nothing had been arranged in writing, the master could settle the matter at will without being bound by precedent or by anything he had paid in a similar case. If the employee was unlucky enough to return to Florence much richer than he left it, he was at once spied upon, information was lodged against him, and an inquiry instituted by the consuls of the guild; after which he was summoned to appear and made to disgorge and restore his unlawful profits. If he could not explain the origin of his surplus gains, he was treated as a bankrupt, his name and effigy were posted up, and the town authority was appealed to that he might be tortured till a confession of theft or fraud was forced from him; he was then banished from the Commune. Thus we see exasperated masters dealing severely with dishonest servants: capital ruling labour without tact or consideration.

The autocratic and capitalistic character of the great industrial guilds is even more striking.^[29]

The woollen industry offers the most remarkable instances. The manufacture of cloth (which was the principal article of export to the Levantine markets) was the most advanced and the most active industry of the Middle Ages, with its appliances already half mechanical, supplying distant customers scattered all over the world. It was the prelude to that intensity of production in modern times which is the result of international commerce.

The wholesale cloth merchants no longer worked with their own hands; they confined themselves to giving orders and superintending everything; they supplied the initiative; they were the prime movers in the weaving trades which depended on their orders; they regulated the quantity and quality of production; they raised the price of raw material, and the workmen's wages; they often provided the appliances for work; they

undertook the sale and distribution of goods, taking the risks, but also the profits. Already they were capitalists, fulfilling all the functions of captains of industry.

What became, then, of the intimate and cordial relations between masters, journeymen, and apprentices? The guilds began to assume a character unlike anything which could exist among the clothiers or blacksmiths for instance. This new state of affairs suddenly arose at Florence in the *Arte della Lana*. At some periods of its existence this guild had a membership of 20,000 to 30,000, but it was like a pyramid, with a very large base, numerous tiers, and a very small apex. At the summit were the masters, who were recruited entirely from among the rich families and formed a solid alliance for the defence of their own interests. Forced to guard against the perils which threatened their business on every hand—the difficulty of transport, a foreign country closed to them by war or by a tariff, the jealousy of rival towns—they tried to recoup themselves by employing cheap labour, and, remembering the maxim “divide and rule,” they ranked the workmen they employed in different degrees of dependence and poverty.

Some classes of workers, such as dyers and retailers, were affiliated to the *arte* under the name of inferior *membri*. True, they were allowed certain advantages, a shadow of autonomy, and liberty of association, but at the same time they were kept under strict rules and under the vow to obey officers nominated by the masters alone. Thus the dyers were not allowed to work on their own account, and were subject to heavy fines if the goods entrusted to them suffered the slightest damage; the rate of wages was fixed, but not the date of payment, which was invariably delayed.

On a lower tier came the weavers and the male and female spinners; both classes were isolated home-workers under the system of domestic manufacture, which is highly unfavourable to combination and therefore to the independence of the workers. The weavers, whether proprietors or lessees of their trade, could not set up without the permission of the masters who held the monopoly of wool, on whom they therefore became entirely dependent. They were pieceworkers and had no guaranteed schedule of prices.

The spinners lived for the most part in the country, and this country labour served, as usual, to lower the rate of wages in the towns; perhaps this was why the Florentine tradesmen favoured the abolition of serfdom, for the reason that its abolition took the peasants from the land and left them free but without property, thus forcing them to hire themselves out, and so creating a reserve army for the needs of industry. The masters invented a curious method of keeping the women weavers in their power. Every year the consuls obtained pastoral letters from the bishops of Fiesole and Florence, which, at Christmas, Easter, Whitsuntide, and All Saints, were read in the villages from the bishop's throne. In these letters the careless spinner who wasted the wool which had been entrusted to her was threatened with ecclesiastical censure and even with excommunication if she repeated the offence. An excellent idea indeed, to use the thunderbolts of the Church for the benefit of the great manufacturers!

On a lower tier again we find the washers, beaters, and carders of wool, the fullers and the soapboilers, who formed the lowest grade of the labouring classes—a true industrial proletariat,—wage-earners already living under the régime of modern manufacture. They were crowded together in large workshops, subjected to a rigorous discipline, compelled to come and go at the sound of the bell, paid at the will of the masters—and always in silver or copper, or in small coin which was often debased,—supervised by foremen, and placed under the authority of an external official who was a sort of industrial magistrate or policeman chosen by the consuls of the *arte* and empowered to inflict fines, discharges, and punishments, and even imprisonment and torture. In addition, these tools or subjects of the guilds were absolutely forbidden to combine, to act in concert, to assemble together, or even to emigrate. They were the victims of an almost perfect system of slavery.

This short sketch shows how necessary it is to discriminate between the various types of guilds. But, however much they differed in their inner characteristics, they shared many points of resemblance which we must now proceed to examine.

CHAPTER III

THE ADMINISTRATION OF THE GUILDS

The administration of the guilds was everywhere almost uniform. The guild was a voluntary association of men carrying on the same trade or allied trades and pledging themselves by oath to defend their common interests. It demanded of those who, in virtue of their mastership, wished to belong to it, proofs of capability, morality, orthodoxy, political loyalty, and often the regular payment of a contribution. Once enrolled, a member could not leave without first publicly announcing his intention to do so, and discharging any debts owing to the guild. He could be expelled for any serious breach of its regulations or of the laws of the state.

The association thus constituted was autonomous; it was a moral and legal person; it could possess wealth in lands, houses, money, or bonds; it could contract, bargain, bind itself, appear in court through representatives whom it nominated (syndics, proctors, etc.). It had its guild halls, which were decorated with its coats-of-arms. It had its banner, funds, seal, and archives. It was, then, within the limits of its jurisdiction, self-governing. Its constitution was semi-democratic in the sense that the masters of whom it was composed were looked on as possessing equal rights. The legislative power was in the hands of the General Assembly, which made, or at least sanctioned, the statutes and the revisions of the rules, and it is remarkable that from one end of Europe to the other identical formulae on more than one point are found; the words relating to the subject of prohibition, for example: “Let none presume or be so bold as to....”^[30]

No act of any importance pledging the whole guild could be carried through without the advice and ratification of the assembly. The interests involved were, however, so complex, the business of such daily occurrence, that it would have been impossible to convoke the assembly on every occasion; it therefore became necessary to create an organ of government, an executive, and at the same time a judicial, power—in other words, to nominate officers to act in the name of the guild. The method of nomination varied in every

age and region. In most cases the election was made directly by the masters alone, or indirectly by electors whom they nominated; sometimes, but rarely, the inferior *members* of the complex guilds, journeymen of the simple guilds, took part, and a certain number of those elected belonged to their group. In other cases the nomination depended on the lord or on some one to whom he had delegated his authority; in others it was held by the municipal magistrates, as at Toulouse; and in others again the resigning officials nominated their successors or filled vacancies as they occurred. In Italy there were complicated systems in imitation of those in use for the communal magistracies. The candidates' names were proposed, and accepted or rejected by acclamation or by secret ballots; those approved were written on tickets which were placed in sealed and padlocked bags. In this way a supply of candidates was provided for several years, and whenever necessary, a child or a priest drew at hazard one of the names for each post.^[31] This curious combination of chance and of popular choice was often to be met with in the Italian Republics. At Arras, in the butchers' guild, as many balls of wax as there were masters present were placed in an urn. The words "Jésus-Marie" were inscribed on one of the balls, and the man who drew it became head of the guild.

In course of time the right to office was restricted by an age limit, by a longer or shorter period of matriculation, and even by wealth or social standing. Thus, among the old-clothes dealers of Florence no one who cried his goods in the streets, and among the bakers, no one who carried bread from house to house on his back or on his head, could be elected rector.

The officials thus nominated (and none could escape the duty which fell to him) were sometimes quite numerous; the *Arte di Calimala* at Florence had four consuls, a treasurer or *camérier*, a cashier, a syndic, and a proctor, not to mention two notaries and other subordinate officers whom the consuls chose with the assistance of a general council, and of a special council of the guild. The heads or chiefs were called in the south of France, *consuls*, *recteurs*, *bailes*, *surposés*, etc.; those in the north were called *gardes*, *eswards*, *jurés*, *prud'hommes*, *maïeurs de bannières*, etc. In certain texts one comes across "bachelor" masons and carpenters, curious titles given to ex-officers, who, though they had resigned their headship, might still have some official duties.^[32]

These officers were usually not long in power—sometimes only a few months, and practically never longer than a year; their duties ended with a statement of accounts which carried with it ineligibility to re-election for a certain time.

There was always a fear of creating magisterial dynasties which might perpetuate themselves at will, and of encouraging the development of cliques; for these reasons several members of a family or business house were not allowed to sit on the guild committee simultaneously.

The reason why so much trouble was taken to divide the responsibilities was because they conferred considerable power and entailed a great deal of absorbing work. The heads of the guilds, by whatever name they were called, took an oath that they would first and foremost see that the rules were carried out—no easy matter. In this respect they had legal powers, and they not only acted as arbiters in the quarrels which arose among the members, but also in the conflicts which in the great merchant guilds might arise in the course of trade even with foreigners: disputes over weights and measures, bankruptcies, frauds, reprisals, etc. They were, in fact, public officials, and their consular tribunals were to become in time the organs of the Commune. In the industrial guilds they had to watch over production, inspect the articles of manufacture in the workshops, to make sure that they were in conformity with the prescribed rules. In cases of delinquency they had the right to seize and burn the goods and to inflict a fine on the offenders. In some places it was their duty to protect the apprentices, to examine the candidates for mastership, and to provide the necessary funds for the pious works which were under the control of the community.

At Florence the *Arte di Calimala* had the care of the monastery of San Miniato, the baptistery of St. Jean, and the hospital of St. Eusèbe; the *Arte della Lana* took charge of the building and decoration of the dome. In short, everything which could contribute to the welfare and reputation of the guild was under the jurisdiction of the heads, who, controlled by their colleagues, had thus an extensive sphere of activity.

The consuls of the Calimala had among their duties the maintenance of roads and hostels, and even the safe conduct of Florentine travellers in a district extending as far as the fairs of Champagne and St. Gilles.

But it will be easier to judge of the multiplicity of duties which the guilds demanded of their officers if their aims are more closely studied, and this will best be done by carefully investigating their guiding principles as shown in their statutes.

CHAPTER IV

THE AIMS AND METHODS OF THE GUILDS

The guilds appear to have had three essential aims: an *economic* aim, a *social and moral* aim, and a *political* aim.

1. The economic aim comes first in time and importance. The guild was first and foremost a fighting organization for the defence of the trade interests of those who belonged to it. It was jealous both of the welfare and of the honour of the craft—two things intimately connected; for it realized that good reputation is one of the conditions of good business. Naturally the first means to suggest itself for the attainment of this double ideal was the regulation of *production* and *sale*.

With regard to production, the guilds prided themselves on giving an official guarantee to the consumer. Hence the many articles contained in the statutes in which they boast of their good faith,^[33] or make a point of emphasizing the honesty of their trade dealings; hence their complicated regulations, often so misunderstood by historians, for the prevention of bad work; hence the minute instructions prescribing the number of vats into which the Florentine dyer was to dip his materials and the quantity and quality of the colouring matters he was to employ; the size of the meshes in the nets which the Roman fisherman was to cast into the Tiber;^[34] the length of the pieces of linen to be woven by the Parisian spinner, regulated by that of the tablecloths which covered the table of “good King Philip”;^[35] or the colour and size of the garments which the silk workers of Constantinople were to make.^[36]

In pursuance of the same principle, and on the authority of the Statutes—intervention on the part of the public authorities not being required—it was strictly forbidden, under penalty of a fine or of expulsion, to sell damaged meat, bad fish, rotten eggs,^[37] or pigs which had been fed by a barber-surgeon who might have fattened them on the blood of sick people.^[38] The dyers pledged themselves to use nothing but fast colours, furriers to use

only skins which had not been previously used, mattress-makers never to employ wool coming from hospitals. The tailor who spoilt a garment or kept a piece of cloth entrusted to him was made to pay back his client and was punished by his fellows. In Maine a butcher might not display a piece of beef on his stall unless two witnesses could testify to having seen the animal brought in alive.^[39] If by any chance an article passed through the hands of two craft guilds, delegates from each had to assure themselves that the rules of both had been faithfully observed.^[40]

The guild prided itself on letting nothing leave its shops but finished products, perfect of their kind; it examined and stamped every article, and further required that it should bear a special trade-mark stating where it was made and its just price.^[41] At Ypres, towards the end of the thirteenth century, the pieces of cloth thus officially accepted numbered 8000 a year. Nor was this all; like Caesar's wife, the guild must be above suspicion; not only fraud, but the very appearance of fraud was rigorously excluded, all that might deceive the buyer was forbidden. In Florence jewellers might not use sham stones, even if they declared them to be such;^[42] in Paris it was forbidden to make glass jewels in imitation of real stones, or to put a leaf of metal under an emerald to give it an artificial brilliance;^[43] plated and lined goods were not allowed, as they might be mistaken for solid gold or silver.^[44] Once when a goldsmith, thinking no harm, had made a bowl of this kind, it was decided, after deliberation, to sell it secretly, and he was cautioned never to make another.

Sale was as carefully watched over as production. Not only had the weights and measures to be verified and controlled in conformity with carefully preserved standards, but at Florence, for instance, the "iron ruler" of the *Calimala* was the standard for measuring woollen materials, and there were besides minute directions for measuring; there were prescribed methods for measuring a piece of cloth, or for filling a bushel with onions by placing the arms round the edge in order to add to the contents and ensure good measure.^[45]

In "great" commerce the guild regulated the conditions which made a bargain valid, the duty of paying the *denier à Dieu*, and the earnest-money, the regular term for completing payment, the rate of discount, and the

transparent methods of avoiding the ban placed on interest by the Church, [46] the methods of book-keeping, etc. By means of these Statutes commerce was eventually to emerge armed with full rights; and as the failure of one member to fulfil his undertakings might compromise all the others, we can understand, even if we cannot approve, the severity of the penalties inflicted on a bankrupt, the posting up of his name and effigy, his expulsion from the guild, his imprisonment and occasionally his banishment from the city.

One serious result of this constant and perfectly legitimate effort to assure the success of the guild was that it produced a strong desire to reduce, or if possible do away with, competition. The Middle Ages did not understand rights except under the form of privileges, and the guild always tended to arrogate to itself the monopoly of the craft which it carried on in a city. It even tried to exclude neighbouring towns from the market, and this was the secret of the desperate struggles which set at enmity Bruges and Ghent, Siena, Pisa, and Florence, Genoa and Venice, etc.

There is ample proof of this exclusive spirit. At first the guilds tried to keep their processes secret, just as to-day a nation makes a mystery of its new submarine or explosive. Woe to him who betrayed the secret which gave the guild its superiority over the others! He was punished by his fellows and by the law. The merchants of the Calimala swore not to reveal what was said in the Councils of the guild. Florence owed part of her wealth to the fact that for long she alone knew the secret of making gold and silver brocade. A tragic example of what it might cost to be indiscreet may be found in a Venetian law of 1454: "If a workman carry into another country any art or craft to the detriment of the Republic, he will be ordered to return; if he disobeys, his nearest relatives will be imprisoned, in order that the solidarity of the family may persuade him to return; if he persists in his disobedience, secret measures will be taken to have him killed wherever he may be." The following is an example of the jealous care with which the guild tried to prevent any encroachment on its domain: in Paris the guild of the bird fanciers attempted, though unsuccessfully, to prevent citizens from setting on eggs canaries which they had caged, as it injured the trade of the guild. [47]

It may well be imagined that guilds so jealous of their prerogatives did not make it easy for merchants and workmen coming in from outside. In the free towns (i.e. towns in which industry was organised) a master's licence obtained in a neighbouring, or even a sister, town, was invalid, just as to-day the diploma of doctor of medicine gained in one country does not carry with it the right to practise in another. To open a shop, it was necessary to have served an apprenticeship in that city; or at the very least it was necessary to have learnt the trade for the same number of years demanded of the apprentices in that district. The merchants who came from other parts, not like birds of passage to disappear with the fairs, but to settle down and establish themselves in a country, were subject to the same dues as the citizens, but did not share with them the franchise and might not join their guilds. They formed colonies and attempted to obtain, or even bought permission to reside and trade; but they ran the risk of being arrested or turned out at any moment, especially if they were money-lenders, as, for instance, the Lombards, who both in France and England many a time suffered from these intermittent persecutions. Outsiders, even though in many cases they had originally come from the district, were hampered by all sorts of restraints and obligations. In short, the town market was usually reserved for the citizens of the town, and the policy of the guilds (with occasional exceptions on the part of the great commercial guilds) was to shut the door to all foreign goods which they could produce themselves. Even within the city walls it was their ambition to ruin, or to force into their ranks, free lances of the same trade;^[48] and although the word "boycott" was not then invented, the thing itself already existed, and was practised when necessary.

This tendency to preserve craft monopoly led to other practices, and we find each guild jealously guarding its particular province against all intruders. Doubtless in those days an article was as a rule wholly produced in a single workshop, but it sometimes happened that an article had to pass through the hands of more than one craft guild; this was the case with cloth, leather, and arms. Sometimes, again, a craft which began by being simple became so complex that its very development forced it to split up. Thus we find in some large towns that the wine merchants were subdivided into five classes: wholesale merchants; *hôteliars* (hotel-keepers), who lodged and catered; *cabaretiers* (inn-keepers), who served food and drink; *taverniers*

(publicans), who served drink only; and *marchands à pot* (bottlers), who retailed wine to be taken away. It followed that the dividing line between guild and guild was often very doubtful, and this situation was continually giving rise to differences, quarrels, and lawsuits, some of which lasted for centuries.

In one case^[49] we find a currier, who had taken to tanning, forced to choose between the two trades; in another we find goldsmiths forbidden to encroach on the business of money-changing. Interminable disputes dragged on between the tailors, who sold new clothes, and the sellers of old clothes,^[50] and the courts laboured for years and years to fix the exact moment at which a new suit became an old one! The harness makers quarrelled with the saddlers; the sword polishers with the sword-pommel makers; the bakers with the confectioners; the cooks with the mustard makers; the woollen merchants with the fullers; the leather-dressers with the shamoy-dressers; the dealers in geese with the poulterers, etc, etc.^[51] When it was not a question of the right of manufacture, they quarrelled over the best pitches. At Paris the money-changers of the Pont-au-Change complained that the approach to their shop was obstructed by the birdsellers, and tried to force them to settle elsewhere. The wheelwrights established in the Rue de la Charronnerie (it might have happened yesterday) compelled the clothes-sellers to move about with their hand-barrows, instead of taking up their station in their neighbourhood. These ever-recurring legal disputes were inherent in the guild system and could only disappear with the system itself.

Lastly, this competition for monopolies made itself felt in the very heart of each guild. It led directly to rigorous limitation of the number of masters. If, in fact, all those who were qualified to receive mastership had been left free to set up, those who first held the privilege would have risked being lost in the crowd of newcomers. This explains why even here they sought to reduce competition to a minimum. Only six barbers were allowed in Limoges, and when one of them died, his successor was elected after a competitive examination. At Angers the head of the guild only created new master butchers every seven years, and even then it was necessary to obtain the consent of the other masters.^[52] In certain towns when a family in possession of a craft died out, its house of business and appliances reverted

to the guild, which indemnified the heirs.^[53] It was an expense, but it meant one competitor the less. Is it to be wondered at that mastership in many crafts gradually became hereditary? It was only necessary to push the principle a little further. If we consult the *Book of Crafts* drawn up by Étienne Boileau from 1261 to 1270 by order of Louis IX., we read in the Statutes of the napery weavers of Paris: “No one may be master weaver except the son of a master.” Thus, from the thirteenth century, guild organization, in the pursuit of its economic ends, closed its ranks and tended to become a narrow oligarchy.

2. The second ruling idea of the Guild Statutes was the pursuit of moral and social aims; it desired to establish between the masters of which it was composed honest competition—“fair play.” It desired to prevent the great from crushing the small, the rich from ruining the poor, and, in order to succeed, it tried to make advantages and charges equal for all. Its motto so far was: Solidarity.

Thus, every member was forbidden to buy up raw material for his own profit. If the arrival of fresh fish, hay, wine, wheat, or leather was announced, no one might forestall the others and buy cheaply to sell dearly; all should profit equally by the natural course of events. When a merchant treated with a seller who had come into the town, any of his fellows who happened to come in at the moment when the earnest-money was paid and the striking of hands in ratification of the bargain took place, had the right to claim a share in the transaction and to obtain the goods in question at the same price.^[54] Sometimes, in order to avoid abuses, anything which had come within the city walls was divided into portions and the distribution made in the presence of an official (*prud’homme*), who saw that the allocation was just, that is to say, in proportion to the needs of each shop or workshop.^[55] Often the maximum amount which an individual might acquire was strictly laid down. At Rome a mattress maker might not buy more than a thousand pounds of horse hair at a time, nor a shoemaker more than twenty skins. To make assurance doubly sure, the community, when it was rich, undertook to do the buying for its members. At Florence the *Arte della Lana* became the middleman;^[56] it bought wholesale the wool, kermes, alum, and oil, which it distributed according to a uniform tariff amongst its members, in proportion to their requirements; it possessed, in

its own name, warehouses, shops, wash-houses, and dyeing-houses, which were used by all. Thus it came to carry out transactions to the loss of the common funds but to the profit of all the master woollen merchants. It even helped the masters with any available funds by financing them. Again, at its own expense, it introduced new manufactures or called in foreign workmen. Later on it even possessed its own ships for the transport of the merchandise which it imported or exported. It acted like a trust or cartel.

Still with a view to equalizing matters between masters, the cornering of the supply of labour was forbidden, and not only was it forbidden to tempt away a rival's workmen by the offer of a higher wage,^[57] but as a rule a man might not keep more apprentices than others, and the spirit of equality was carried to such lengths on this point that at Paris,^[58] among the leather-dressers, no master who employed three or more workmen might refuse to give up one of them to any fellow-master who had in hand a pressing piece of work and only one, or no, *valet* to execute it.

For the same reason a workman might not complete work begun by another man and taken away from him. Even the doctors at Florence might not undertake the cure of a patient who had already been attended by a colleague; but this rule was repealed, no doubt because it was dangerous to the patients.^[59]

Again, it was forbidden to monopolize customers, to invite into your own shop the people who had stopped before a neighbour's display of goods, to call in the passers-by, or to send a piece of cloth on approbation to a customer's house.^[60] All individual advertisement was looked on as tending to the detriment of others. The Florentine innkeeper who gave wine or food to a stranger with the object of attracting him to his hostelry was liable to a fine.^[61] Equally open to punishment was the merchant who obtained possession of another man's shop by offering the landlord a higher rent. Any bonus offered to a buyer was considered an unlawful and dishonest bait.

The formation within the guild of a separate league for the sale of goods at a rebate was prohibited; prices, conditions of payment, the rate of discount, and the hours of labour in the workshops were the same for all members.

Privileges and charges had to be the same for all masters, even when the masters were women.

One feels that there was a desire to unite the masters into one large family. So true was this that, in commercial matters, not only was father responsible for son, brother for brother, and uncle for nephew, not only were the ties of unity strengthened at regular intervals by guild feasts and banquets, but the ordinary dryness of the statutes was redeemed by rules of real brotherhood. The merchant or craftsman found in his craft guild security in times of trouble, monetary help in times of poverty, and medical assistance in case of illness. At Florence the carpenters and masons had their own hospital. When a member died, shops were shut, every one attended his funeral, and masses were said for his soul. In short, within a single guild all rivals were also *confrères* in the full and beautiful sense which the word has now lost.

These rules of brotherhood were often accompanied by moral and religious rules; the guild watched over the good conduct and good name of its members. To be proconsul in the *Arte* of judges and lawyers at Florence, a man had to be respected for his piety, his good reputation, his pure life, and proven honesty; he must be faithful and devoted to the Holy Roman Church, sound in body and mind, and born in lawful wedlock. To be received as a master, it was necessary almost everywhere to make a profession of the Catholic faith and to take the oath, in order that heretics such as the Patarini and Albigenses might be kept out. Punishments were inflicted on blasphemers, players of games of chance, and even usurers. It was obligatory to stop work on Sundays and holidays, and to take part with great pomp and banners unfurled in the feasts of the patron saint of the town and of the guild, not to mention a host of other saints of whom a list was given. The statutes often begin by enumerating the alms it was thought necessary to bestow on certain monasteries and works of mercy and instruction which they promised to support out of their funds.^[62]

But in these works the guild was often duplicated and supplemented by another institution connected with it—the fraternity.

The fraternity appears to have been anterior to the trade association in some places;^[63] but whether older or younger it remained closely united with it.

Born in the shadow of the sanctuary, it had aims that were fundamentally religious and charitable; it was always under the tutelage of a saint, who, on account of some incident taken from his mortal life, became the patron of the corresponding trade. Thus, St. Éloi was patron of the goldsmiths, St. Vincent of the vinegrowers, St. Fiacre of the gardeners, St. Blaise of the masons, St. Crespin of the shoemakers, St. Julien of the village fiddlers, etc. Every fraternity had its appointed church, and, in this church, a chapel dedicated to its heavenly protector, in which candles or lamps were kept burning. It celebrated an annual festival which generally ended with a merry feast or “*frairie*,” as it was still called in the days of La Fontaine.^[64] It joined in processions and shared in the election of church-wardens.

Apart from the obligatory assistance at certain offices and at the funerals of its members, the fraternity owned a *chest*, that is to say, a fund maintained out of the subscriptions and voluntary donations of the members, as well as by the fines which they incurred. Of these funds, collected from various sources, part was given to the poor, to the hospitals, and to the expenses of worship. Thus at Rennes the fraternity of bakers ordained that in every batch of bread one loaf of fair size should be set apart, called the *tourteau-Dieu*, which brings to mind the portion for God or the poor which it was the custom to reserve when the king’s cakes were distributed. In Alsace, again, in the bakers’ fraternities, strict by-laws regulated the treatment of the sick in hospital;^[65] they were to be given confession, communion, a clean bed, and with every meal a jug of wine, sufficient bread, a good basin of soup, meat, eggs, or fish; and all were to be treated alike.

The chest served also for supplying dowries to the poor girls of the fraternity, which, it will be seen, very much resembled a friendly society, but which, in addition, sometimes took upon itself powers of arbitration, as in the case of the furriers of Lyons.^[66] Sometimes the fraternity coincided with the guild—that is, all the members of the latter, including the journeymen, took part in it; more often, however, it was merely an affiliated institution, and membership was optional. It is curious to find that it was not looked on with much favour by the higher ecclesiastics or by royalty,^[67] perhaps because, not having the defence of trade interests as its object, it attempted to dictate in Church matters and was concerned with politics;

perhaps also because it increased the number of guild banquets which easily degenerated into orgies and brawls.

This leads us to the relation between the guilds and the public authorities, and to the part which they played in the political life of the Middle Ages.

3. The guilds necessarily came into relation with the authorities; they were far from being absolutely sovereign communities, unrelated to the society around them. They retained ties of dependence which reminded them that their emancipation was both recent and incomplete.

In the first place it must not be forgotten that in most cases they had extorted or bought from the lord their earliest privileges. According to the feudal conception, the right to work was a concession which he granted or refused at will, and it followed that he kept the prerogatives of supervising and regulating the guilds, whose existence he sanctioned and protected. Thus at Rouen, towards the end of the twelfth century, Henry II., King of England and Duke of Normandy, sanctioned an association founded by the tanners, with its customs and monopolies, giving as his reason for so doing, the services which this industry rendered him. At Étampes, at the beginning of the thirteenth century, Philip Augustus of France made known “to all those, present and future, who should read these letters” that he permitted the weavers of linen and napery to organize as they chose, and that he exempted them from all obligations towards himself, except the payment of the market toll, military service, and a fine in case of bloodshed.^[68] He did this, he said, for the love of God, which does not mean that he did it gratis; for in return for their freedom these craftsmen had to pay the king twenty pounds a year.

The lords maintained their authority everywhere by exacting payment for the favours they granted. They did not, however, always exercise this authority directly, but often delegated it to their great officers. The Parisian guilds were under the orders of the provost of Paris, who was the king’s agent and police magistrate; and traces are to be found of the time when craftsmen, living on the lands of the lord, were grouped under the direction of a headman nominated by him. In those days the nobles, who divided between themselves the domestic services of his house, naturally kept a firm hand over the craftsmen whose duties were allied to their own. Thus at

Troyes, capital of the Court of Champagne, the bakers were under his *grand panetier*, the tapestry-makers and *huchiers* under his *grand chambrier*, the saddlers under the constable, etc., and a similar organization was to be found in every feudal court. At Rome, every guild had at its head a cardinal, who was its protector and superintendent. But by degrees the power of these dignitaries became nominal, till it was reduced to being merely honorary and lucrative. They contented themselves with the revenues brought in by their duties, and with certain privileges attached to them. They gave or sold the rights which their titles conferred on them, to some private individual, usually to the master of the guild, who, under the name of “master of the craft,” really held the power.

In the free communities and in the free towns which had become collective lordships the control, superintendence, and direction of the crafts passed, by a natural transference of power, to the municipal magistrates. There were thus (and nothing was more common in the Middle Ages than these ill-defined situations) rivalries and struggles for jurisdiction between the various authorities, from which the guilds were never free.^[69]

The very fact that they had to reckon with neighbouring and superior powers taught them to understand that the possession of political rights was a means of defending their economic interests, an indispensable condition in the guidance of public affairs to their own advantage. Accordingly, directly the towns freed themselves, the guilds joined forces with all the lower classes against lay or ecclesiastical feudalism. They took an honourable part in the insurrection of the Communes, and took their share also in the spoils of victory. They won important liberties, and as each guild formed a sort of little city in which the members discussed, deliberated, and voted, a miniature republic in which they received their civic education, they quickly acquired an important place in the struggle of parties and brought their influence to bear on the government.

But the complexity of the situation demands a double distinction. The political influence of the guilds varied according to two main factors, the degree of independence of the towns in which they existed, and the nature of the crafts of which they were composed.

With regard to freedom, the towns ranged between two extremes. There were those in which a power external to the burgesses (king, lord, pope, bishop, abbot) remained full of life, active, and capable of making itself respected. Such was the case in France, in England, and for a long time in Rome. There were others, on the contrary, in which the burgesses almost eliminated every element foreign to their class; in which they absorbed the wealth and jurisdiction of the bishop; in which they subdued the nobles and forced them either to give up interfering or to become plebeians by joining the guilds; in which they created real republics with their own constitution, budget, army, and mint, all the dangers and all the prerogatives of practically complete sovereignty. Such was the case in Florence, Venice, Ghent, Strasburg, and in the imperial towns, which had nothing to fear from the impotent or distant phantoms who claimed to be the successors to Caesar and Charlemagne.

If they lived under the domination of an energetic and neighbouring power, the guilds only took a secondary place, and this is perhaps the reason why it has been possible for the greater number of French historians to leave them in the background; but they became powers of the first order if they developed in surroundings where their expansion was not interfered with.

Let us begin by considering them in those places where they were held firmly in check. The authority which weighed on them was exerted in several directions at which we will glance.

In the first place, this authority attempted to regulate the conditions of labour, to fix its hours and its price. It forbade work on certain days, though it is true that it consented to many exceptions. At Rome, where religious festivals were naturally very numerous, the Pope authorized the wine-sellers and innkeepers to serve travellers, though not inhabitants of the town, on such days; the farriers to shoe horses on condition that they did not make new shoes; the barbers to dress wounds but not to shave; the grocers and fruiterers to open their shops without displaying their goods; the butchers to hang their meat, so long as it was covered up; the shopkeepers in general to leave the doors of their shops half open for the sake of ventilation.^[70] In other words, trade was allowed *sub rosa*. The intervention of the lord in these matters was so habitual that it caused no surprise. John II. of France, in his famous ordinance of 1355, proclaimed in 227 articles a

maximum tariff for merchants' goods and the wages of the workmen. The Statute of Labourers in England in 1349 had similar objects.

The authorities interfered also in judicial matters. When there was a dispute between two guilds (and this, unfortunately, was of frequent occurrence) the case came under the jurisdiction of the lordly, communal, or royal tribunal; in Paris the matter went before the king's provost, and in case of appeal, to the *Parlement*. But if the trade was held in fee, *i.e.* if it was under the protection of a master who held it in fee, it was he who settled the difference.

Thus long wars were waged between barbers and surgeons; at first united in one body, they wished later on to be separated; but the surgeons wanted to keep the monopoly of surgical operations, and against this the barbers protested. Now the head of the trade was the king's barber and first *valet de chambre*; and in 1372 he inspired an ordinance, which reserved to the barbers the right to "administer plaisters, unguents, and other medicines suitable and necessary for curing and healing all manner of boils, swellings, abscesses, and open wounds." This, however, did not prevent the quarrel from lasting several centuries longer.^[71]

There were many other causes which led to lawsuits.^[72] The guild might go to law with individuals over the possession of a house or a field, or have difficulties with the tax-collector. Often, too, the causes of dispute lay within itself and arose between officers and masters, who claimed to have been unjustly accused of wrong-doing. In all these cases it was invariably the rule to apply to the head of the craft or to the representatives of the competent authority (provost or seneschal).

In fiscal matters, the guild had obligations from which it could not escape. In the first place, the right to work, collectively and individually, had to be paid for. The first article of the statutes of the napery-weavers of Paris was couched in those terms: "No man may be napery-weaver at Paris unless he buys the right from the king." By the application of the same principle the community had to pay a royalty to get its statutes approved, although this did not always exempt a member from having to pay down a sum in advance for permission to open a shop or hang out a sign.^[73] Usually the *tonlieu* and the *hauban* were paid to the lord, though it must be clearly

understood that the king and town might take his place; the *tonlieu*, which was paid in money, was a sum levied on the sale of merchandise in proportion to the amount sold; the *hauban*, which was a payment in kind, [74] exempted those who paid it from the other charges falling on the craft; it seems to have been a privilege which could be bought, or at least a sort of mutual contract or exchange between payer and paid. But the lord, apart from what he thus put straight into his coffers, levied other indirect charges on commerce and industry. If he had granted to a guild (the river merchants, for example) the river tolls, he reserved the right of free passage for everything destined for his own use. He kept for himself a certain number of lucrative monopolies. [75] He had, in the fairs and markets which he alone could authorize, the right of first choice and purchase. He demanded payment for his stamp on the weights and measures; he taxed everything which entered or left his territory; he claimed duties on the weight of goods, and on the inspection of goods and of inns. Often these rights of lordship were transferred by him to one of his officers, whose services he remunerated in this way. One curious example will suffice. [76] The Paris executioner was a great personage in those days; he walked the streets clothed in red and yellow, and was exceedingly busy, for he had to keep the gibbet at Mont Lançon supplied with humanity—and it had room for twenty-four victims; not to mention the pillories, where the minor offenders were exhibited, and the scaffolds on which the worst criminals were executed. To recompense him for his grim services he had been accorded important privileges, amongst others the right of *havage*; that is to say, of every load of grain taken to the corn market he claimed as much as could be held in the hollow of the hand or in a wooden spoon of the same capacity. Besides this, he collected a toll on the Petit-Pont, duties on the sale of fish and watercress, on the hire of the fish stalls surrounding the pillory, and a fine of twopence-halfpenny per head on pigs found straying in the streets.

These were by no means all the charges imposed on the guilds. They had further to guarantee certain public services. To the building guilds was assigned the provision of safeguards against fire; to the doctors' and barber-surgeons' guilds, the care of the sick poor and of the hospitals; to all, or nearly all, the assessment of certain taxes, the policing of the streets, and sometimes the defence of the ramparts. In Paris, where the nights were as unsafe as they were ill-lit, every guild in turn furnished, according to its

importance, a certain number of men to patrol the streets and keep guard, from the ringing of curfew to the break of day, when the sergeant of the Châtelet sounded the end of the watch. The same custom was to be found in most of the free towns. A few guilds only were exempt from keeping guard, either on account of their finances or because it was considered that they had to render other services. Such, for example, were the goldsmiths, archers, haberdashers, judges, doctors, professors, etc.

On the other hand, some guilds were under special regulations, *e.g.* the provision guilds. The fear of scarcity, owing to the frequency of bad harvests or war and also to the permanent difficulty of communication and transport, was a perpetual menace to the towns. Their policy in this matter was nearly always that of a besieged city. The consequent legislation was, above all, communal, and was inspired by two fundamental principles: first, that on the Commune devolved the duty of seeing that the inhabitants were healthy and well fed; secondly, that the Commune, when it was short of money, had a convenient resource in the taxation of the necessities of daily life.

Thus the Commune wanted, above all, an abundance of cheap provisions; it was anxious to avoid food crises which are generally the precursors of riots and even revolutions; and, without theorizing (nobody troubled much about theories in those days) they practised what a historian has called a sort of “municipal socialism.”^[77] The Commune did not confine itself to checking the exportation of cattle or of wheat by strict prohibitions, to encouraging imports by giving bonuses, and forbidding speculations and monopolies under pain of severe punishments; it instituted the public control of grain, owned its own mills and ovens, filled public granaries at harvest time, and emptied them when prices were high; and it did all this with no idea of gain, but in order that the poor should not be condemned to die of hunger when times were bad. Sometimes the Commune owned fisheries and fish-markets (Rome); it often held the monopoly of salt (Florence); sometimes it forbade a family to keep more wine in the cellar than was needed, in order that the possibility of using it should not be confined to the rich. It was with this object in view that in the town of Pistoria it was decreed that every owner of sheep should supply at least twenty lambs from every hundred sheep, and in the district of Florence, that every peasant should plant so many fruit trees to the acre.

When the Commune did not go so far as to take on itself the supply of actual necessities, it achieved the same end through the medium of the provision trades. This is why the millers were the objects of endless regulations intended to protect from fraud those who gave them their grain to grind. This is why the bakers were subjected to a municipal tariff, were closely watched, and were sometimes obliged to put up with the competition of outside bakers. This is why the merchants sold vegetables, fruits, oil, and wine at prices fixed by special magistrates. Besides this perfectly legitimate endeavour to guarantee the necessities of life to every one as far as possible, there was the very similar and no less justifiable attempt to guarantee the good quality of provisions exposed for sale. The *talmelier*, or baker, might not offer for sale bread that was badly baked or rat-eaten.^[78] Provisions for market were submitted to a daily and rigorous examination. The butchers at Poitiers had to undergo a physical and moral examination to make sure that they were neither scrofulous, nor scurfy, nor foul of breath, and that they were not under excommunication. There was the curious office of the *langueyeurs de porc*, who had to examine pigs' tongues to see if they showed any signs of measles or leprosy.

Hygiene, little studied in those days, gave birth to several precautionary measures. Indeed, it was necessary to study it when epidemics were abroad, and epidemics were both frequent and deadly. The private slaughter-houses, and still more those of the Butchers' Guild, were periodically inspected and moved out of the towns into the suburbs. The numerous rules and dues which were imposed on this rich guild, which, with its slaughterers and knackers, formed a formidable and powerful company, appear to have been balanced by considerable privileges. At Paris, for instance, the Grande Boucherie, as it was called, possessed a monopoly extending to the suburbs, by which the masters, reduced to a small number who succeeded one another from father to son, had the sole right of selling or buying live animals or meat, as well as sea and fresh-water fish.

The constant relations between the craft guilds and the authorities gave them a place of their own; but, besides this, they led to the creation of guilds of an entirely official character. The guilds of the measurers (*mesureurs* and *jaugeurs*), who verified the capacity of earthenware jars, barrels, bushels, etc., or of the criers (*crieurs*), who cried in the streets the contents of their jugs—wine for instance—and offered them to the passers-

by to taste,^[79] were in fact combinations of government officials. These trades were peculiar in this respect, that those who plied them were in receipt of a salary out of their official takings, and that they might not exceed a certain number; and also that they held a monopoly, since every one was obliged to employ them.

Through them we can pass to the second aspect of the communal or lordly legislation which regulated the provision trades, viz. the fiscal aspect.

It was no longer in the interests of the consumer that the Commune kept, for instance, the monopoly of salt, buying as cheaply and selling as dearly as possible. It was for its own benefit that it instituted customs, dues, and tolls, levied on food-stuffs, which therefore fell more heavily on the poor than on the rich; their variation was simple—when the poorer classes had their way the dues went down, when the rich were in power they went up. Things are just the same nowadays, in spite of the fine phrases with which the fluctuations of commercial policy in great states are disguised. But since, in speaking of guilds, we have been led to speak of social classes, we must now describe their classification in those centres where the system was most fully developed,—that is where guilds, instead of being subjects, were ruling powers.

It naturally follows that their relations with the authorities were greatly modified in the towns in which they created, or were themselves, the authorities. Such was the case at Florence, where, from the year 1293, twenty-one *Arti* or unions of craft guilds nominated the Priors and the other supreme magistrates of the city; at Strasburg, where, during the fourteenth century, the City Council was formed from the delegates of twenty-five *Zünfte*, having the same constitution as the *Arti* of Florence; at Ghent, where at about the time of James van Artevelde the three *members*^[80] of the State were formed by the weavers, the fullers, and the “small” crafts; at Boulogne, Siena, Bruges, Zurich, Liége, Spire, Worms, Ulm, Mayence, Augsburg, Cologne, etc.; where within sixty years similar revolutions occurred, putting the power into the hands of the guilds.

In those days the guilds were the units for elections, for the militia, and for taxation; they judged their dependents without appeal; they expelled, or reduced to the rank of passive citizens, those who were not inscribed on

their registers; they decided questions of taxation, peace, and war, and directed the policy of their town, whose internal and even external history is essentially one with their own.

In these little corporate republics, the principal question became that of deciding how the different groups of guilds should apportion the government among themselves. But first, on what principle were the guilds classified? Was it according to the vital importance of the needs they existed to supply? This would seem reasonable enough, but apparently it was nothing of the kind, or else the provision trades would have been in the first rank. *Primum vivere*, said the old adage, and to live it is necessary to eat and drink, more necessary even than to be housed and clothed, and to trade, and certainly more necessary than to draw up notaries' deeds or go to law. Now the crafts which provided for the inner man, for Messer Gaster, as Rabelais calls him (butchers, wine merchants, bakers), were almost everywhere placed in the second or third rank; the only exceptions were the grocer-druggists, and it will be seen why this was so.

We must look elsewhere, then, for the reasons which determined the order of social importance assigned to the guilds by public opinion in the Middle Ages. It appears that this classification was based on three different principles which I will call the *aristocratic*, the *plutocratic*, and the *historical*; that is to say, the status of a profession seems to have depended on whether it was more or less *honourable*, *lucrative*, or *ancient*.^[81]

The place of honour was reserved for those crafts in which brainwork took precedence over manual work. They were regarded as more honourable evidently because, in the dualistic conception which governed Christian societies, spirit was placed above matter, the intellectual above the animal part of man. It was for this reason that the professions which demanded brainwork alone were called from that time onwards "liberal," as opposed to manual labour which was called "servile," an expression which the Catholic Church has piously preserved to our own days.

At Montpellier, Boulogne, Paris, wherever universities existed (which were themselves in effect "guilds" or corporations, and were practically federations of advanced schools, as we see from their jurisdiction, their statutes, their dependents and agents whom they possessed in the parchment

makers and booksellers, and in the title of rector which their head shared with many other officers elected by the guilds), the professors of the different Faculties enjoyed very extensive privileges, and had the proud right of walking, like the nobles, on the wall side of the pavement. At Florence, where the division of the guilds into *greater*, *intermediate*, and *lesser* bore witness to their hierarchy before all the world, as there was no university, the judges and notaries took precedence; the judges, who were doctors of law, styled themselves *Messer*, like the knights; the notaries called themselves simply *ser*, but this served to distinguish them from the commoners. The proconsul, or head of the corporation, went out robed in scarlet, and was always escorted by two gold-laced apparitors. In the first rank, too, were the doctors, but the barber-surgeons, simply because they performed operations, were relegated to a lower status; artists, in spite of being often ranked among craftsmen, gradually obtained social recognition.

Although architects were ranked with carpenters, and image makers and sculptors were often ranked with stonecutters, in many places the goldsmiths, who included chasers, moulders, enamellers, and statuaries, took a high rank. At Paris they were classed among the *Six Guilds*, which, when the king, the queen, or the papal legate made a solemn entry into the city, enjoyed the coveted honour of carrying the blue canopy under which the august personage advanced. At Florence they belonged—as a sub-order it is true—to the *speziali* (apothecaries), which also included the painters and colour-merchants.

While the artists, when they were ranked among the great guilds, only took a secondary and subsidiary position, the bankers, money-changers, wholesale traders, the great manufacturers (woollen merchants, haberdashers, or furriers) lorded it over the others with their wealth and splendour. This was, moreover, to a certain extent, homage rendered to brains and education. The exchange and the bank, where it was necessary to make rapid and complicated calculations, to transact business at a distance, and to do accounts in differing coinages (and sometimes, even, without coin), demanded varied knowledge and a certain mental agility.

Wholesale commerce, which henceforward became international, involved the power of taking long views, quickness in grasping a situation, general aptitude, and, in fact, qualities of mind and character which are not given to

all.^[82] The apothecaries had an advantage in that they sold spices which had come from distant lands. The trade in luxuries (furs and silks) was also concerned with foreign articles and took for granted a certain *savoir-faire*. “Great” industry, for its part, demanded of those who carried it on, a talent for setting in motion, directing, and co-ordinating the complicated machinery of affairs or of men, and this gift of organization is far from common.

However, it is easy to see that in the priority accorded to the great industrial and commercial guilds, the second of the principles we have mentioned was at work, namely, that a craft was considered more or less honourable according to the wealth it yielded. Did the goldsmiths owe the respect which was shown them more to their artistic skill than to the fact that they were in the habit of handling jewels and precious metals? It would be difficult to say. But it is very certain that the bankers, money-changers, manufacturers of cloth and silk, the dealers in furs and in spices, and the haberdashers, who sold everything, would not have been among the most favoured, if they had not also been among the most wealthy. Thanks to the crowns, ducats, and florins at their command, they could indulge in a sumptuous style of living and rival in luxury the lords of the land.

Like the latter they were in command of troops of men; in their way they were captains; they united the prestige of power with that of wealth. It was undoubtedly for this reason that the butchers, who had numerous assistants working under their orders and who made considerable profits, sometimes managed in Paris to be included among the *Six Guilds*, and at Florence headed the list of Intermediate Guilds. It was for a similar reason that in the same town the innkeepers and the stone and wood merchants, classed among the Lesser Guilds, were called *grosse*;^[83] while the small tavern-keepers and those who retailed wood were not considered worthy of such a distinction.

The third principle—the historical—was active in its turn. The later crafts, recently specialized, suffered from the competition of work done in the home from which they were imperfectly separated. If the butchers did not succeed in taking their place definitely among the Six Guilds of Paris, or in becoming affiliated to the Greater Guilds of Florence, it is probably because, for many years, the people were their own butchers, and the fatted

pig or calf was killed at home; in other words because their field of action was an integral part of domestic industry. The same may be said of bakers and bread-makers; many peasants had their own oven in which they baked their bread,^[84] and they held stubbornly to this right which they sometimes insisted on having solemnly recognized. There is no need for further explanations to make us understand why the bakers and bread-makers at Florence came last on the list of the twenty-one official guilds. It is useless to attribute their comparative disrepute^[85] to the supposed ease with which they could defraud their clients in the weight and quality of the bread they sold. Unfortunately, the same suspicions might have been applied to many others. Can it be forgotten that, at Rome, the fishmongers were compelled to use scales with holes in them like skimmers, so that the water could run off and not add weight unfairly!

Thus on account of one or another of these three principles, “small” crafts and “small” commerce were far from attaining the level to which the great guilds rose; and in those days the organized world of labour was divided, sometimes into three groups, as at Florence, Perpignan,^[86] or Ghent, sometimes into two, as at Zurich, and sometimes into a greater number. It is impossible to go into the details of the prolonged struggles between these unequal groups, of their efforts to maintain the balance among themselves, or to rule one over another, or of the alternate victories and defeats which they sustained. Nearly two centuries—from the middle of the thirteenth to the middle of the fifteenth—are filled with the unrest caused by these quarrels which broke out in two or three hundred towns at once, and which, in view of the absence of dependable information concerning them, appear at a distance utterly chaotic. All we can do is to indicate the development which followed.^[87]

Immediately upon the victory of the lower classes over lay and ecclesiastical feudalism—the first act accomplished by the communal revolution—the power passed to the rich burgesses. Aristocracy of money naturally succeeded aristocracy of birth. This plutocracy was represented by the great merchant guilds, whose rise was soon followed by that of the great industrial guilds, destined in some cases to supplant them, but more often to remain their faithful allies. At Florence, the *Arte di Calimala* which included bankers and finishers and sellers of foreign cloth, was at first the

most important of all; it was later dethroned by the *Arte della Lana*, composed of cloth manufacturers, but both were included in the federation of the Greater Guilds, which kept in its own hands the direction of affairs. At Brussels and at Louvain seven families long furnished the aldermen; at Ghent thirty-nine *nouveaux riches*, and at Amiens an oligarchy of several families, monopolized the direction of communal affairs. Everywhere wool-merchants, money-changers, and goldsmiths became important in proportion to their wealth, not to their numbers. At Beauvais of thirteen “peers” who constituted the municipal administration seven were nominated by one guild—that of the money-changers; the other twenty-one guilds nominated six.

In short, what happened in the free towns was what usually happens in such a case, namely what happened in France in the nineteenth century. The victorious bourgeoisie wanted to keep to themselves the spoils of victory; they attempted to keep the lower classes—their allies of yesterday—in a precarious and subordinate position, and not only excluded them from the magistracy, but stamped all politics with a strongly plutocratic character. They sold to or reserved for themselves all lucrative posts; they administered the finances according to their own ideas without giving any account of their actions; they multiplied wars to kill inconvenient competition, or to open up new outlets for their commerce. As all this entailed enormous expense they resorted to loans which brought in high and steady interest, and to taxes on objects of daily consumption—reactionary taxes which demanded an equal sum, and therefore an unequal sacrifice, from rich and poor. They despised and oppressed the small craftsmen and the small retailers; they tried to limit or to suppress their right to combine or hold public meetings, and of course they were still harder on all that labouring population which was not admitted to the guilds, or which at least was only admitted in a subject capacity. We have already seen ([Chapter II. Z](#)) how they organized the first form of capitalist supremacy.

The second act of the revolution now began. The town population divided itself into two separate groups, which soon became two opposing parties: the rich and the poor; the *fat* and the *lean*; the great and the small; the good and the bad, as the chroniclers, who usually belonged to the leisured class, said with a certain savage naïveté. The crafts which claimed to be honourable were set in opposition to those which were considered low and

inferior, and were supported and urged on by the masses, who, without rights or possessions, lived from day to day by hiring out their labour.

The fight was complicated by the capricious intervention of the nobles or clergy who, sometimes by a natural affinity, joined the aristocracy of wealth; sometimes, in the desire to get the better of the great burgesses who kept them out of the government, allied themselves to the lower classes and made the balance turn in their favour.

At certain times (this also is a law of history) the lower classes, in despair at never getting anything out of a selfish and implacable bourgeoisie, put their confidence in some soldier of fortune, some ephemeral dictator, some “tyrant” in the Greek sense, who defeated their enemies and secured them a little well-being and consideration. On other occasions it was the rich burgesses who, frightened by the claims of the people, called on some foreign or military power to reduce the populace to order. Thus, by separate roads, the republics and towns were travelling towards monarchy.

Before they reached this point, however, the “small” crafts had their days of supremacy, which were characterized by a peaceful policy, fiscal reforms, and the effort to make taxation just through the progressive taxation of incomes. They raised with themselves, out of the darkness and degradation into which they had fallen, the ragged and barefooted labourers (carders, porters, *blue-nails*, as the Flemish labouring classes were called in derision), proletarians, wage-slaves, who in their turn desired political rights, a legal status in the city, a rank among the guilds, a share in the direction of the Commune.

In the year 1378 this movement seems to have been at its height.^[88] A wave of revolution passed over Europe at that time, and at Florence as at Ghent, at Siena as at Rouen, in Paris as in London, for several years, months, and sometimes weeks, Ciompi, Chaperons blancs, Maillotins, etc., made the ruling classes tremble for fear of union on the part of all this riff-raff. As a Flemish chronicler expresses it: “An extraordinary thing was to be seen in those days; the common people gained the supremacy.”

Their victory was short-lived. All the conservative forces combined against the intruders. The attempt, not to destroy but to reform and enlarge guild administration, to make the whole world of labour enter into it, was shown

to be powerless; perhaps because the workmen and men of the “small” crafts did not clearly perceive what could give them freedom, or know how to unite into a cohesive body; perhaps, also, because the idea of hierarchy was still too strongly rooted in society; finally, perhaps because there was a fundamental contradiction between the administration of the closed guilds which stood for privilege, and the ideas of equality which tried to force an entrance into them.

Whatever may have been the cause, from this culmination they descended again towards their starting-point, the supremacy of money and of the great commercial and industrial guilds which no longer allowed their power to be shared by the Lesser Guilds. However, they stopped half-way. The preponderance was not restored either to the prelates or to the lords, neither did it remain with the lower classes. It was too late for the great, too early for the small. It remained and was consolidated in the hands of two powers, each of which relied on the other—the middle classes and the monarchy, the latter being represented in the great states by royalty and elsewhere by princes who might be *condottieri* or upstart bankers. Florence went to sleep under the enervating and corrupt rule of the Medicis. An ever-narrowing merchant oligarchy governed Genoa, Venice, and the towns of the Teutonic Hanse. Flanders was quiet under the authority of the Dukes of Burgundy and of its opulent guilds, to which craftsmen were no longer admitted. Towards the middle of the fifteenth century the great epoch of the free towns was over, and the glory of the guilds went with them.

Nevertheless, while their restless and busy life lasted they had their days of greatness, heroism, and glory. Sometimes, as at Courtrai, they gained victories over armoured knighthood. They did better. In the neighbourhood of their cities they built roads, canals, and seaports. Within the city walls they gave a splendid impetus to architecture. They built monumental halls like those of Bruges, fountains, hospitals, and public promenades; they erected churches which were popular palaces, town halls which were carved like fine lace and flanked by towers and belfries from which the Tocsin called the citizens to arms or to the assembly. They had pride and patriotism, and also desired to honour the profession which was for each of them a state within the state. They contended for the honour of giving a picture, a statue, or a tabernacle to the buildings which thus became the incarnation of the soul of a whole people. The traveller who visits Florence

admires the bas-reliefs half-way up the Campanile attributed to Giotto, which represent the origin of arts and crafts in the earliest ages of mankind; it is the stamp and blazonry of the working classes on their common work. Guilds have passed away, as all human institutions must pass, imperfect and frail in their very nature; but before their passing they realized a great part of their high ideal, which, in its many aspects, I have tried to make plain.

CHAPTER V

THE MERITS AND DEFECTS OF THE GUILD SYSTEM

We are now in a position to estimate the merits and defects of the guilds before they fell into decadence and decrepitude.

It is necessary to consider separately the two types of guilds which we have described; for although they had characteristics in common, they present more differences than resemblances. Let us see, then, how each acted on production and sale, and on producers and sellers.

The guild system in the “small” crafts was at once a guarantee of, and a check on, production and sale. It endeavoured to insure and guard the consumer against adulteration, falsification, and dishonesty; to stamp goods with the character of finish, solidity, and relative perfection, thus giving to them something personal and therefore artistic; to keep within reasonable limits the profits of the manufacturer, who was also the merchant. On the other hand, the manufacturer only dealt with small quantities, was content with a very restricted clientèle, and aimed at nothing beyond the local market without much chance of either making a fortune or being ruined. Production thus had but little vigour, and what was more serious still, its plasticity was interfered with. The statutes which regulated it resembled feudal castles, which protected but imprisoned those whom they sheltered. The manufacturer, hampered by the restrictions which surrounded him, could make no progress. Industry, bound down by directions which were too precise, too detailed, too authoritative, could not adapt itself to the many caprices of fashion or to the changes of taste which are the very life of human civilizations; its forms were set, its methods petrified. Invention could not have free play; it was accused of outraging healthy tradition; it was considered dangerous to set out to create anything new. In Florence in 1286^[89] a cooper complained of being boycotted by his guild because in making his barrels he bent his staves by means of water, which was, he said, an advantage to all who bought them. At Paris^[90] it was forbidden to

mould seals with letters engraved on them; apparently the counterfeiting of seals and coins was feared. Who knows, however, whether this prohibition did not retard by a hundred years the invention of printing, to which—when a method of making them movable had been discovered—these engraved letters gave birth?

With regard to producers and sellers, we may go back to the simile of the strong castle. An instrument of defence for those who were within the guild easily degenerated into one of tyranny for those who were without. It was the centre of an ardent and exclusive corporate spirit. It resolved all the individual egoisms of its members into a great collective egoism. It is only necessary to recall the quarrels with neighbouring guilds, and the hostility shown towards workers who were not enrolled. To the masters of which it was composed it ensured at least a modest and honest livelihood, the just remuneration of labour, or, one might almost say, to use a modern formula, the whole product of labour. It even assured a refuge against misery and distress, the certainty of assistance in times of trouble, illness, old age, or misfortune. The fishermen of Arles were bound to give one another mutual assistance in stormy weather;^[91] in Paris among the goldsmiths one shop remained open every Sunday,^[92] and the money from the sales was divided among the needy of the town and the widows and sick of the guild. Fines were often used in this way. The guild sometimes even gave to the travelling workman who found himself at the end of his resources the means of going in search of work elsewhere. The guild secured to its members other advantages no less coveted: a good position in public processions and ceremonies when state dress was worn, or even at the melancholy solemnities of the public executions;^[93] at Lyons, at the time of the feast of St. John, two furriers with lighted torches paraded to the church door, mounted on two white mules, and at the entrance were received by the cross and the canons.^[94] But more than all this, the guild was not only a great family for those who belonged to it, it was a little self-contained city, a diminutive commune which the members administered at will, and thereby prepared themselves for civic life and its duties; it was a training-ground for independent, well-informed, active citizens, who, with their parliamentary traditions, republican sentiments, and democratic hopes, formed, with their fellow-craftsmen of other crafts, a proud, practical, and

courageous middle-class, as anxious to defend their town from outsiders as to beautify and adorn it.

Journeymen and apprentices shared in these honourable privileges, and did not suffer unduly from the inequality imposed on them, tempered as it was by simplicity of manners and by the thought that it was only temporary.

The guilds of “great” commerce and of “great” industry also had their fine sense of honour, their complicated regulations, their exclusive spirit. But what distinguished them was the fact that their capital was large and that they dealt with a vast market; consequently, while the former were busy with exchange and transport, traversed land and sea with their convoys, and constituted themselves the carriers and brokers of the world, the latter intensified production; they possessed workshops which for those days were very large, and, in order to lower their general expenses, were interested in new inventions, and willingly adopted mechanical methods; at Florence, for example, metallic carders, which were still prohibited in Great Britain in 1765, were already in use under the guild system. Banking, commercial and maritime law, the science of finance, the art of production on a large scale and of securing international relations certainly owe a great deal to these merchants and manufacturers, who were the precursors of modern capitalists.

The members of these powerful guilds amassed enormous fortunes, built themselves superb palaces, became counsellors and money-lenders to kings, towns, or popes. Sometimes they were too adventurous in their speculations and their bankruptcies made a wide stir. Accustomed to affairs of the highest importance and to court intrigues, they became diplomats, clever politicians, who willingly took their share in government; nor was it by chance that the first man in France who tried to reform the kingdom according to the views of the Third Estate was Étienne Marcel, provost of the richest Parisian guild. Often, however, these great burgesses were of an aristocratic spirit. In the city they opposed the rise of the lower classes, and, in their magnificent palaces, princes in fact before they were princes in name, as the Medicis became, they gradually extinguished around them the love of liberty and of republican virtues. At the same time they broke up that solidarity which was the very soul of the primitive guilds; they created a social system which perpetuated riches above and poverty below; they

enslaved and cruelly exploited the clerks and workers they employed, their attitude towards whom was no longer that of masters towards journeymen or *compagnons*, but that of lords towards dependents. In a word, they broke from the conditions which no longer sufficed for the realization of their ambitions, and they were preparing, indeed they were already developing, an organization of labour which anticipated the future. They were the agents of that profound change which slowly brought about the death of the guilds.

CHAPTER VI

EXTERNAL CAUSES OF DECAY

A body of institutions, like a living body, begins by passing through a period of formation, growth, and consolidation, after which decay inevitably follows; it becomes feeble, disintegrates, decomposes, and finally dissolves. Death is thus presented as the natural term of life with its constant wear and tear, as the necessary end of the spontaneous development peculiar to living beings. But it is also determined by the pressure of outside forces, by the action of environment. Thus the guild system held within itself elements of dissolution, and at the same time met with destructive forces from without; it declined and decayed under the combined influences of internal and external causes.

It seems fitting to begin with the external causes, since these were the most important. In an unchanging environment living beings could exist for long unchanged, but the changes ever at work without hasten changes within, from the very fact that the organism is itself at work. Thus it was that the guilds were first of all affected by the profound changes going on around them. The sphere in which they had to work was both extended and modified. We must follow out the consequences of both these changes.

1. *The Extension of the Market and its Results.*—The fifteenth century saw the formation of the great States in Europe. France, which felt herself to be a nation when she was trampled under foot by the English, was the first to become a unity, and for several centuries drew her power and her greatness from the start which she thus gained. Spain was concentrated under the authority of Ferdinand and Isabella. England, worn out after a terrible civil war, found rest under the Tudor dynasty. In Germany, which was still very divided, the Hanseatic League included twenty-four cities. Even in Italy the restless republics, ever jealous of their independence, were absorbed into larger territories and placed under a common supremacy. Everywhere the endless subdivision of the Middle Ages gave place to larger groupings, possessing fuller life and wider interests. Hence a new situation arose for the cities; among those which in every state had up till now been on an

equal footing one rose to be the capital, the others, with diminished prestige and importance, were only secondary centres. They also ceased to be islets where the people lived lives apart; from henceforward they formed an integral part of a whole which surrounded them and no longer allowed of a proud isolation; they could no longer treat their neighbours as foreigners or enemies; they found themselves bound together by the necessity of obeying the same laws and the same sovereign.

It followed that *city economy*, becoming narrow and exclusive, grew difficult and by degrees impossible.^[95] It was replaced by *national economy*. This meant that the commercial market, instead of being confined to the inhabitants of a town and its suburbs, included henceforth the province, the duchy, and by degrees the whole kingdom. Above all, it meant that the central power no longer legislated for people enclosed within a small area, but that it attempted to unify over the whole surface of a considerably enlarged territory the official language, moneys, weights and measures, as well as the regulations of industry and the judicial forms; that it suppressed as far as possible the tolls which obstructed the roads and rivers; that it carried back to the frontier the barriers which had been set up on the boundaries of every little domain; that for a localizing spirit it substituted the desire to reconcile the interests of the different regions between which it played the part of arbitrator and peacemaker.

Doubtless the economic policy adopted by the great States did not sensibly differ from that practised in the towns. A system does not disappear without bequeathing traditions and customs to its successor. National economy copied the methods of city economy. When Colbert, for instance, tried to realize for France the ideal of self-sufficiency, when for this reason he wanted to sell as much as possible and buy as little as possible abroad, to create industries which were lacking, to prevent those which existed from leaving the country, to encourage the export of manufactured goods while watching over their proper manufacture, and to hinder the import of similar goods by barricading the country with customs tariffs, he was only taking up once more and making general an old system formerly tried by Florence or Venice and adopted later by kings and ministers in France and England, by Henry IV. and notably by Richelieu. This mercantile system has been christened Colbertism, and the name will serve provided that it is known that Colbert was not its father but its godfather.

Nevertheless, in spite of the continuity of the principles which guide great governors, the mere fact that the enlarged area in which the guilds operated contained several towns whose jealousy might be measured by their rights, was a terrible blow for the guilds; each town with its narrow boundaries, finding itself completely out of harmony with the world in which it was condemned to live, had to adapt itself to the new conditions or die.

Not only, however, had the internal markets grown larger, the external market had also extended enormously, and it was no longer for the spices and gems of the Levant alone that ships and caravans set out. In the South, Vasco da Gama had discovered the route to the Indies; in the West, Christopher Columbus, while seeking those same Indies, had come upon America; in the North, Russia and Scandinavia had proved to be magnificent fields for traders to exploit. Africa, which as yet no one had dared to penetrate, was approached and the existence of Oceania suspected. Europe, in revenge for old invasions, overflowed in her turn into other continents; she expanded into distant colonies; the sun no longer set on her possessions.

The first result was a rearrangement of commercial routes, a formidable rush to the West. The Mediterranean basin, cut off from the East by the Turks, ceased to be the meeting-place of nations and the universal centre of commerce. Genoa and Florence, the mothers and glorious victims of Columbus and Amerigo Vespucci, began to decay, and the very source of their wealth was assailed by the discoveries of their children. Beneath the trappings of gold and silk that yet covered them there was left only the melancholy glory of their dying prosperity. Venice the rich, Venice the beautiful, slumbering in the fever-laden air of her canals from which the life was ebbing, slowly died in her gorgeous setting of palaces and churches and degenerated into a city of dreams, luxury, and pleasure, where the leisured and the gay came to seek the shadow of a great past and the splendours of a half-oriental civilization. Many cities, like Pisa or Siena, deserved with Bruges to be called "the dead," cut off from the ocean by the encroaching sands and from liberty by the Spanish lords of Flanders.

How could the guilds hope to escape from the consequences of misfortunes which struck at their very roots? An even graver menace threatened them. To take advantage of the new outlets, to satisfy a clientèle henceforth

scattered over the most diverse countries, it was necessary to produce more, and to produce more it was necessary to produce in a different way. Production was transformed to meet the needs of trade. Capitalism, which had hitherto been confined to a few towns, received an impetus and developed with unexpected vigour.

“Great” commerce, which spread over an immense area, created exchanges and banks, and great financial institutions for the circulation of capital; it formed great companies which undertook to exploit the resources of new countries; it accelerated transport and built up in the press a valuable instrument for the spread of information and for advertisement. In its use of credit it no longer encountered the displeasure of the Church, which, together with civil law, became reconciled to loans on interest and recognized the practice as long as the rate was moderate. Its coffers, filled with the gold and silver of the galleons which came from Mexico and Peru, gave Europe a hint of a hitherto unsuspected danger—the glut of money. Capital, too, which had accumulated in the landlords’ and merchants’ chests, took a leading part in business activities by reason of its power to command; it became a moving force.

Henceforward, as we have already seen in the case of the woollen merchants, three functions, hitherto united in the person of the small craftsman of the towns, became separated: those of the *merchant*, who bought raw material and sold finished goods; of the *manufacturer*, who possessed the appliances of labour; and of the *workman*, who wrought with his own hands. Three classes of men answer to this specialization at the present day: the *traders*, who are not producers, but act as middlemen between producer and consumer, deciding what shall be produced and concerning themselves solely with buying and selling; the *industrial capitalists*, who, at the tradesmen’s orders, direct the transformation of the raw materials entrusted to them, in workshops and with machinery which are their property; finally the *workmen*, who, mere wage-earners, carry out manual or mechanical work as they are told.

These three classes of men have different interests. The big merchants, with their bold speculations, are impatient of anything which hinders circulation: town dues, customs, tolls, differences of coinage, weights and measures, all regulations, everything, in fact, which tends to isolate towns and countries.

When Louis XI. convoked the States General in 1484, the town deputies expressed themselves in favour of the freedom of trade, which now felt strong enough to stand alone. When Henry IV., on the advice of Montchrestian and Laffemas, wanted to secure French markets to the French by increasing customs tariffs, all the guilds consulted declared themselves in favour of the project, with the exception of the mercers—"sellers of everything, makers of nothing," as they were called—thus plainly expressing the hostility of wholesale trade to the exclusive policy which had been pursued by the towns. The great traders represented a revolutionary tendency with regard to the guild system; they were its constant enemies; they ended by being its destroyers.

The manufacturers, for their part, were not averse to being protected against foreign competition; they were indeed inclined to ask for this protection. Like the guilds, they had a predilection for privilege and monopoly, but were not in agreement with them on some essential points. In order to produce much and profitably they were in need of cheap and abundant labour. Ignoring the rules of apprenticeship, they hired foreigners, peasants, women, and children; in the sixteenth century, in the town of Norwich, which from being agricultural had become industrial, children of six were employed in the factories.^[96] When they did not crowd the workers together in enormous workshops, they resorted to what sometimes goes by the equivocal name of "the domestic system," which I prefer to call "scattered manufacture." In the towns they employed men and women, who, working in their own homes, were sheltered from inquisitive eyes. Such workers were found in the suburban and country districts, in any places which were beyond the ordinary jurisdiction of wardenship and mastership. Or again, they employed labour in the hospitals, orphanages, or work-rooms of religious orders, which had escaped from the jealous supervision of the guilds. In Picardy, at certain periods, the weaver workmen thus scattered among the villages numbered 10,000.^[97] The same thing was to be found in Brittany,^[98] Normandy, and Dauphiny, in the manufacture of linen and hemp; in Velay in that of lace; in Auvergne in that of trimmings; in the Rhone valley in that of silk. In England the peasants, driven from home, impoverished, eaten out by sheep, deprived of their means of livelihood by the enclosure of huge pasture lands to which they might no longer take their cattle, provided a wonderful reserve army for industrial magnates in search

of labour.^[99] The town artisans fought with desperation against the blows struck at town monopolies by these new departures.^[100] Opposition—significant but utterly useless—was offered on every hand to the new demands of large-scale production. Risings against foreign workers, like those at Norwich; the many attempts to limit the number of apprentices; the English law of 1555 known as the Weavers’ Act, which forbade a master to own or hire out more than a certain number of looms; and the innumerable lawsuits in France brought by guilds to check the disastrous competition of peasant labour were all illustrations of this opposition.

Another necessity of large-scale production, involving still greater consequences, was mechanical labour.

“Great” industry demanded the division—even the disintegration—of labour. The product, before it is finished, passes through the hands of various craft groups. It undergoes a series of processes which follow one another and are interdependent, and of which each is carried out by specially trained workers. This was the case in the manufacture of wool from the thirteenth century. The wool had to be washed, beaten, carded, combed, oiled, spun, woven, fulled; then the cloth had to be stretched, dyed, dressed, and folded. It is a well-known fact that if each class of work is entrusted to a special class of workers, manufacture costs less both in money and in time. But it must be added that this disintegration of the whole process into a succession of operations leads straight to the mechanical system.^[101] The simple and monotonous tasks performed under this system of subdivision by the different classes of workers owe their automatic and half-mechanical character to the uniformity of the movements they demand. It needed very little to complete the technical revolution already begun and to make hands of wood or metal accomplish what had been done by human hands.

A machine may be described as a more or less complicate engine, which, by means of an animate or inanimate motive force, executes movements which hitherto have been performed by the human hand. The weaving loom and the spinning wheel were already rudimentary machines. The Middle Ages knew, under the name of “mills,” more complicate appliances, of which many date from the Alexandrine period, which was to Graeco-Roman

antiquity what the nineteenth century is to modern times—the era of science and machinery.

Water- or wind-mills, mills for grinding flour, for crushing nuts or olives, for raising water; iron mills; mills for fulling cloth, for making paper, sugar, silk stuffs—all these expensive appliances were in use, and gradually spread over Europe during the period which brought to a close and immediately followed the Middle Ages. Thus old industries changed their method, and new industries were from the start modelled on the new system.

Printing may be quoted as an example; the printing press, with its movable letters, took the place of writing—the work of human fingers. It may be said of it that it was born mechanical, and if we ask why it killed the slow industry of the old copyists who protested in vain, we need only look at the unexpected results it achieved. The identity of the copies produced; the speed, which allowed demands hitherto forced to wait months and years to be met in a few days, and which gave, so to speak, wings to thought; and the unheard-of cheapness, which reduced the price of a Bible from 600 to 60 crowns and even less (things which evidently could not be obtained without the co-operation of the Prince of Darkness, as was proved by the red characters which flamed at the head of the chapters), such were the diabolical but invaluable advantages which in less than half a century assured the triumph and the rapid spread of the new invention.

If we remember the thousand-and-one prohibitions with which the guild statutes bristled—the prohibition to mould seals with engraved letters, the regulations which in every craft prevented all change and consequently all improvement in manufacture, it is easy to understand how “great” industry, without deliberate effort, but by its very development, overthrew the economic order which had reigned in the Middle Ages. The guilds, moreover, with the best intentions in the world, fought against innovations which seemed to them abominations. In England in the year 1555 the *gig-mill*, a mechanical appliance, was forbidden by law.^[102] The first English coaches, called “flying coaches,” were attacked and censured^[103] because they threatened to injure the art of riding and the manufacture of saddles and spurs, and because, being too cold in winter and too hot in summer, they were bad for the health of travellers; but, above all, because, on

account of their extreme speed, they would be dangerous. The public authorities were begged to limit them to thirty miles a day (rather less than the distance a fast train covers to-day in an hour); and later, in France, when the *turgotines* were instituted, which shortened by half the length of a journey, an abbot added the strange complaint that, by going so fast, they deprived the passenger of the means of hearing mass. ^[104]

“Great” commerce and “great” industry, however, continued to develop in the direction they had originally taken, and finally overcame the old-fashioned timidity of the guilds, which were gradually reduced to defending the interests of the small crafts. The great merchant guilds were predominant at first; the Lord Mayor of London was chosen from the city guilds, and the guild of the river merchants gave to Paris its coat-of-arms and motto and was an embryonic form of the municipal councils which followed later. As time went on, however, they disappeared or separated themselves from the organized crafts. At Paris, the Hanse of the river merchants does not figure among the *six guilds* which head the list, although they did not actually lose their privileges till the year 1672. In London, ^[105] the city guilds slowly ceased to have any connection with the crafts whose names they bore. The great capitalists, whether bankers, merchants, or great manufacturers, voluntarily formed themselves into a separate group and, as far as possible, cut themselves clear of the trammels of the guild system.

Meantime, under the system of large-scale production, the workers were either subjected to the guilds as we have seen them at Florence in the *Arte della Lana*, ^[106] or else, if they were not enrolled, were treated by their individual masters in such a way as to keep them permanently in a precarious and subordinate position. Whether they worked crowded together in great workshops—where, owing to their numbers, they were under severe discipline—or at home, in which case their isolation only brought them, under the appearance of liberty, harder conditions, they soon saw that, with the rarest possible exceptions, they were destined to be wage-earners for life. They no longer had the hope, the ambition, even the idea of one day owning the factory in which they laboured, or the business which every week paid its thousands of workers. The divorce was complete between the manual worker and the instruments of production, and, in

consequence, between the men who were the servants of these expensive appliances and the master-manufacturers who owned them. Masters and workmen, henceforth separated by their present and their future, by their education, their manner of life, and their aspirations, formed two classes, united as yet, in that both were interested in the intensity of industrial activity, but opposed, in that the one wished to keep the other in subjection and to sweat out of him as much work as possible, as cheaply as possible.

It is from this time, and still only in “great” industry, that a working class can be spoken of. For a long time it was fairly small; but the self-consciousness it was acquiring was shown by the strikes, the combinations, and the attempts at union which were common in England from the sixteenth century; by combinations which were already national, like that of the papermakers in France at the end of the seventeenth century; by the popular songs in which the discontent of the workmen was expressed in bitter complaints or biting irony.^[107] The energy and diplomacy displayed in the sixteenth century by the master printers of Lyons and Paris in preventing their workmen from striking (*fair le tric*, which was the name given in those days to concerted abstention from work^[108]) is well known; so is the song sung in England by the wool workers^[109] towards the end of the seventeenth century, the title of which is curious. The master is supposed to speak.

THE CLOTHIER’S DELIGHT; OR, THE RICH MEN’S JOY, AND THE POOR MEN’S SORROW

Wherein is expressed the craftiness and subtility of Many Clothiers in England, by beating down their Workmen’s Wages.

Combers, weavers, and spinners, for little gains,
Doth earn their money, by taking of hard pains.

*To the tune of “Jenny, come tae me,” etc., “Paddington’s Pound,” or
“Monk hath confounded,” etc.*

Of all sorts of callings that in England be,
There is none that liveth so gallant as we;
Our trading maintains us as brave as a knight,
We live at our pleasure, and take our delight;
We heapeth up riches and treasure great store,
Which we get by griping and grinding the poor.
And this is a way for to fill up our purse,
Although we do get it with many a curse.

Throughout the whole kingdom, in country and town,
There is no danger of our trade going down,
So long as the Comber can work with his comb,
And also the Weaver weave with his lomb;
The Tucker and Spinner that spins all the year,
We will make them to earn their wages full dear.
And this is the way, etc.

In former ages we us'd to give,
So that our work-folks like farmers did live;
But the times are altered, we will make them know
All we can for to bring them under our bow;
We will make to work hard for sixpence a day,
Though a shilling they deserve if they had their just pay.
And this is the way, etc.

and so on, for twelve stanzas.

From now onwards can be found all those motives for disagreement with which the “social question,” as it has developed and grown more bitter, has made us familiar;—increase of hours of work, lowering of wages by the employment of apprentices, women, and children; reductions of the sums agreed upon by means of fines, payment in kind,^[110] and other tricks; draconian regulations; harsh foremen; the binding of the workers to the workshop, as the serfs were to the soil, by money advances which they could never repay. Events follow their usual course: the story is one of struggles, prosecutions, appeals to the law, and finally, when no more can

be said, battles with folded arms and closed factories—strikes by workmen or employers. There follow riots in which machinery is wrecked and attacks are sometimes made upon the masters themselves. Repression ensues; the carrying of arms is forbidden, the rights of combination and public meeting denied at pain of death. And, in reply to these measures, the workers retaliate by emigration, by secret societies, by recourse to force which may damp down the fire but cannot prevent it from smouldering till in time it bursts out afresh.

The guilds and their statutes were of but feeble assistance in calming these conflicts. The greater part of the workers in the great industries did not belong to them. Worse still, the guild system itself suffered from the startling inequality which separated its great manufacturers from their employees. Between rich masters and small masters, between the sons of masters and the poor journeymen, the gulf ever widened, and an institution was soon to reveal the growing friction. I have already spoken of the separate societies, now of long standing, governed by journeymen (*compagnons*); but *compagnonnage*, united to these ancient associations by more than one tie, had a more extensive influence. Its origins are obscure. [\[111\]](#) It is hardly found before the beginning of the fifteenth century, and developed particularly in Central Europe, France, the Low Countries, and in Germany. It seems to be allied to freemasonry in its origins, but was distinguished by an activity peculiar to itself. Freemasonry, as far as it is possible to pierce the mists which envelop its early history, was essentially a federation of building trades. It took its birth from the bands of workmen who had their *raison d'être* in the construction of those vast cathedrals whose harmonious proportions are certainly the most perfect legacy left to us by the Middle Ages. The aim of the association was to keep in order the crowds of half-nomadic labourers, who for half a century or more would establish themselves in a town; to transmit from one generation to the next the secrets of the craft; to act as arbitrator in the quarrels which might arise among this restless population. Born in the shadow of the sanctuary, it was naturally mystic and religious in character; it claimed to go back to the Templars, or even to the builders of Solomon's Temple; it was the child of an age which delighted in mystery and occult knowledge, and it imposed on its members a complicated initiation, formidable tests, signs of recognition, and pass-words. Created for men who sometimes transferred their labour

and their plans from one end of Europe to the other, it scattered its lodges over different lands; it was international, and in this differed profoundly from the guilds. But with this exception, it took its place within the existing order of things, accepted the hierarchy of the guild system, and had its three degrees—*i.e.* included apprentices, journeymen, and masters. It was a mixed institution as much and even more bourgeois than working-class.

Compagnonnage, too, covered many craft-guilds, of which the most important were closely connected with building (carpenters, stone-cutters, joiners) or with the clothing trades. It had its mystic legends, its symbolic rites in which baptism and communion figured, its claims to a long genealogy, its tests, pass-words, and strange ceremonies, in fact the whole armoury of a society which believes secrecy to be of vital importance. It was a league for mutual and fraternal assistance, which spread over many countries and undertook to procure for its travelling members moral support, lodging, travel-money, and, above all, work. But it differed from the guilds and from freemasonry in that no masters were admitted. It concerned itself exclusively with obtaining work for *compagnons*, and with looking after their professional interests. It thus emphasized the separation which had taken place between masters and workers. It was feared as an instrument of war, suspected on account of its secret methods by the public authorities which persecuted it, and by the Church which accused it of disseminating heretical ideas and condemned it in 1655 by the voice of the Faculty of Theology at Paris; it was also exposed to the attacks of the guilds. Nevertheless it survived all this, and was strong enough to organize strikes, and to black-list the firms which did not accept its conditions, and even the towns in which it was persecuted. [\[112\]](#)

Of course its strength and power of emancipation must not be exaggerated. *Compagnonnage* remained bound by the customs and liable to the vices of the guild system. If it escaped from the restraining spirit it did not escape from the corporate spirit; it jealously closed its ranks, and would only admit certain crafts; it was divided into hostile rites or *devoirs* which took for patrons Solomon, Maître Jacques, or Père Soubise. Violence was frequent (*topage* for instance), and bloody battles for the monopoly of work in a particular town often took place. Besides, it only included a privileged minority who ill-treated and despised not only those who were outside their ranks but even those who aspired to enter them. It was on the whole a

fighting league, and imposed conditions on certain masters; but it was far from being a combination of the whole of the working classes against the masters.

Centuries were yet to pass before the development of “great” industry, by constantly increasing the number employed, by turning the suburbs of great cities and the black country into seething human anthills, forced all these multitudes of workers, in spite of wide differences of occupation, to unite into a great army.

As has been said, the division of society into guilds is vertical; it only becomes horizontal when the conditions common to the great army of wage-earners blot out all differences of craft and origin.

2. *The change in intellectual conditions. The Renaissance and the Reformation.*—We have summed up the effects produced on the guilds by the enlargement of the environment in which they developed. This environment, however, changed not only in extent but also in character. Without going into the details of the changes they passed through, we can see that three great events stand out in the history of Europe from the fifteenth to the end of the seventeenth century, and it is impossible that they should have failed to react on the system we are studying; these are the Renaissance, the Reformation, and the increase in the powers of the State.

The great intellectual revolution which has been named the Renaissance was at first a return to Greek and Roman antiquity. Literary men and scholars, filled with adoration for a glorious past, abandoned their mother tongue for that of the great dead, imitated Virgil, Cicero, Demosthenes, swore by Jupiter and Mercury, insisted, like Montaigne, on being given the title of Roman citizens, or like Erasmus, Ramus, or Melanchthon, took neo-classical names. They restored ancient methods of thought and action; they wove conspiracies in imitation of Brutus; they dated their letters by the Calends and the Ides; they became pagans once more in appearance and sometimes in reality; in opposition to Christianity—the religion of sadness, resignation, poverty, and of the struggle against the flesh and passion—they re-established love, pleasure, beauty, and the joy of life. They awakened from their long slumber the old systems of philosophy, and as disciples not only of Aristotle, but of Plato, Epicurus, and Diogenes, they became

accustomed to coquetting with every kind of doctrine and often acquired an elegant dilettantism.

These new conceptions, which demanded a knowledge of languages requiring long study at college, could only be held by an *élite*. To have the right of initiation into the ancient authors it was necessary to belong to the leisured classes; it took time to read and re-read them in order to extract the “marrow within.”

In a word, the Renaissance was fundamentally aristocratic. Most of its classical scholars and poets profess disdain and hatred of the ignorant masses.

Rien ne me plaist que ce qui peut desplaire
Au jugement du rude populaire

cries one of the brilliant satellites of our Pléiade. [\[113\]](#)

It follows logically that the education it instituted and which was founded on the study of Greek and Latin drew a clear line of demarcation between the children thus brought up, who were destined to hold the highest social positions, and the others doomed to inferior tasks and studies. It will therefore be understood that the Renaissance influenced the condition of the workers. It swelled the tide which was carrying society towards class division; it helped to separate still further the tradesman and the manual worker; and above all it separated the artist and the craftsman, those twin brothers, who till then had shared the same life and the same ideals. The artist was no longer the interpreter of the thought of a whole people, but, working for the rich and powerful bankers or princes, who required him to reproduce archaic forms and consequently demanded of him a certain amount of education, he left the ranks of the people, rose to wealth, to the ranks of the upper middle classes, and figured at court; he and his fellows grouped themselves into special brotherhoods such as that of St. Luke at Rome, and before long formed academies inaccessible to the vulgar. Compare the life of Raphael with that of Giotto. In these days, the craftsman remained a working man, lost in the crowd, watching from afar and from his lowly station his successful comrade, who no longer recognized the poor relation he had left behind.

Separations of this kind abound in almost every direction. In the Middle Ages grocers and apothecaries, barbers and surgeons, were classed together. But in the sixteenth century the apothecary, on his admission to mastership, had to reply in Latin, and henceforth he no longer considered the spice merchant his equal. So in France, from the year 1514, the bond between the two professions was broken.

The historian can easily prove that this separation of art and craft was often harmful to both; that art, isolated from the warm heart of the people, became conventional, cold, stiff, and artificial; that craft, relegated to a lower position, no longer sought for beauty, and was condemned to express

itself in inferior, routine work; but, taking the guilds alone, this separation certainly weakened the mediaeval system. Deprived of members whose gifts were their glory, they lost in power as in prestige.

In spite of all this, and although the Renaissance is from some points of view a retrogression towards social conditions which had long disappeared, it was more than this; it was the awakening of the spirit of initiative; it was a forward impulse, a bold step in advance. It was not limited to a mere renewal of relations with classical antiquity; it stimulated inventive effort, and taught men to think for themselves once more, to open their eyes and to observe. It thus gave a strong impetus to science. The age is rich in many-sided geniuses and seekers after truth, who widened the field of human knowledge and power in every direction. It saw the birth of those universalists, Leonardo da Vinci and Michael Angelo, who may be likened to trees, which, by the mysterious process of grafting, bear twenty different kinds of fruit. In short, the Renaissance was a setting free of intelligence, a breaking forth of truths, which, thanks to printing, spread all over the world and became a lasting possession.

It is true, indeed, that mankind, like the Wandering Jew, is always moving forward, and never comes completely to a standstill. Man moves ceaselessly because he is alive. But after the great creative movement which is the glory of modern times, his progress is more apparent, surer, and more rapid. From this time must be dated a permanent alliance between science and industry, exemplified in that heroic potter, Bernard Palissy, who spent his life and fortune in rediscovering the secret of certain enamelled pottery. The pity is that this alliance, so fruitful in new methods, in the exploitation of new materials and new products, was formed at the expense of the guilds; for the innovations which it rendered necessary were the death of their rules governing manufacture. Everything contributed, as we can see, to the break-up of the organization of labour which they embodied.

The same may be said of the Reformation, the religious renaissance, which was both a development of and a reaction from its fellow. It could hardly be expected that a revolution which rent Western Christianity asunder should spare the unity of the craft guilds. True, it did not act in the same way: by making the reading of the Bible obligatory it encouraged the education of the people, and in this way it raised the craftsman. It found, and not without

reason, its first adherents among workmen,—Saxon miners, carders from the town of Meaux; it turned towards democracy, towards theories of equality. Those who carried it to extremes, like the Anabaptists of Münster, pictured a government in which all the guilds, great and small, should be made equal; their ideal was to turn all organized crafts, superior and inferior, into a sort of public service; to establish a kind of Biblical communism. Their leader and prophet was John of Leyden, an aged working tailor.^[114] If this was only a passing birth-throe of Protestantism at least the guilds took a large share in the great movements which shook Holland and England. It really seems that the Reformation brought a renewal of vigour and activity to those states in which it triumphed. But in many countries the fight between the two faiths was so fierce that many cities were devastated and ruined by it. In Germany, after the Thirty Years' War, Magdeburg, Wurtzburg, Heidelberg, Spire, and Mannheim were simply heaps of ruins, almost deserted. The Teutonic Hanse which had been so powerful was a wreck; the Protestant and Catholic towns had broken the union in which their strength lay. In a hundred places, since it was admitted that the religion of the prince was law for his subjects (*cujus regio, hujus religio*) whole bodies of people and industries moved away; workmen and masters went in search of refuge among their co-religionists. The guild system was profoundly disturbed by this; the new-comers, when they were too numerous, were not always very warmly welcomed by their brothers in God, and even when they were received, they practically forced their way into a closed system which they strained to breaking.

In places where the population remained divided between the two creeds, or where, more from indifference to, than respect for, the beliefs of others, they made a lame attempt at tolerance, it was extremely difficult to get men of the two sects to live together in the same body. Just as the Jews had been excluded from the guilds in the Middle Ages, so now the Protestants were kept out. In France, from the time of Richelieu, fifty years before the repeal of the Edict of Nantes, the professions of a doctor, apothecary, grocer, and many others were forbidden to them.^[115] Then came the great exodus of 1685, which scattered the French Huguenots over every place in Europe where they had friends, and planted colonies of refugees in Switzerland, England, Holland, Prussia, Denmark, and Sweden. "They carried commerce away with them," says Jurieu, one of their pastors; and *commerce* in the

language of those days included what we call industry. The fact is that they naturalized abroad many manufactures which had hitherto been unknown. England alone learnt from them the arts of silk-making, Gobelins tapestry-making, and sail-making. What then became of the guilds which remained in France, of the monopoly at which they aimed, and of the secrecy which was one of their methods of securing it? It was a terrible blow for them when, as at Abbeville, 80 families out of 160 left the country, or 1600 out of 2200, as happened at the election of Amiens.^[116] How, thus mutilated, could they stand against the foreign competition of which their own members had become the most formidable allies?

3. *The change in political conditions.*—Changes in political conditions affected the guilds even more than intellectual and religious changes. Europe, in spite of waves of revolt, passed through a period in which great powers prevailed. The State, which was becoming centralized, increased its prerogatives and complacently interfered in economic matters. The motives which determined its intervention were sometimes a purely *political* interest, sometimes a *fiscal* interest, sometimes a *public* or *national* interest.

(a) The political interest of Sovereigns is to subdue rival powers within their territories. For this reason they first attacked the liberties of any cities where the spirit was bad, that is to say, as a King of Prussia said later, *frondeur*, intractable, or restless. In Spain their *fueros* were taken from them; in France, town liberties decreased, till they were almost entirely destroyed by Richelieu and Louis XIV. In Germany, the number of free Hanseatic cities dropped from eighty to three. The Italian republics fell one by one under the domination of a monarch, and, though Venice survived, she had concentrated her government in the hands of three State judges, magistrates as autocratic and irresponsible as kings. In the Low Countries, Bruges lost all jurisdiction over her suburbs in 1435, and Ghent lost the power in 1451, and also the right to nominate the aldermen. Liège, like her neighbour Dinant, was destroyed, crushed, reduced to nothing. In the following century Antwerp, suspected of sympathy with the Reformation, lived under the Spanish yoke, pillaged and down-trodden.

Municipal and guild life were so closely united that it was impossible to strike at one without injuring the other. In the city of Liège, the thirty-two

crafts and the *perron* which was the emblem of its independence were taken away at a single stroke.

At Florence, no sooner had the Medicis become Dukes of Tuscany than the Constitution of the *Arte* was altered in such a way as to make it impossible for them to exercise any influence in the direction of public affairs. In England, ^[117] the king and Parliament agreed in forbidding the guilds to make ordinances without the consent of the Chancellor of the Exchequer and the Crown Treasurer, or to fix the price of goods, and aimed at supplanting them in supervising the quality of products. The Statute of Labourers in 1563, in the reign of Elizabeth, gave to justices of the peace, that is to say, to magistrates who were not craftsmen, the right of fixing workmen's wages. In France, Philip the Beautiful ill-treated the confraternities and found no difficulty in modifying the rules of the Parisian industries. ^[118] The Crown, however, differentiated between the guilds: at the beginning of the fifteenth century, the doctor of theology, John Gerson, lays down in the clearest terms the alliance between the Crown and the rich burgesses: "All the harm," he says, "arises from the fact that the king and the good burgesses have been put under servitude by the outrageous enterprise of men of small standing.... God has permitted it in order that we may know the difference between royal domination and that of any people whatever: for that which is royal is general and should be gentle: that of the low-born is a tyrannical domination which destroys itself."^[119] In accordance with this principle, royalty was tactful in its dealings with the great guilds, and willingly bestowed on them honorary privileges. Francis I. not only confirmed to the Six Guilds, which formed the merchant aristocracy of the capital, the precedence which they enjoyed at solemn functions, but of the thirty-six wardens of these Greater Guilds as they would have been called at Florence, he formed a High Council of Parisian industry.

Even with the others, the Crown proceeded gently at first. It desired to absorb, and not to suppress. It realized what an advantage it would be if these independent institutions, still under the influence of their feudal origin, could be transformed into State institutions, protected and obedient! It was with this end in view that Henry III. decided that their organization, hitherto local, should be extended throughout the whole kingdom, to the

scattered villages as well as to the towns. The city (urban) guild was therefore converted into a national organism, and the guild was made compulsory at the same time that it was put under tutelage. This unification, which placed it under the direct supervision of royal agents, was, however, only to operate on paper. It encountered the displeasure of the craft guilds; worse still, it was in opposition to the first principle of the whole system. The ordinance allowed the inhabitants of the suburbs to follow their craft within the cities, and the inhabitants of one town to settle in any other, with the exception of Paris^[120]—a last concession to an ancient tradition. It was something quite new for craftsmen to possess equal rights and for crafts to be organized like those of Paris throughout the whole of France; but it was only in accordance with the general trend of French civilization. This sudden enlargement of the guild system, however, was practically its death, and there were many who from this time did not hesitate to say so openly.^[121] The edict, renewed by Henry IV. in 1597, was next extended to include merchants, and was completed by the abolition of the *king of the mercers*, who still exercised a certain amount of authority in the fairs; for even so trumpery a king made the king at the Louvre uneasy!

The Crown was the less willing to give up its ideas of realizing unity in the industrial domain in that it mistrusted the small crafts; it bore in mind the fact that, formerly, when the Holy League tried to create a sort of intermunicipal federal Republic, the masters' and journeymen's confraternities eagerly joined in the attempt. It did not forget that, in the time of the Fronde, the guilds were credited with having had the repeal of the privileges granted to the great merchants and the prohibition to import silks into the kingdom inserted in the peace treaty forced on the Regent by his rebel subjects. Little by little it reduced the authority remaining to them. It was tenacious in carrying into every sphere the form of organization at which it aimed. It made further attempts in 1673 and 1691; between the first date and the second the guilds officially constituted and classified rose from 60 to 127, and what clearly shows the meaning of this administrative classification is the fact that it nominated, or threatened the nomination of, the headmen by officers of the Crown.

A very inadequate idea, however, of the encroachments of royal authority will be gained if the solemn publication of edicts alone is remembered, and the daily, incessant attempt of its agents to restrict the jurisdiction both of

local and of guild authorities is ignored. No doubt a good deal of the economic jurisdiction formerly exercised by the town magistrates still existed. Contraventions of regulations, and struggles between producers and consumers, between employers and employees, and between allied and rival crafts, were under municipal jurisdiction.^[122] The right of pronouncing judgment on such points as falsifications, the observance of religious festivals, the price of merchandise and the rate of wages, was still left to the municipality by Colbert. Naturally its powers were greater or less according as the town was royal, seigneurial, or communal. But it was not unusual for it to retain the right of collecting taxes, and of nominating supervisors who controlled crafts; for it to create masterships and organize charity workshops which changed into regular factories; or to withhold the monopoly granted to the guilds.

It is none the less true that communal jurisdiction grew less year by year. Attention must be drawn to the fact that the craft guilds sometimes passed it by and of their own accord applied to the central authority for intervention. Thus, questions of provisions, public health, monopoly, speculation, regulations for the prevention of fraud, and the protection of apprentices, one by one came under the jurisdiction of *parlements*, ministers, governors, and of their delegates. Colbert, in his general rules for manufacture which date from 1666 to 1669, codifies, in the name of the State, the minute directions contained in the guild statutes on questions of apportionment, bad work, etc.

At the end of the seventeenth century, then, the guilds still existed, but had been subjugated and deprived of their principal rights. Behind the solid front which they still presented were ruin, desolation, and decay.

(b) It is probable that the Crown in France allowed them to live and decline in peace because they supplied an easy method of directing commerce and industry; but it was also because they were fruitful sources of production. The Crown often disguised with fine phrases the *fiscal interest* which inspired it; it is, however, easily discoverable in three different forms. Sometimes it confirmed, strengthened, and extended the monopoly of the guilds and made them pay for the favour; sometimes it sold to outsiders privileges which encroached on and compromised this monopoly; and

finally, it sometimes threatened them, and only withdrew threats in return for ready money.

The great ordinance of 1581 and the special edict of taxes of 1673 may be taken as examples of the first method. In 1581 the strengthening of the organization of the guilds by purging them of certain abuses and irregularities was the pretext cited; the king spoke and appeared to act as the great national justice of the peace; but the real object of the measure, which extended to the kingdom a system hitherto localized, may well have been the filling of the royal treasury into which fell a part of the matriculation fees paid by each new master. In 1673 trouble was no longer taken to find a pretext; the work was done by a financial edict, that is, by the establishment of a method of taxation. The guilds themselves encouraged these calls on their funds; indeed, in 1636, when France was in danger of invasion, they offered their wealth and their services for the defence of the kingdom.

The second means, which consisted in creating privileges for which the guilds paid and by which the king's coffers were filled, was invented by Louis XI., who in 1461 instituted *letters of mastership*, which exempted those who bought them from the examination of capability and the expenses which the ordinary reception entailed. Soon the kings introduced irregularities into the masters' guilds on every possible occasion.^[123] The blow could not miss its aim. If none were found to take these licences, the guilds hastened to buy them up to prevent the intrusion of new competitors. In vain they attempted to protest; the procedure became habitual and legal. The great ordinance of 1581 stated that the king would dispose of three letters of mastership in every town and every craft.

This led to a third procedure. The guild was vulnerable at many points, in its revenues and in its autonomy, as well as in its monopolies. If a pretence was made of attacking its weak spots, it would pay in order to be spared. It clung to the right of electing its own officers. Now Francis I. had already introduced among them royal officers who had naturally bought their office. At the end of the seventeenth century the Crown, being short of money, renewed this expedient on a large scale. In 1691 it declared its intention of replacing all the officers and syndics by agents of its own nomination, and the guilds had immediately to raise three hundred thousand pounds to avert the calamity which threatened them. It was thus that the Jews and Lombards

had formerly liberated themselves. In 1694 the king took it into his head to institute auditors and examiners to control their accounts; another sacrifice of four hundred thousand pounds was demanded before these were removed. In this way from year to year posts were created and bought up. In 1711 the pressure brought to bear was even stronger and more direct; the admission of new masters was forbidden, and they were created by royal authority without the assent of the guilds. The guilds gave everything that was demanded of them, everything at least that was in their power; they borrowed, got into debt, became involved and were on the verge of bankruptcy; just as the communes had formerly succumbed under the weight of the too heavy burdens imposed on them by the Crown.

(c) The Crown was not always actuated by such personally interested motives; it sometimes happened that it was moved by nobler inspirations in its relations with the craft guilds, and studied the general interest when it restricted their exorbitant privileges.

In order to develop public assistance with little expense, those who participated in works of charity were recompensed by being exonerated from corporate obligations. In 1553 an edict conferred mastership on all craftsmen who consented to teach their craft to the children of the Hospital of the Trinity, and the hospital itself thus became a factory working against the guilds. Several hospitals were in a similar position. In the seventeenth century, however, it was with a different aim,—the development of national industry,—that the Crown deliberately created factories not under guild rule. Henry IV., in order to naturalize in France the silk industry, which diverted from the kingdom seven to eight thousand gold crowns annually, planted mulberry trees, and brought in Italian workmen on whom he lavished money and monopolies, and who were exempted from taxation, in order that they might teach the art of weaving these valuable stuffs. In 1607 he installed, in the great gallery at the Louvre, a colony of foreign craftsmen—a sort of industrial school of art where apprentices were trained—who might establish themselves anywhere in the kingdom without waiting to become masters. He thus launched the industry of luxury and attempted to organize, over the heads of the guilds, that which was most distasteful to them,—innovation, while their domain was still further restricted by the special conditions granted to merchants who followed the Court and

became tradesmen by appointment to princes and to the most brilliant of the nobility.

Colbert built up into a system what Henry IV. had practised, and great factories rose at his command. These were of two kinds: first, *royal factories* properly so called—State establishments, in which all expenses were borne by the Treasury; the director was nominated by the king, and the privilege which they enjoyed was in perpetuity (the soap works of Beauvais, Aubusson, the naval workshops in the ports, etc.). Others, also called “royal factories,” were, in spite of this ambiguous name, private enterprises; they enjoyed important privileges, such as exemption from taxes, subsidies, or titles of nobility for those who directed them; but they were only temporary, and the company, with a private individual at its head, was worked at its own risk and peril. I will only quote one example, the cloth factory of the Van Robais at Abbeville. No matter what their methods of administration, for the guilds they were so many formidable competitors, and it is easy to imagine the futile complaints and remonstrances of which they were the object.

(d) We have described in detail the policy of the French Crown with regard to the craft guilds, partly because this book is written in France and for the French, but also because it developed with remarkable logic and continuity. In neighbouring countries, however, what happened was, if not exactly the same, at least similar.

In England, when we study the encroachments of the central authority, we find that, in spite of the Commons, who represented the commercial class, the kings authorized foreign merchants to reside in the ports where originally they had to sell their cargoes wholesale within forty days, and that in 1335 they were allowed to trade freely throughout the kingdom.^[124] We find three Parliaments in turn making laws to impose certain industrial methods on the whole country, and many acts of legislation are to be found regulating “the size and weight of pieces of stuff, the methods of stretching and dyeing, the preparation of wool by means of certain ingredients the use of which was allowed or forbidden, the finishing of cloth, folding and packing, etc.”^[125] A whole army of officials was needed to see that these complicated laws,—which from being guild laws became national laws,—were not broken. In 1563 the Statute of Labourers codified in this way, in

the name of the State, rules for apprenticeship and for other matters which had hitherto been in force among the craft guilds.

At Florence, from the year 1580, under the rule of the Medicis, who had become sovereign princes, the statutes of the Guild of Silk or Por Santa Maria,—hitherto the most important Guild,—were reconstituted, and governors, whose jurisdiction extended over the whole of Tuscany, were set up beside the consuls. These were still elected by the masters, but if one of the chosen magistrates were not approved (*la grazia*) by His Serene Highness, that was enough to disqualify him. From this time no subject could be brought up for debate in the assemblies of the *Arte* unless it had first been submitted to the said Serene Highness, who could either allow it to be introduced or could stop its passage.^[126] In 1583 His Highness took upon himself to unite two ancient guilds (Fabbricanti and Por San Piero); he had the seal of the new guild remade, and the statutes, which even fixed the salaries of the officers, reconstituted.

By degrees the consuls ceased to be chosen from *Arti* over which they nominally presided; they became personages who assumed honorary titles, and the actual power was in the hands of “deputies” (to-day we should call them delegates) nominated by the prince;^[127] the organization of crafts became purely bureaucratic and the ancient *Calimela* a mere charitable body. Wherever tribunals and chambers of commerce or technical schools were formed, wherever foreign craftsmen were called in and welcomed, there it may be said that the doom of the guilds was sealed.

CHAPTER VII

INTERNAL CAUSES OF DECAY

The guilds could only have been successful in their resistance to all these menaces if they had possessed plasticity, flexibility in adapting themselves, a desire for reformation, an eagerness to fall in with every new demand society might make, a spirit of continuity, unity, and justice,—in fact, such a combination of strong and great qualities as is rarely to be met with in the history of human institutions.

We shall find that, instead of this, they allowed their inherent faults and failings, which we have already discovered in germ, to develop at the very height of their prosperity.

It will be seen at a glance that three things grew up in their midst: *a lack of solidarity between those who occupied the various degrees of the hierarchy; divisions between the different craft guilds; and a narrow traditionalism which could not even ensure the good quality of products.*

Let us trace the disastrous effects of these three dissolvent forces.

I. *Division in the heart of the Guilds.*—(a) In principle there existed in the guild a hierarchy which justified its own existence. It was founded on age and election. On the one hand, an inequality which time corrected every day and finally did away with. Adolescence was the age of apprenticeship; early manhood that of the journeyman; maturity that of mastership; and a man's earnings, independence, and power increased not only with the years, but according to his talent and capabilities. On the other hand—and here we have a still more provisional inequality—the elected officers received for a few months only, a power which they exercised under strict control, and then went modestly back into the ranks.

This order of things, however, was soon upset by the growing domination of hereditary power and of wealth.

The masters, anxious to secure a life of ease for their posterity, and filled with a sort of dynastic ambition, made the acquisition of mastership more and more difficult for those who had not the good luck to be their sons, nephews, or sons-in-law. Even in the Middle Ages they had given way to the influence of domestic affection, but, as modern times draw nearer, the circle of the privileged narrows. Those who were connected with the family by any tie received all the favours; periods of apprenticeship, rights and expenses of admissions, were reduced or done away with; technical proofs of ability degenerated into a simple formality which could be passed through at home. For every one else, old obligations were not only maintained but added to; expenses increased to such an extent that in France the Crown intervened more than once to prevent their rise;^[128] crying injustices served as a pretext for the great ordinance of 1581; candidates were taken advantage of and made to give banquets, even when they had been refused admission; the tests became more and more complicated, cost more and more, and were often conducted with revolting partiality. As if this were not enough, the guilds arbitrarily reduced the number of masterships, some of them refusing to admit new masters for ten years, while others definitely decided only to admit the sons of masters. From the sixteenth century, the butchers in Paris, Poitiers, and other places quite frankly decreed that mastership was to be hereditary among them.

The same narrowing down applied to the attainment of magistracies. The duties of wardens and officers tended to be perpetuated in certain families: the electoral lists were weeded out in such a way as only to include the oldest masters. Sometimes even the officers nominated their successors, and this gave them the opportunity of forming a permanent oligarchy which divided the honours among its members. One step more in the same direction would have been enough to make them in turn hereditary.

The influence of money was combined with this family favouritism, counteracting it at times, but usually backing it up. None could be master unless he were rich, for the cost of admission, in the eighteenth century in France, rose to 1500 and 1800 francs. At the end of the seventeenth century, in the same country, the guilds which were in debt themselves sold letters of mastership to the highest bidder or contracted debts with their richest members, and even put up the wardenships for sale.

(b) These measures, which, through the fault of the guilds themselves, falsified the normal action of their statutes, were accompanied by an increasingly strict subjection of inferiors to superiors.

The journeymen were treated with growing severity. Not only were they forbidden as heretofore to set up for themselves, but their condition was certainly worse in the seventeenth century than in the thirteenth. The working day, which averaged twelve hours, was prolonged to sixteen during the lighter months. Holidays, reduced in number by the Reformation, were in turn reduced by the Catholics. La Fontaine's cobbler, who worked on his own account, complained of M. le curé who

De quelque nouveau saint charge toujours son prône.

But the journeyman, who had no reason to dislike so many holidays; was not pleased to find their number decreasing in the following century. The increase in the nominal wages was not enough to compensate for the rise in the price of provisions and rent; the value of gold and silver had gone down considerably since the influx of precious metals which the New World had poured over Europe. More than this, at the very time when cheap labour was increasing through the employment of peasants, women, and children, the jealous persistence of the masters in barring entrance into the higher grade to those among their workmen who possessed the necessary capabilities made the price of hired labour fall still lower. *Compagnonnage* acted as a check on these causes of depression, but it was quite insufficient, and was hampered in many ways.

This ever-deepening separation between masters and journeymen was followed by separations between the masters themselves. In certain guilds they became divided into the *young, modern, old, and bachelor masters*—these last ex-officers,—each section possessing different rights.

The officers abused their rights to visit, search, seize, and fine; the regulations were so difficult to carry out literally, that it was always possible to discover some weak point in them by means of which a rival could be annoyed. Money could also be made at his expense if the delinquent would and could pay to be let off. The officers thus created a monopoly within a monopoly—and, if we may judge by the enquiries and

lawsuits to which it gave rise,^[129] an extremely profitable monopoly. In 1684 the officers of the cloth-of-gold and silk workers were convicted of having taken £72 for authorizing a breach of the rules. It may well be imagined what a source of angry discontent were those breaches of trust, and it will be seen to what an extent the guild system had been discredited by the very persons whose mission it was to see it loyally carried out.

2. *Division between the craft guilds.*—One is sometimes tempted to say that the guild system had no worse enemies than the guilds themselves, so much bitterness did they display in their quarrels and recriminations. Town fought with town, and in spite of the efforts made by the central authority to unite them they had no idea whatever of agreeing or combining among themselves. Every one has heard of the interminable disputes which dragged on between the Hanses of Paris and Rouen concerning the navigation of the Seine.^[130] Each had, within its own region, the monopoly of the transport industry, one from the bridge of Charenton to that of Nantes, the other, from the latter point to the mouth of the river. The fight between the two powerful companies lasted several hundred years, till at last the day arrived when the two monopolies were impartially suppressed by the Crown.

In each town, as the line drawn between two crafts was often vague and purely conventional, the guilds were more rivals than allied neighbours. Lawsuits resulted which, on account of their length and the expense of legal proceedings, were absolutely ruinous to both parties. They are mentioned at Poitiers, which was at law for a century.^[131] At Paris, the lawsuit between the wine-merchants and the Six Guilds lasted a hundred and fifty years. The founders within a few years^[132] entered into actions “against the edge-tool makers to prevent them from making fire-dogs; against the needle and awl makers to contest their right of selling thimbles other than those of Paris; against the gilders to claim from them the exclusive right of founding, working up, and repairing copper goods; against the makers of weights and measures to claim equal rights with them in selling half-pound weights;^[133] against the pin-makers, makers of kitchen utensils, button-makers, and sculptors.” In England, the bow-makers might not make arrows, and the right was reserved to a special class of arrow-makers. Legal expenses for the Paris guilds alone amounted to nearly a thousand a year towards the

middle of the eighteenth century. From a sense of *esprit de corps*, however, they persisted in wasting their substance, to the benefit of the legal profession which made enormous profits, and they defied royal edicts which attempted to restrain their zeal in litigation. They were far from putting into practice the motto of the Six Guilds, *Vincit concordia fratrum*; far from realizing that solidarity which was the very object of the guild system.

3. *Vexatious regulations*.—The guilds were not only jealous of each other but also devoid of economic initiative. This was on account of the privileges they held. As each one possessed a monopoly, they were inclined to go to sleep in the little closed domain which belonged to them. How could they be expected to go in search of improvements, when they were so slow in adopting them? St. Routine was their common patron. The application of a new method might promise larger profits or lessen the cost of production; but it was certain to entail expense, risk, and effort. It seemed to them easier to shut themselves behind a wall like the Great Wall of China. Every innovation encountered their determined opposition. A few instances chosen from among a thousand will suffice to prove their obstinate conservatism. I will take one from Great Britain.^[134] “In 1765, on the eve of those great inventions which were entirely to transform working appliances, it was forbidden, under penalty of a fine, to substitute metal carders for the teazles still in use in the greater number of the branches of the textile industry.” I will take two other instances from France; at Poitiers^[135] the cap-makers greeted the advent of loom-made stockings with marked disfavour, and at Paris the disputes between Erard, the maker of clavecins, and the musical-instrument makers are well known.

This exaggerated respect for tradition was also the result of the change which had taken place in the internal government of the guilds. Their direction had passed into the hands of the old members, who, no doubt, possessed the experience of age, but had also that fear of everything new so common to those of advanced years.

Like so many other closed and static bodies, the guilds were faithful to the past, hostile to the future, and were to find themselves without resources and defenceless when they had to meet the cold but tonic breath of that competition, which is no doubt cruel for the weak and death to ill-timed

enterprise, but which is also stimulating to human activity and an encouragement to the progress of industrial and commercial technique.

Would that their tyrannical regulations had succeeded in guaranteeing honest exchange and good quality of production! In this respect, however, they no longer exercised the least control. Antoine de Montchrestien in the time of Henry IV. denounced the deceptions of commerce and industry.^[136] In England from the fourteenth century damp spices, second-hand furs, and sheep-skins passing as buck-skin were on the market, and in the woollen trade the principle arose that it is for the buyer to take his own precautions.^[137]

Henceforth the statutes were broken by the very people who had made them and sworn to keep them. Men were found practising several professions, cornering raw materials and carrying on clandestine sales below the fixed tariffs; illegal practices for securing clients or for enticing away a colleague's workmen became common. Over and over again the officers and wardens of a craft had to inflict severe punishments, but in many cases they were themselves guilty supervisors in need of supervision! Their frauds often merited the condemnation they received.

Thus, through their own failings, quite as much as through the action of unfavourable surroundings, the guild system dwindled away, till, near the end of the seventeenth century, it was little more than one of those worn-out institutions which live on from force of habit; institutions which one hesitates to help in destroying, because it is difficult to know how they can be replaced, but so weak and tottering that they are at the mercy of the first shock. The eighteenth century was to give them their *coup de grâce*.

CHAPTER VIII

THE DEATH OF THE GUILDS

1. *Their suppression in European Countries.*—(a) The eighteenth century, the first half of which was an age of analysis, criticism, and social satire, was in its second half a time of innovation and invention, bold in its theory and practice, eager to correct and reform social organization in accordance with an ideal of justice born of reason. It was therefore both destructive and constructive.

In its first years it saw the beginning of a new economic phase. A revolution, as serious as that caused by the discovery of America and the sea-route to the Indies, began to operate in the world. As usual, it was commerce which, by its vast extension, broke the bounds within which society had been circumscribed. It was conscious of its importance and dignity. Voltaire sang the praises of the merchant “who enriched the country, and from his office gives orders to Surata and Cairo, and contributes to the happiness of the world.” Sedaine, in the *Philosophe sans le Savoir*, calls the merchant “the man of universe,” and compares the traders to so many “threads of silk which bind together the nations and lead them back to peace by the needs of commerce.” In 1760 Turgot proposed to ennoble the great traders, and great lords were not above going into business. The Duke of La Force was a wholesale grocer. On the sea there was the continual coming and going of vessels which ploughed the oceans, ransacked the archipelagoes, and opened up yet another continent, Australia, to European conquest: on land, improved means of communication and transport trebled the passenger and goods traffic. England at that time had her “canal fever”: in France the wonderful network of roads was the admiration of all strangers.

In all civilized nations the enterprise of Banks, Bourses, great Companies and Chambers of Commerce resulted in such a circulation of money and boldness of enterprise as had never been seen. All this necessitated an intensity of production hitherto unknown, and the invention of new methods. It was now necessary to create and supply the demands of

consumers who were no longer confined to the limits of a State, however large it might be, but scattered over the face of the globe; who no longer numbered a few hundred thousands, but amounted to dozens or hundreds of millions. In short, markets began to expand to the very ends of the earth, and the period of international economics set in.

In this commercial expansion, European capitalism played the chief part, and, in Europe, England held the chief place. Mistress of the sea and of a colonial empire of which India and North America were the most valuable possessions, she became enormously rich; France and Holland followed, but some distance behind. We already know the natural tendencies of “great” commerce: it dislikes all barriers and hindrances to its activity. It always had been and was once more inimical to the system of the closed market so dear to the small craft guilds. Its ideal was free trade. So true is this that in France, in 1654,^[138] the Six Guilds strongly protested against the taxes which struck at the importation of goods made outside the kingdom; moreover the liberal movement against the guilds emanated from the merchant aristocracy, and Gournay, its exponent in France, held the title of director of commerce.

“Great” industry developed with unprecedented strength under the same impetus. The aged tree, in which the sap was still rising, suddenly put forth vigorous branches. In England, engineering and coal-mining are prime necessities to its life, and the cotton industry imported from the Indies attracted many thousands of workers in a few years and kept them permanently employed. This industrial revolution took place both in those vast enterprises in which the ancient hierarchy of apprentices, journeymen, and masters became meaningless—since a handful of masters possessed the capital and appliances, while the mass of workmen possessed nothing:—and in those new enterprises which, like the manufacture of cotton fabrics, owed to their recent origin the fact that they had never been under the old guild system. The guilds themselves could not but suffer from the extraordinary growth which took place beside but outside their system.

Three forces in especial worked against them—three forces which led to invention, to the transformation of technique, and so to the overthrow of traditional rules: these were, the desire to save labour—a desire which dominates all human activity,—science, and fashion.

(b) At first, masters and workmen were agreed on one point—the reduction of effort which was imposed on them, and which meant reduction of expenses for the former, and reduction of labour for the latter. Workmen and workwomen had suffered from the imperfection of the tools they had used, and from the craft which they carried on; for generations they had contracted diseases and infirmities which were a trade-mark; the silk workers of Lyons for instance were recognized by their bent knees. Having seen their parents and grandparents die in hospital, tired and worn out before their time, they eagerly sought for means whereby they could save themselves, their children, and their comrades, from dangerous and exhausting work. They thought out and tried ingenious methods for lightening their tasks. The first inventors of improvements were thus workers, familiar with the machines which were their daily companions. From the time when the cotton industry became mechanical in England we can follow the rivalry—the struggle for speed which for half a century went on between spinning and weaving, each in turn getting ahead of and then being passed by the other; [\[139\]](#) it was a duel between inventors who were simple workmen and happened to be mechanics. In France, Vaucanson and Jacquard did the same thing for silk in Lyons, where labour was less regulated than elsewhere. They were encouraged and led by their masters and sometimes by the State; but they were unfortunate in unexpectedly encountering the hostility of the silk workers whom they thought to help. This was because (and there is nothing which more clearly demonstrates the faults in the organization of labour) the introduction of all new machinery, while it operates in favour of the master by advancing the speed of production, throws on the streets a certain number of workmen who are no longer wanted, and who, while waiting for increased production to give them back their means of livelihood, fall a prey to famine and misery. Montesquieu wrote on this subject: [\[140\]](#)

“If an article is of a fairly low price, and one which equally suits him who buys it and the workman who has made it, machines which would simplify its manufacture, that is to say diminish the number of workmen, would be injurious; and if water-mills were not everywhere established, I should not believe them to be as useful as people say, because they throw innumerable hands out of work....”

This explains the curious spectacle offered by the world of labour in the eighteenth century; the masters in “great” industry, like the wholesale traders, were the revolutionaries; their workmen, like the guilds, were the reactionaries.

(c) Science, however, was not long in coming to the rescue of the inventors who had risen from the working class. The scientists, whose function it is to increase human knowledge and the power of men over nature, gave proof in their turn of creative imagination; they captured and tamed hitherto unused or rebel forces: steam, subdued and enslaved, became the magician which began by giving movement to bands, wheels, hands of steel and iron, carriages and boats, and ended by carrying on every sort of craft. It could spin, weave, screw, rivet, plane, full, lift up, saw, cut off, glean, thresh corn, etc. Chemistry and physics were by no means inferior to mechanical science; they composed and decomposed bodies, transformed and melted them one into another, created new ones by bold combinations, produced heat, light, and energy. What weight had the old regulations in view of this transformation of methods and appliances? Who could uphold them? The guilds in defending them were like men with spades who should try to stop a train going at full speed.

(d) Fashion acts in the same manner, for the word is synonymous with change. It is a power in every country, but particularly where there is smart, worldly society. The guilds learnt this to their cost in a matter which was the talk of the court for years. In France an edict, inspired by them, had prohibited the use of printed cottons which came from India. They might be seized anywhere, even on people who were wearing them. But it was an absurd notion to try to check by force the changes of taste, when women, who love novelty in dress as much as they often do in matters of belief and custom, took it into their heads to wear a material which pleased them! The Marquise of Nesles appeared openly in the gardens of the Tuileries, dressed in Indian cotton. They dared not arrest her! Other Court ladies did as she had done, and, after a long struggle, printed cottons won the day; they were installed at the very gates of Paris, and made the fortune of Oberkampf their manufacturer, and were well known under the name of “toiles de Jouy”!

(e) While the defences behind which the guilds had taken refuge were thus battered down, a crusade against them was begun by public opinion.

Economists and philosophers united in attacking their principles in the name of liberty and equality, two ideas which roused much enthusiasm in the world at that time. The guilds were denounced as opposed to the general interest of producers in that they stood for privilege and exclusiveness and prevented numbers of people, who could neither enter them nor set up beside them, from earning an honest livelihood. They were condemned as being contrary to the general interests of consumers; for, burdened with enormous debts, wasting their money in festivals, feasts, and legal expenses, condemned to laborious methods of manufacture through their inability to improve them, they were yet able by means of their monopolies to keep up prices and to make unduly large profits, without even being capable of satisfying their clients if they expressed the smallest desire to have something out of the ordinary.

The physiocrats had another grievance against the guilds: they were opposed to them because they diverted capital from the cultivation of the land, in which, according to them, it would have been used to much greater advantage. By degrees, among the two peoples which led the European thought of the time—Great Britain and France,—these accusations were condensed into a formula which was the death-warrant of the guilds: *Laissez-faire! Laissez-passer!* At Edinburgh in 1776 Adam Smith's famous work appeared, and was looked on as the Gospel of the new doctrine. In 1775 there appeared in Paris a posthumous work by President Bigot of Sainte-Croix, entitled *An Essay on the Freedom of Commerce and Industry*.

2. It was in England, the country in which regulation was then weakest and where it had not touched great cities like Manchester and Birmingham,^[141] where “great” commerce and “great” industry made the strongest and most rapid advances, that these theories most quickly triumphed, born as they were of surrounding realities. But, in accordance with the English custom, there was no violent rupture with the past, no solemn repudiation of theories hitherto followed, no complete and sudden abolition of the guild system. The change in economic organization came by a series of small local and partial measures. The Statute of Labourers had in 1563 unified and codified the rules of the Middle Ages; these were not wholly repealed, but, in 1728,^[142] the master hat-makers, dyers, and cotton printers demanded of Parliament (and obtained their demand fifty years later) that they should be exempt from obeying the rules as to the number of apprentices, who might

be replaced by men hands. In 1753 the statutes of the stocking-makers were abolished as “injurious and vexatious to the manufacturers” and “hurtful to the trade,” as “against all reason and opposed to the liberty of English subjects.” In vain the workers sometimes united with the small masters, and sought behind these crumbling shelters protection against the ills inflicted on them by the development of “great” industry and of machinery; in vain they hoped for the application of the law which entrusted to the justices of the peace the duty of fixing their wages; in vain they made enormous sacrifices to get their rights established in legal documents.^[143] From the year 1756 the weavers of napery were abandoned to their fate by the House of Commons. After a period of hesitation and self-contradiction, “governmental nihilism” became under similar circumstances the policy of Parliament. But it was still more than half a century before the statute of 1563, which had survived from a former age, disappeared under the blows struck at it by the “great” tradesmen; it was suspended, then abolished for the wool industry in 1809, and finally done away with in 1814. Almost at the same date, in 1813, the right of fixing the wages of labour was taken away from justices of the peace. Of the economic legislation of the Middle Ages, there still remained the laws which prohibited workers from forming any sort of combination, and decided that in every dispute the word of a master should be accepted before that of a servant; but of the guilds nothing was left but atrophied and lifeless bodies, which were little more than memories, or names often given to what were far from being professional associations.

In France, where there is a love of unity, logic, and harmony, things developed differently. Guild monopolies continued, it is true, by means of bribery; but their domain was narrowed by the creation of the Sèvres factory and the Royal Printing Press, and by the working of many mines at the expense of the State. In 1762 all industrial privileges were limited to fifteen years, a serious menace directed against privileges which had been held to be perpetual. In the same year the freedom of rural industry was proclaimed; in 1763 that of the leather trade, and in 1765 that of wholesale trade for commons as well as nobles. The corn trade, in spite of the fear of monopoly, profited by a similar liberty for a short time (1763). Simultaneously, the guilds were stripped, and their doors thrown open. In 1755 it was decided that foreign journeymen might be hired in every town

in the kingdom except Paris, Lyons, Lille, and Rouen. In 1767 the doors were opened wide to foreigners and Jews—competitors as much hated as feared. In the same year the invasion was completed by a large number of letters of mastership which gave every craft in Paris twelve new masters, and every craft in the provinces from eight to two, while the purchase of these licences by the Six Guilds was not authorized even if a larger sum were offered. Monopoly was therefore extended, not destroyed. But such a solution was merely a compromise, and things developed in the direction of suppression pure and simple.

It was Turgot, as every one knows, who took upon himself to do away with wardenships and masterships. A disciple of both Gournay and Quesnay, he condemned them in the name of industry and agriculture, and in the interests of consumers and producers. The famous edict of March 1776, which he signed as minister of Louis XVI., declared that they were abolished throughout the kingdom with four exceptions: the *wig-makers*, who held posts sold to them by the State itself; the *printer-booksellers*, the supervision of whom was kept by the authorities for political reasons; the *goldsmiths*, because the sale of precious metals was under special legislation; and the *apothecaries*, as the control of their trade was considered necessary for public health. The property of the guilds was sold and the proceeds, together with the funds in hand, were used for wiping out their debts. The confraternities were done away with at the same time, and their wealth handed over to the bishops. All associations of masters or journeymen were prohibited.

Such an edict, completely revolutionizing the organization of labour, could not pass without obstruction and resistance. The Parlement, as defender of the ancient traditions of France, only registered it under protest and at the express wish of the king; the Six Guilds were defended by the writings of a man whose name will for ever have a sinister sound—Dr. Guillotin. The unrest was intense; the freedom of the corn trade served as a pretext, if not a real cause, for riots known as the “flour war.” Turgot had made a St. Bartholomew of privileges, therefore all the privileged combined against him. The king said to him, “Only you and I love the people, M. Turgot.” Some days after, the king dismissed him, and, on August 28, the edict was repealed. Wardens and masters were reestablished, first in Paris and a little later in the other towns. But so decayed a system as this could not suffer

even the most passing effacement with impunity. At first it did not reappear in its entirety and the number of free crafts remained considerably larger. It could only live at all by reforming itself, so the rights and expenses of reception were reduced by half, two-thirds, or sometimes even three-quarters; kindred crafts were fused and the practice of several crafts at once authorized; women were admitted to mastership in men's communities and *vice versa*; foreigners, too, could now aspire to mastership. But the original narrowness persisted; a new inequality sprang up between *masters* and *fellows*; the rules for maintaining internal discipline and the domestic authority of the employers over the workmen became, not less, but more rigorous; the journeymen were still forbidden to have common funds, to assemble without permission, or to be together more than three at a time; to carry arms, to concern themselves with the hiring of labour, to leave work unfinished, or to present themselves without a letter of discharge from their last master. A strike could always be punished as a desertion of work. A maximum wage was always fixed as well as the time allowed for the mid-day meal. The regulations for manufacture, however, became less strict; under Necker's ministry, the manufacturer might choose whether he would conform to them or not. If he did, he had the right to have his goods stamped, and stuffs so made were distinguished by a special selvage; other products received the "stamp of freedom."

The commercial treaty, concluded with England in 1786, severely tried the system already so weakened. The guilds suddenly found themselves exposed at many points to foreign competition, and complained bitterly when the convocation of the States-General gave France the opportunity of expressing her opinion, along with other more important subjects, on the existence of the guilds.

The debate reports of 1789 betray a certain indecision on the matter; the two privileged classes—nobles and clergy—when they were not indifferent to the whole question, leant towards suppression; the Third Estate—for the election of which the small crafts had not received equal treatment with "great" commerce, the liberal professions, and the rich bourgeoisie—were divided almost equally, one half favouring the abolition, the other the reformation, which implied the retention, of the system.

Apparently at first the latter carried the day. On the night of August 4, 1789, the reformation of masterships was one of the numerous motions voted with enthusiasm. But less than two years later, in March 1791, in a bill for the taxation of licences, the mover, Dallard, had the following article (number 8), inserted:

From April 1 next, inclusive, every citizen will be free to carry on whatever profession or trade seems good to him, after having procured and paid for a licence.

This meant the end of masterships and wardenships. An indemnity was to be allowed the masters for the money they had spent, and to the wigmakers and to the barbers for the posts they had bought. With no fuss, almost without discussion, and without finding any one to defend them in the Assembly, the guilds ceased to be after an existence which had lasted for many centuries.

In June of the same year, a new law was destined to stifle any inclination they might have shown to come to life again. The pretext given for condemning them to their fate was the formation of societies of workers with the object of raising wages. Chapelier, affirming that it was the duty of the State to assist the infirm and find work for those who needed it in order to live, protested against every association which claimed to substitute a collective contract for the individual contract between master and workers. [\[144\]](#) Article 2 of the law in question reads:

Citizens of the same condition or profession, middlemen, those who keep open shops, workmen and *compagnons* of whatever art, may not, when they find themselves together, nominate president, secretary or syndic, keep registers, pass resolutions, make regulations for what they claim to be their common interests, or bind themselves by agreements leading to the concerted refusal or to the granting only at a certain price, of the help of their industry and labours.

According to a phrase taken from a petition addressed by the master-builders to the municipality of Paris, the above resolutions and agreements, if they ever happened to be made, had to be declared “unconstitutional, opposed to liberty and to the declaration of the rights of Man”; the authors,

instigators, and signatories of these acts or writings were to pay a fine of £500 each, and to be deprived for a year of their rights of active citizenship. Severer penalties were provided in all cases of threat and unlawful assembly.

Thus pure reaction, excessive and impracticable, set in against trade combination; compulsory isolation was established under the false name of freedom of work, and in consequence the weak were abandoned to the mercy of the strong, and the poor to the mercy of the rich; the individual, naked and unarmed, was put face to face with the individual armed at every point; in the economic domain a mere agglomeration was substituted for any kind of organization. But besides being the culminating point of a long evolution, this reaction was the starting-point of a new development which created the modern Labour Movement. We must next take a rapid survey of Europe and see what was the fate of the guilds in other countries.

In Holland, where they had never been very strong, they counted for nothing after 1766. In Tuscany, from 1759 to 1766, a great inquiry was held into the state of the *Arti*, and following on the information obtained, the Archduke Peter-Leopold brought about, by means of decrees, a reform which was revolutionary in character. On February 3, 1770, he abolished enrolment fees throughout the duchy, with the exception of two or three small territories like that of Livurnia, and decided that, in order to ply a trade, it should be enough henceforth to be inscribed once and for all on a general register. In consideration of a fee of £2 at most, a man might, if he wanted to, follow more than one calling or open several shops. The only exceptions were the doctors, apothecaries, and goldsmiths, who were still subject to special obligations, and silk manufacturers, who kept a few ancient privileges. On February 17 of that year all the guild tribunals were abolished and all their powers vested in a *Chamber of Commerce, Arts, and Manufactures*, which had not only legal rights but also the duty of watching over the economic interests of the country, encouraging and assisting poor craftsmen, and administering the estates formerly held by the guilds which had thus been wiped out at a stroke of the pen. The clauses are curious and confirm what we have said concerning the action of princes. The Archduke expresses his wish that “such matters shall be regulated by a single authority, on fixed and uniform principles directed to the universal good of the State.” The bakers were no longer compelled to make loaves of a fixed

weight; the merchants were exempted from paying for weights and measures which they hardly ever used but which they were forced to possess.^[145] The glorious guilds of Florence had lived for centuries and were to leave their mark behind them for a long time to come; it was only in 1907 that the winding-up of the property which had belonged to the *Arte della Lana* was concluded.

In Lombardy, from 1771 onwards, under the rule of the Empress Maria Theresa, a similar reform took place; in 1786 it was Sicily's turn; throughout the rest of Italy, all that remained of the ancient guild system disappeared under the French domination and the Napoleonic Code. The same thing happened in Belgium, where, after the decree of 17 Brumaire, Year IV., nothing was left but shadowy guilds, such as that of St. Arnoldus at Bruges, or the "Nations" at Antwerp.^[146] In Germany the guild system was more tenacious and was only to disappear, in certain States, when German unity was almost realized. The Code of the Confederation of Northern Germany declared for its abolition in all the countries under its jurisdiction.

3. The guilds, then, were long in dying, and in addition to a few survivals,^[147] there were even some attempts made here and there to revive them during the nineteenth century.

In France, from the days of the Consulate and of the Empire, professional guilds (notaries, lawyers, solicitors, law-court officers, stockbrokers, etc.) were formed and still exist. The practice of more than one profession—such as medicine, dispensing, printing—remained under the control of the public authority. Butchers and bakers, under new regulations, remained in this state till 1858 and 1863. In 1805, three hundred wine-sellers demanded, without success, the restoration of the old craft guilds and of their own in particular. Under the Restoration, which undertook the task of restoring institutions which the storms of the Revolution had destroyed, other petitions of the same nature found a few partisans in the "*Chambre Introuvable*" and in some of the General Councils;^[148] but although "the small" crafts were in favour of this return to the past, "great" trade, which had been hostile to wardenships and masterships, was strongly opposed to it. The Chamber of Commerce of Paris and the bankers were among the first to fight and defeat these ideas.

It is among Catholics especially that such ideas have been awakened; inspired by sincere pity for the misery of the working classes who have been so long without protection, they have often been filled with the desire to create an organization for the propagation of social peace between masters and workers. During the reign of Louis-Philippe, Buchez, Villeneuve Bargemont, La Farelle, and Buret tried to bring the guild idea to life again. In 1848 it publicly reappeared for a short time, when the provisional government received hundreds of deputations classed according to their trades, and Louis Blanc nominated, according to craft guilds, delegates for the Commission of the Luxembourg, and when *compagnonnage* paraded its beribboned canes and splendid works of art in the processions of the republican festivals; but it was already modified; masters and workmen formed separate groups. More recently, in 1891, it has been advocated in eloquent but vague terms by Pope Leo XIII., and Catholic circles, founded by M. de Mun, have tried to put it into practice.

But it has always encountered obstacles which have arrested its progress. First there have been disagreements between those who favour the idea. Should the guild be optional or compulsory, open or closed? What share should masters and workmen take in it? Should it aim only at mutual assistance, or should it be competent to act in disputes between members? On the one hand there were those who were afraid of reviving the tyrannical monopoly of the old wardenships and on the other those who were afraid of forming, without meaning to do so, the framework for a socialistic organization of labour. All this was enough to paralyse those who might have been willing to join. But there was an even greater difficulty; though some of the great employers, those of the Val des Bois for example, supported the cause, the working classes, not unreasonably, stood aloof, uneasy and defiant. They dreaded any sort of patronage in which the heads would bombard them with pious exhortations and hold up to them the dismal virtue of resignation; they remembered M. Claudio Jannet's confession that he looked to Christianity "to solve the social question by inspiring masters with the spirit of justice and charity, and by making the less-favoured classes *accept their lot*." They could not forget that the Holy Father had written that the guilds should have "religion for their guide," and they thought they had a foretaste of the fate in store for them, in the statutes of association of the printer-bookseller-bookbinders of Paris in the new

model (1879): “Art. III. To belong a man must be a Catholic. Art. IV. Must bind himself not to work, or employ another on Sunday. Art. V. To print no irreligious book.” In short, they were afraid of putting themselves under the yoke of the confessional and of losing their liberty of thought, and they looked on an institution from which were excluded in advance all who did not hold a certificate of orthodoxy, as too much resembling the Middle Ages, and as an anachronism in a society where rights are equal for all citizens irrespective of religion.

A few theorists^[149] no doubt prided themselves on enlarging this narrow conception; but the compulsory guilds, open and federated, which they dreamed of instituting, were so different from the old guilds that there was really nothing in common except the name.

It was in Austria, in surroundings less cut off from the past than in France, that guilds more resembling the original type awoke to an appearance of life.^[150] Created by law in 1883, they have set before themselves some of the aims of the *Arti* of Florence, viz. the safeguarding of the honour of the trade and, to this end, the regulation of apprenticeship; the foundation or assistance of institutions for technical instruction; the exaction of a preliminary examination from any one who wishes to set up as a craftsman or merchant; the buying of raw material at the expense of the community; the provision of arbitrators to settle trade differences, and the insurance of members against sickness, etc. They even try, as in old times, to secure the legal monopoly of a craft and to forbid hawking, etc. They remind one very much of what I have called the *capitalistic guilds* of the Middle Ages, and those of great commerce and “great” industry, with the sole difference that they are compulsory for all who carry on the same trade. (See [p. 28](#).) All the authority, in fact, is in the hands of the masters, and although they are reminded of their duties towards the workers, the latter are subordinate, can only present petitions, and are only allowed to decide as to the administration of benefit funds. It is more than doubtful whether this reproduction of the most hierarchical form of the ancient guilds has much chance of spreading at a time when ideas of equality have made such headway and when the working classes are strong enough to refuse meekly to submit to the conditions employers lay down. It must also be remembered that “great” industry, for and by whom this method was formerly designed, is excepted from Austrian legislation, which forces it on

the “small” trades, to which this renewal of the regulations of the old statutes seems to be a great hindrance. Imitation of this system, which is itself only a more or less successful imitation, has so far not gone farther than Hungary and Germany (the *Innungen*). In Belgium, Switzerland, and even in France, Christian associations are to be found on the same model. They always include two groups which never assimilate; masters and workmen who have separate representation and pay unequal subscriptions. The principle is always Charity, the devotion of one class to another, no doubt an honourable sentiment, but one with which is mingled a protective spirit it seems impossible to do away with. For Pope Leo XIII. himself, in his Encyclical of May 16, 1891, states that, in civilized society, it is impossible that every one shall rise to the same level, and that, in consequence, there will always be rich and poor. “Just as, in the human body, the members, in spite of their diversity, adapt themselves so marvellously to each other as to form a perfectly proportioned whole, which may be called symmetrical, so, in society, the *two classes* are destined by nature to unite in harmony, and to maintain together a perfect balance.” Life and experience, however, would seem to prove the opposite. The only thing to be gained by these attempts to return to a time that has disappeared for ever is the combination of crafts—a necessity which seeks to-day, as it has always done, its legitimate satisfaction. But new methods of production and sale demand new forms of organization of sellers and producers, and have brought us to the system, evolved by those concerned, spontaneously, without prejudiced or preconceived theories, by the direct force of circumstances—the system of *Trade Unionism*, which has succeeded the guild system as the defender of trade interests.

AUTHOR'S BIBLIOGRAPHY

Arte dei medici, speciali e merciai. (State Archives of Florence.)

Arte di Calimala. (Statutes, edition Filippi Giovanni, Torino, 1889. Gr. 8vo.)

Arte di Por Santa Maria. Statutes, Archives of Florence, and for all the other *Arti*.

ASHLEY (W. J.). Economic History.

BODIN (JEAN). De la République. (Paris, 1576-1578. Folio.)

BOISSONNADE (P.). Essai sur l'organisation du travail en Poitou, depuis le XI^e siècle jusqu'à la Révolution. (Paris, H. Champion, 1900. 2 vols. 8vo.)

BONOLIS. Rivista italiana per le scienze giuridiche. (Vol. xxvii. fasc. i. and ii.)

BOUGLE (G.). Essais sur le régime des castes. (Paris, F. Alcan, 1908. Travaux de l'année sociologique. 8vo.)

BOURGEOIS (A.). Les Métiers de Blois. (2 vols. 1895.)

BRISSE (PIERRE). Histoire du travail et des travailleurs. (Paris, Delagrave, no date. 16mo.)

BUCHER (KARL). Études d'histoire et d'économie politique. (Paris, F. Alcan, 1901. 8vo.)

CANTINI. Legislazione toscana.

CUNNINGHAM (W.). Outlines of English Industrial History (with E. A. MacArthur). (Cambridge, 1895. 8vo.)

DAVIDSOHN (ROBERT). 1. Geschichte von Florenz.

2. Forschungen zur Geschichte von Florenz. (Berlin, E. S. Mittler und Sohn, 1896-1908. 4 vols. 8vo.)

DEJOB (CHARLES). Le Marchand de vin dans les vieilles communes de l'Italie. (Paris, Société Française d'Imprimerie et de Libraire, brochure. 8vo. 1907.)

DOREN (ALFRED). 1. Entwicklung und Organisation der Florentiner Zünfte. (1897, Leipzig, in Staats- und socialwissenschaftliche Forschungen, by Schmoller.)

2. Studien aus der Florentiner Wirtschaftsgeschichte. (Stuttgart, 1901. 8vo.)

DRAPÉ (ALPH.). Recherches sur l'histoire des corps d'arts et métiers en Roussillon sous l'ancien régime. (Paris, Arthur Rousseau, 1898. 8vo.)

FAGNIEZ (GUSTAVE). Documents relatifs à l'histoire de l'industrie et du commerce en France. (2 vols., Paris, Alph. Picard et fils, 1898-1901. 8vo.)

FILIPPI (GIOVANNI). See *Arte di Calimala*.

FLACH (J.). Les Origines de l'ancienne France. (Larose, 1893-1904. 3 vols. 8vo.)

FRANKLIN. 1. La Vie privée d'autrefois. Comment on devenait patron. (Paris, Plon, 1889. 12mo.)

2. La Vie privée d'autrefois. La Cuisine. (Paris, Plon, 1888. 12mo.)

GERMAIN-MARTIN. 1. La Grande Industrie sous le règne de Louis XIV.

2. La Grande Industrie sous le règne de Louis XV.

3. Les Associations ouvrières au XVIII^e siècle. (Paris, Arthur Rousseau, 1899 and 1900. Gr. 8vo.)

GODART (JUSTIN). L'Ouvrier en soie (1st volume). (Paris, Arthur Rousseau, 1899. 8vo.)

HARTMANN (MORITZ). Zur Wirtschaftsgeschichte Italiens im fruher Mittelalter. (Gotha, 1904.)

HAUSER (HENRI). 1. Ouvriers du temps passé. (Paris, F. Alcan, 1898. 8vo.)

2. Les Compagnonnages d'arts et métiers à Dijon aux XVII^e et XVIII^e siècles (with his pupils). (Paris, A. Picard et fils, 1907. 8vo.)

3. Les Pouvoirs publics et l'organisation du travail dans l'ancienne France. (Revue d'Histoire moderne et contemporaine, 1907-1908.)

HAYEM (H.). Domaines respectifs de l'association et de la société. (Paris, Arthur Rousseau, 1907. 8vo.)

LACROIX (PAUL). Mœurs, usages et costumes au moyen âge et à l'époque de la Renaissance. (Paris, Firmin-Didot et C^{ie}, 1878. 8vo.)

LAMPRECHT. Deutsche Wirtschaftsleben im Mittelalter. (Leipzig, Dürr, 1886. 4 vols. 8vo.)

LA SORSA. Gli Statuti degli orefici e sellai fiorentini al principio del secolo XIV. (Florence, 1901.)

LEVASSEUR (ÉMILE). Histoire des classes ouvrières et de l'industrie en France avant 1789. (2nd edition, 2 vols. 8vo. Paris, Arthur Rousseau, 1901.)

Livre des métiers (1e). (Édition Depping, Paris, 1879.)

LUCHAIRE (ACHILLE). Les Communes françaises à l'époque des capétiens directs. (Paris, Hachette, 1890. 8vo.)

MARTIN-SAINT-LÉON (E.). 1. Histoire des corporations de métier. (Paris, Guillaumin & C^{ie}, 1897. 8vo.)

1. *Bis*. Second edition. (Paris, F. Alcan, 1909. 8vo.)

2. Le Compagnonnage. (Paris, Armand Colin, 1901. 18mo.)

MICHELET (JULES). Histoire de France. (Édition Marpon et Flammarion, Paris, 1879.)

- MISUL. Le Arti fiorentine. La Camera di commercio. (Florence, 1904. 8vo.)
- MORE, THOMAS. Utopia.
- PERRENS (F. T.). Histoire de Florence. (Paris, 6 vols. 8vo.)
- PIGEONNEAU. Histoire du commerce de la France. (2 vols. 8vo. Paris, Léopold Cerf, 1887.)
- PIRENNE. Histoire de Belgique. (8vo. Brussels, 1900.)
- RENARD (GEORGES). 1. Les Corporations de Florence au XIII^e siècle. (Revue du Mois, September 1908.)
2. Les Banquiers florentins en France au XIII^e siècle. (Revue Économique Internationale, November 1908.)
3. La Révolution sociale au XIV^e siècle. (Revue Internationale de l'Enseignement, January 1909.)
- RICHARD (GASTON). La Femme dans l'histoire. (Paris, O. Doin et fils, 1909. 18mo.)
- RODOCANACHI. Les Corporations ouvrières à Rome depuis la chute de l'Empire romain. (2 vols. in folio, Paris, Alf. Picard et fils, 1893.)
- SAND (GEORGE). Le Compagnon du tour de France, novel.
- SCHMOLLER. Die Strassburger Tucher- und Weberzunft: Urkunden und Darstellung. (Strasbourg, 1899.)
- SOLMI (ARRIGO). Le Assoziazioni in Italia avanti le origini del Comune. (Modena, 1898.)
- TAMASSIA (NINO). Chiesa e popolo. (Modena, 1901.)
- VANDERKINDERE. Le Siècle des Artevelde. (Brussels, 1879. 8vo.)
- WEBB (BEATRICE AND SIDNEY). History of Trade Unionism. (London, Longmans, Green & Co., 1911.)

WORMS (ÉMILE). Histoire commerciale de la Ligue hanséatique. (Paris, 1864. 8vo.)

ZELLER (JULES). Histoire d'Allemagne. (Paris, Perrin et C^{ie}. 8vo.)

EDITOR'S BIBLIOGRAPHY OF WORKS IN ENGLISH

*ASHLEY (W. J.). An Introduction to English Economic History. 2 vols. Part I., The Middle Ages. 1888. 5s. (especially Chap. II.); Part II. The End of the Middle Ages. 1893. 10s. 6d. (especially Chaps. I.-III.)

Surveys, Historic and Economic. 1900. 9s. O.P.

*The Economic Organisation of England. 1914. 2s. 6d. Philip and James Van Artevelde. O.P.

BRENTANO (L.). *See* Smith, Toulmin.

CUNNINGHAM (W.). Growth of English Industry and Commerce. 3 vols. 1903-5.

GROSS (C.). The Gild Merchant. 2 vols. 1890. 24s.

KROPOTKIN (PETER). Mutual Aid. 1902. 3s. 6d.

LAMBERT (Rev. J. M.). Two Thousand Years of Gild Life. 1891. 18s.

LIPSON (E.). Economic History of England. Vol. I. Black, 1915. 7s. 6d.

PENTY (A. J.). Old Worlds for New. Allen & Unwin, 1917. 3s. 6d.

ROGERS (J. E. THOROLD). Six Centuries of Work and Wages. 1890. 10s. 6d. (remainders 4s. 6d.).

ROUND (J. H.). The Commune of London. 1899.

SALZMANN (L. F.). English Industries of the Middle Ages. 1913. 6s. 6d.

SMITH (TOULMIN). English Guilds, with an Introduction by Professor Brentano (Early English Text Society).

STALEY (EDGECOMBE). Guilds of Florence.

*UNWIN (GEORGE). The Gilds and Companies of London. 1908. 7s. 6d.

*Industrial Organisation in the Sixteenth and Seventeenth Centuries. 1904. 7s. 6d.

Printed by R. & R. CLARK, LIMITED, Edinburgh.

FOOTNOTES:

[1] *Panetier*, one charged with the distribution of bread in big establishments.

[2] *Bouteillier*, an official for the inspection and superintendence of wine in a royal household.

[3] A short study and a detailed bibliography of the origin of guilds will be found in M. Martin-Saint-Léon's *Histoire des corporations de métier*, book i., 2nd edition. We recommend it to the reader, but do not ourselves accept all the author's opinions. As, however, he chiefly gives the German, English, and French sources of information, we add a list of Italian works, or works concerning Italy, which deal with the same subject, classifying them according to the theories they adopt.

The theory of the separate creation of each guild is defended by M. Arrigo Solmi (*Le Assoziazioni in Italia avanti le origini del Comune*, 1898), but since then the works and criticisms of Messrs. Robert Davidsohn, Alfred Doren, Hartmann, and Bonolis have deprived his arguments of all that was strongest and most original in them. M. Solmi, in an article in the *Rivista Italiana di Sociologia*, ix. 1 (Roma, 1905), entitled "Sulla storia economica d'Italia nel medio evo," himself recognized that the persistence of certain ancient institutions and the division of labour in the great royal or feudal domains appear to have played an important part in the organization of crafts. M. Nino Tamassia has specially emphasized, amongst other causes, the part played by the influence of religious congregations and fraternities.

[4] The origin of the cities having been so different (see J. Flach, *Les Origines de l'ancienne France*), the causes which predominate in each must have been equally diverse.

[5] The *Arte dei Fabbri*, for instance, extended over all the suburbs of Florence.

[6] In France, for example, a long war was fought between the guilds and those whom they called *chambrelans*.

[7] A similar organization existed at Strasburg. The *Zunft* (guild) included several *Antwerke*, see Schmoller, *Die Strassburger Tücher und Weberzunft Urkunden und Darstellung*.

[8] R. Davidsohn, *Forschungen zur Geschichte von Florenz*.

[9] A. Doren, *Entwicklung und Organisation der Florentiner Zünfte*; G. Renard, *La Révolution sociale au XIV^e siècle*.

[10] The following may be consulted on this subject: Davidsohn, *Forschungen zur Geschichte von Florenz*, vol. iii. p. 221; Martin-Saint-Léon, *Histoire des corporations de métier*, p. 277; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. ii. pp. 170, 190, 201.

[11] H. Hauser, *Ouvriers du temps passé*, p. 40.

[12] Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 84, 86, 291; Franklin, *La Vie privée d'autrefois*, p. 78; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 309.

[13] Hauser, *Ouvriers du temps passé*, pp. 59-76; Boissonnade, *Essai sur l'organisation en Poitou, etc.*, pp. 53, 64, 68; Martin-Saint-Léon, *Histoire des corporations de métier*, p. 89 ; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 268.

[14] E. Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, pp. 1, 321; Martin-Saint-Léon, *Histoire des corporations de métier*, p. 117; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 231, 245, 282.

[15] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 121.

[16] Hauser, *Ouvriers du temps passé*, p. 62; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 36, 220.

[17] Avenel, *Histoire économique de la propriété, des salaires, des denrées et tous les prix en général*, passim.

[18] Boissonnade, *Essai sur l'organisation du travail en Poitou, depuis le XI^{me} siècle jusqu'à la Révolution*, vol. ii. p. 150.

[19] Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 135, 291, 294.

[20] Vanderkindere, *Le Siècle des Artevelde*, p. 132; E. Levasseur, vol. i. p. 315, note.

[21] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 280.

[22] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 290.

[23] Quotation from Beugnot's edition, p. 429.

[24] *Le Livre des métiers*, xxv. p. 65.

[25] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 1, 245; E. Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, vol. i. p. 312.

[26] Consult the following for information concerning the legal and economic status of women: Gaston Richard, *Les Femmes dans l'histoire*, p. 282; Hauser,

Ouvriers du temps passé, pp. 142-160; Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 259-261, 277, 310, vol. ii. p. 204.

[27] Consult W. J. Ashley's *Economic History*, concerning *guildae* and *hanses*. A bibliography will be found in vol. i. See also Émile Worms.

[28] *Statutes of the Arte di Calimala* (book ii. art. 23).

[29] For information on this subject consult A. Doren and Davidsohn for Florence; Pirenne for Flanders; Schmoller and Lamprecht for Germany.

[30] It is certain that in Great States the statutes of the different towns were connected, and it is probable that they were so in the period preceding the formation of Great States.

[31] Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 266 and 290; Rodocanachi, *Les Corporations ouvrières à Rome depuis la chute de l'Empire romain*, p. lix.

[32] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. ii. p. 189.

[33] *Statutes of the Calimala*, bk. ii. art. 35 and 44.

[34] Rodocanachi, *Les Corporations ouvrières à Rome depuis la chute de l'Empire Romain*.

[35] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. ii. p. 59.

[36] Justin Godart, *L'Ouvrier en soie*, p. 88, note.

[37] Rodocanachi, p. xcii.

[38] Brisson, *Histoire du travail et des travailleurs*, p. 23.

[39] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 275.

[40] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 1, 274.

[41] *Statuts de Calimala*.

[42] La Sorsa, *Gli statuti degli orefici e sellai fiorentini al principio del secolo xiv*.

[43] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. ii. pp. 71, 149.

[44] Brisson, *Histoire du travail et des travailleurs*, p. 22.

[45] Franklin, *La Vie privée d'autrefois*, p. 25.

[46] Georges Renard, *Les Banquiers florentins en France au XIII^{me} siècle*.

- [47] Paul Lacroix, *Mœurs, usages et costumes du moyen âge et à l'époque de la Renaissance*, pp. 234 and 430.
- [48] *Statutes of the Calimala*, bk. iii. art. 20-22.
- [49] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, pp. 11, 190-200.
- [50] Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, vol. i. p. 335.
- [51] Brisson, *Histoire du travail et des travailleurs*, p. 19; Boissonnade, *Essai sur l'organisation de travail en Poitou*, vol. i. p. 287.
- [52] Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 271-274.
- [53] Paul Lacroix, *Mœurs, usages et costumes au moyen âge et à l'époque de la Renaissance*, p. 317.
- [54] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 113.
- [55] Franklin, *La Vie privée d'autrefois*, vol. i. pp. 66-67; Rodocanachi, *Les Corporations ouvrières à Rome*, p. lxxxviii.
- [56] A. Doren, *Entwicklung und Organisation der Florentiner Zünfte*.
- [57] Rodocanachi, *Les Corporations ouvrières à Rome depuis la chute de l'Empire romain*, p. cxii.
- [58] Franklin, *La Vie privée d'autrefois*, p. 67.
- [59] *Statutes of the Arte dei medici, speziali e merciai*.
- [60] *Statutes of the Arte di Calimala*.
- [61] Charles Dejob, *Le Marchand de vin dans les vieilles communes de l'Italie*, p. 14.
- [62] See the statutes of the *Arte di Calimala*, and of the *Arte di Por Santa Maria*.
- [63] E. Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, vol. i. pp. 293-298.
- [64] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 146.
- [65] Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 273, 287.
- [66] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 40, 52, 93.
- [67] *Ibid.*
- [68] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 89, 112.
- [69] Consult Rodocanachi and Boissonnade on this subject.

- [70] Rodocanachi, *Les Corporations ouvrières à Rome depuis la chute de l'Empire Romain*, p. xxv.
- [71] Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, vol. i. pp. 561.
- [72] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 110.
- [73] Boissonnade, *Essai sur l'organisation du travail en Poitou*, etc., vol. ii. p. 276; Bourgeois, *Les Métiers de Blois*, passim.
- [74] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. pp. 145, 250.
- [75] Boissonnade, vol. ii. p. 276.
- [76] Paul Lacroix, *Mœurs, usages, et costumes au moyen âge et à l'époque de la Renaissance*, p. 442.
- [77] Boissonnade, *Essai sur l'organisation en Poitou*, etc., vol. ii. p. 293.
- [78] Levasseur, *Histoire des classes ouvrières et de l'industrie en France avant 1789*, vol. i. p. 343; Boissonnade, *Essai sur l'organisation en Poitou*, etc., vol. i. p. 172.
- [79] Franklin, *La Vie privée d'autrefois. La cuisine*, p. 230.
- [80] The word as here used must not be confused with its meaning in connection with the Florentine Guilds, see [p. 8](#).
- [81] The *number* of members composing a guild also contributed to its social status; but this was a factor of very much less importance.
- [82] Ribot, *Essai sur l'imagination créatrice*, p. 234; Tarde, *Psychologie économique*, bk. i. chap. v. §§ iv. v.
- [83] A. Doren, *Studien aus der florentiner Wirthschaftsgeschichte*.
- [84] Levasseur, *Histoire des classes ouvrières*, etc., vol. i. p. 343.
- [85] Perrens, *Histoire de Florence*, vol. vi. chap. v.
- [86] The inhabitants of Perpignan were classed in three *mains* (major, middle, and minor). See Drapé.
- [87] Ach. Luchaire, *Les Communes françaises à l'époque des capétiens directs*, pp. 207-215.
- [88] Georges Renard, *Revue économique internationale*, Jan. 1909, article entitled "La révolution sociale au XIV^e siècle."
- [89] Davidsohn, *Forschungen zur Geschichte von Florenz*, vol. iii.
- [90] *Livre des métiers*, p. 1.
- [91] Fagniez, *Documents relatifs à l'histoire de l'industrie et du commerce en France*, vol. i. p. 75.

- [92] Franklin, *La Vie privée d'autrefois, comment on devenait patron*, p. 70; Martin-Saint-Léon, *Histoire des corporations de métier*, p. 275.
- [93] Boissonnade, *Essai sur l'organisation du travail en Poitou*, etc., vol. ii. p. 250.
- [94] Fagniez, vol. i. p. 115.
- [95] Karl Bücher, *Études d'histoire et d'économie politique*, passim.
- [96] Macaulay, *History of England* (Everyman), vol. i. p. 323.
- [97] Germain-Martin, *La Grande Industrie sous le règne de Louis XIV*, p. 232.
- [98] E. Levasseur, *Histoire des classes ouvrières*, etc., vol. i. p. 590.
- [99] Thomas More, *Utopia*.
- [100] Ashley.
- [101] André Liesse, *Le Travail*.
- [102] Beatrice and Sidney Webb, *History of Trade Unionism*, p. 41.
- [103] Macaulay, *History of England* (Everyman), vol. i. p. 292.
- [104] Germain-Martin, *La Grande Industrie sous le règne de Louis XV*.
- [105] Beatrice and Sidney Webb, *History of Trade Unionism*, p. 13.
- [106] Page 24. Their position was the same in the *Arte della seta*.
- [107] Macaulay, *History of England* (Everyman), vol. i. p. 323, note.
- [108] Hauser, *Ouvriers du temps passé*, chap. x.
- [109] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*, p. 55. [The song is quoted in full in J. Burnley's *Wool and Wool-combing*, pp. 161 ff.—EDITOR.]
- [110] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*.
- [111] See Levasseur, *Histoire des classes ouvrières*, etc., chap. vi.; Hauser, *Les Compagnonnages d'arts et métiers*, etc., p. 8 and *passim*; Martin-Saint-Léon, *Le Compagnonnage*.
- [112] Hauser, *Les Compagnonnage d'arts et métiers à Dijon au XVII^{me} et XVIII^{me} siècles*, p. 168.
- [113] Du Bellay; see also Grévin, prologue to *La Trésorière*.
- [114] Jules Zeller, *Histoire d'Allemagne*.
- [115] Boissonnade, *Essai sur l'organisation du travail en Poitou*, vol. ii. pp. 354-357.
- [116] Germain-Martin.

- [117] Ashley.
- [118] Fagniez, *Corporations et syndicats*, p. 23.
- [119] Quoted by Michelet, *Histoire de France*, vol. v. p. 312.
- [120] Levasseur, vol. ii. p. 138.
- [121] J. Bodin, *De la République*, bk. iii. chap. viii.
- [122] See Boissonnade, vol. ii. pp. 360, 465; Bourgeois, vol. ii. p. 243. The master saddlers of Blois (1593) asked the king to grant them statutes “similar to those of Tours and other free towns of this kingdom.”
- [123] They even formed guilds, as, for instance, the dressmakers’ guild, which owed its existence to Colbert.
- [124] Ashley, *Economic History*, vol. ii. p. 13.
- [125] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*, p. 65.
- [126] Cantini, *Legislazione toscana*, x. chap. xxix. and xxx.
- [127] Misul, *Le Arti Fiorentini*, passim.
- [128] Boissonnade, *Essai sur l’organisation du travail en Poitou, depuis le XI^{me} siècle jusqu’à la Révolution*, vol. ii. p. 79.
- [129] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 348.
- [130] Pigeonneau, *Histoire du Commerce de la France*, vol. i. p. 180.
- [131] Boissonnade, *Essai sur l’organisation du travail en Poitou, depuis le XI^{me} siècle jusqu’à la Révolution*, vol. ii. p. 123.
- [132] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 358.
- [133] “Poids de marc”; *marc*, ancient weight of eight ounces (Larousse).
- [134] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*, p. 67.
- [135] Boissonnade, vol. ii. p. 430.
- [136] Boissonnade, *Essai sur l’organisation du travail en Poitou*, etc., vol. ii. pp. 120, 488.
- [137] W. J. Ashley.
- [138] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 312.
- [139] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*, pp. 195-208.
- [140] Montesquieu, bk. xxiii. chap. xv.
- [141] Martin-Saint-Léon, *Histoire des corporations de métier*, p. 523.
- [142] Mantoux, *La Révolution industrielle au XVIII^{me} siècle*, pp. 472, 487.

- [143] Beatrice and Sidney Webb, *History of Trade Unionism*, p. 44.
- [144] For the whole of the preceding consult Martin-Saint-Léon, *Histoire des corporations de métier*, pp. 511, 516; Hayem, *Domaines respectifs de l'association et de la société*, p. 23; Jaurès, *La Constituante*, pp. 600-630.
- [145] Misul, *Le Arti Fiorentine; La Camera di Commercio*.
- [146] E. Vandervelde, *Enquête sur les associations professionnelles d'artisans et ouvriers en Belgique*, vol. i.
- [147] J. Paul-Boncour in *Le Fédéralisme économique*, p. 14, gives a list of the guilds which survive in France.
- [148] On this subject see Martin-Saint-Léon, *Histoire des corporations de métier*, bk. vii.; and Paul Louis, *Histoire du mouvement syndical en France*, p. 67.
- [149] Martin-Saint-Léon, *Histoire des corporations de métier*, bk. vii. chap. iii., "The Guilds of the Future."
- [150] Hubert-Valleroux, *Les Associations ouvrières et les associations patronales*, p. 130; Altmann, *Le Régime corporatif des métiers en Autriche et en Allemagne au XIX^{me} siècle*.

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